

No. 20-12897

**THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

DEEPGULF, INC. AND TOKE OIL AND GAS, S.A.

Plaintiff / Appellant,

v.

MARC MOSZKOWSKI,

Defendant /Appellee

On Appeal from the United States District Court for the Northern District of
Florida, Pensacola Division

Case No. 3: 18-cv-01466-TKW-MJF

APPENDIX TO APPELLEE'S BRIEF

VOLUME III: Documents on Docket

December 2, 2020

Marc Moszkowski, Pro Se
email: m.moszkowski@deepgulf.net
Phone: +1(850) 316 8462
Le Verdos
83300 Châteaudouble, France

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CERTIFICATE OF SERVICE

1 HEREBY CERTIFY that I have, on this 2nd day of December 2020, furnished a copy of the foregoing to the Appellant's Counsel, Braden K. Ball, via the Court's E-filing system.



Marc Moszkowski, Pro Se

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IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, INC.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-MCR-GRJ

MARC M. MOSZKOWSKI,

Defendant.

**ANSWER TO DEFENDANT'S COUNTERCLAIM AND REPLY TO
AFFIRMATIVE DEFENSES**

Plaintiffs, Deepgulf and Toke Oil and Gas, Inc., by and through its undersigned attorney, answers the Counterclaim of Defendant, Marc M. Moszkowski, and states as follows:

COUNTERCLAIM

- i. Denied.
- ii. Denied.
- iii. Denied.
- iv. Denied.
- v. Denied.
- vi. Denied.
- vii. Denied.

viii. Denied.

ix. Denied.

x. Denied.

xi. Denied.

xii. Denied.

xiii. Denied.

xiv. Denied.

xv. Denied.

xvi. Denied.

xvii. Denied.

xviii. Denied.

xix. Denied.

xx. Denied.

xxi. Denied.

xxii. Denied.

1. Denied.

2. Denied.

3. Denied.

4. Denied.

5. Denied.

6. Denied.
7. Denied.
8. Denied.

AFFIRMATIVE DEFENSES TO COUNTERCLAIM

1. Counter-Plaintiff fails to state a cause of action in that the allegations of this Counterclaim are conclusory in nature and fail to “contain a short and plain statement of the claim showing that the pleader is entitled to relief.” See Rule 8(a)(2), Federal Rules of Civil Procedure.

2. Statute of Limitations. Although it is difficult to discern the timing of the allegations of Counter-Plaintiff’s Counterclaim, to the extent that they are beyond the applicable Statute of Limitations, they are time barred.

3. Laches. Although it is difficult to discern the timing of the allegations of Counter-Plaintiff’s Counterclaim, it is barred by the equitable doctrine of Laches.

4. Unclean Hands. To the extent that Counter-Plaintiff is seeking equitable relief in his Counterclaim, his claims are barred by unclean hands in that Counter-Plaintiff has absconded with trade secrets and business opportunities owned by Counter-Defendant.



BRADEN K. BALL, JR.

Florida Bar No. 89000

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Pensacola, Florida 32502

Telephone: (850) 432-9818

Facsimile: (850) 432-9830

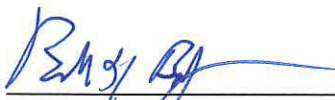
Attorneys for Plaintiffs

Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 11th day of September, 2018 served a copy of the foregoing Answer to the Defendant, Marc M. Moszkowski, m.moszkowski@deepgulf.net, Le Verdos, 83300 Châteaudouble, France, via e-mail, First Class Mail and the Court's e-filing system.



BRADEN K. BALL, JR.

Florida Bar No. 89000

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Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

**PLAINTIFFS' MOTION TO COMPEL DEFENDANT TO PRODUCE
INITIAL DISCLOSURES, APPEAR PERSONALLY AT DEPOSITION
AND TO APPEAR PERSONALLY AT MEDIATION**

Pursuant to Federal Rules of Civil Procedure 26(a) and 37, Plaintiffs respectfully request that the Court compel the Defendant to produce complete initial disclosures. Further, Defendant has expressly stated that he will not comply with the requirement, pursuant to Federal Rule 26(a), that he produce complete initial disclosures. Accordingly, Plaintiff requests that the Court enter an order requiring Defendant to produce complete initial disclosures.

Plaintiffs further respectfully request that Defendant be Ordered to appear in Northwest Florida for a deposition in accordance with Local Rule 26.1(B)(1) and the court-ordered mediation.

PROCEDURAL BACKGROUND

On August 30, 2018, this Court entered its “Case Management and Scheduling Order.” This Order required Rule 26(a)(1) disclosures be provided within 14 days from the parties’ Rule 26(f) conference, to wit, October 13, 2018.

On October 29, 2018, Defendant provided “Defendant, Marc M. Moszkowski’s Initial Disclosures Pursuant to Rule 26(a)(1),” a copy of which is attached as Exhibit “A”.

In paragraph II, Defendant states as follows: “The documents which the Defendant may use to support his defenses have been made abundantly available to the Plaintiffs in the form of letters and emails to the shareholders. The Defendant will use in particular the complete correspondence between the Defendant and Rus Howard and his secretaries, which includes thousands of emails, with attachments, as well as Skype and text messages, and is by consequence already in the hands of the extant Plaintiffs’ Chairman of the Board Rus Howard.”

On October 30, 2018, in response to a request by counsel for Plaintiffs, Defendant responded with the email described in Exhibit “B”, indicating that he was unwilling or unable to deliver proper copies of thousands of documents.

On November 14, 2018, counsel for Plaintiffs emailed Defendant requesting Defendant give times and dates that Defendant could appear in Northwest Florida for a deposition and for the court-ordered mediation. Plaintiffs are entitled to depose

Defendant in Northwest Florida, as Defendant has asserted a Counterclaim in this case, pursuant to Local Rule 26.1(B)(1).

On November 26, 2018, Plaintiffs received a response from Defendant that he was unwilling or unable to travel to Northwest Florida for these events. Defendant's assertion in his Initial Disclosures that his Counterclaim is based upon "thousands of emails, with attachments, as well as Skype and text messages" shows the impracticability of taking the deposition of the Defendant/Counter-Plaintiff by some other means, other than in person.

LEGAL STANDARDS

Federal Rule 26(f) requires that parties confer to make or arrange for the initial required disclosures pursuant to Rule 26(a),¹ and to discuss any issues relating to preserving discoverable information. Under Rule 37(a)(2)(A), "if a party fails to make a disclosure required by Rule 26(a), any other party may move to compel disclosure and for appropriate sanctions." Fed. R. Civ. P. 37(a)(2)(A).

As explained in the Advisory Committee Notes to Rule 26, the purpose of Rule 26(a) is to "accelerate the exchange of basic information about the case and to

¹ Rule 26(a) requires that a party must disclose where known the name, address, and telephone number of each individual likely to have discoverable information that the disclosing party may use to support its claims or defenses and the subject of the information, unless used solely for impeachment; a copy or a description of, by category and location, of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody or control and that the disclosing party may use to support its claims or defenses, unless solely for impeachment; a computation of any category of damages claimed by the disclosing party, making available for inspection and copying the documents or other evidentiary material, not privileged or protected from disclosure, on which such computation is based, including materials bearing on the nature and extent of injuries suffered and making available for inspection and copying any insurance agreement under which any person carrying on an insurance business may be liable to.

eliminate the paper work involved in requesting such information.” See Advisory Committee Notes, Fed. R. Civ. P. 26. Initial Disclosures, like all mandatory disclosures under the Federal and Local Rules, are integral to the parties’ ability to move a case forward expeditiously. “The goal of the initial disclosure requirement is to get out basic information about the case at an early point.” Stamps v. Encore Receivable Mgmt., 232 F.R.D. 419 (N.D. Ga. 2005) (quoting Wright, Miller & Marcus, Federal Practice and Procedure: Civil 2d § 2053).

Federal Rule 37 provides that “[i]f a party fails to make a disclosure required by Rule 26(a), any other party may move to compel disclosure and for appropriate sanctions.” Fed. R. Civ. P. 37(a)(2)(A).

With regards to appearance at mediation, the Court’s Final Scheduling Order and Mediation Referral states:

“8(d) The following persons MUST attend the mediation conference . . .

(2) All parties.”

With regards to appearance at deposition, it is mandated by Local Rule 26.1(B)(1) for a party with an affirmative claim to appear in the locale where the court is located.

ARGUMENT

Defendant has both undermined the Court’s ability to manage discovery in this case and hampered Plaintiffs’ ability to obtain basic discovery that is essential

to their claims. Further, Defendant's refusal to produce complete initial disclosures have caused Plaintiffs to expend needless resources in drafting and serving document and interrogatory requests that seek discovery that Rule 26(a) requires Defendant to produce automatically. Finally, Defendant's unwarranted refusal to produce complete initial disclosures continues to delay resolution of Plaintiffs' claims.

In refusing to sufficiently produce initial disclosures, Plaintiffs assert that the Defendant's categorization of documents he intends to utilize at trial is insufficiently detailed for Plaintiffs to discern what the documents are. In 2P Command Agency S.R.O. v. SRT USA, 2012 WL 1660614 (M.D. Fla. 2012), the Court held it was insufficient for a party to not provide the location of the production and to merely state that the other party has the documents or has equal access to the documents. That is exactly what Defendant has stated in his initial disclosures.

Defendant/Counter-Plaintiff's reasoning for not wanting to attend the mediation personally, as Ordered by this Court is not a sufficient reason to excuse Defendant/Counter-Plaintiff from personally attending a mediation or his deposition, particularly when the Defendant stated in the Rule 26(f) report that "the Defendant strongly disagrees that mediation not be required . . ."

In Hoffman v. R.F. Group, 2016 WL 7330620 (M.D. Fla. 2012), a party suggested that it should be allowed to appear at a mediation telephonically instead of traveling from Canada to Florida to avoid the time, expense and other associated costs with travel. The Court denied the request and held that mediation conferences are most effective when attended by two parties in person. Id. Furthermore, the Court held that increased costs because of travel expenses are generally not sufficient to excuse Court Ordered attendance at mediation. Id.

Moreover for similar reasons, in Collace v. United States of America, 2015 WL 1138848 (M.D. Fla. 2015), the Court denied a party's application to appear at mediation telephonically, even though the party was unemployed and lived in New York.

CONCLUSION

For the foregoing reasons, Plaintiffs respectfully request that the Court enter an Order requiring Defendant to produce complete initial disclosures, to appear personally for a deposition in Northwest Florida and to appear personally for mediation in Northwest Florida.

RESPECTFULLY SUBMITTED,



BRADEN K. BALL, JR.

Florida Bar No. 89000

LITVAK BEASLEY WILSON & BALL, LLP

226 East Government Street

Pensacola, Florida 32502

Telephone: (850) 432-9818

Facsimile: (850) 432-9830

Attorneys for Plaintiffs

Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(B)

I CERTIFY that I personally attempted to communicate with opposing party regarding the relief sought herein.



BRADEN K. BALL, JR.

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Motion contains 1,239 words, exclusive of the case style, signature block and certificates of compliance/service.



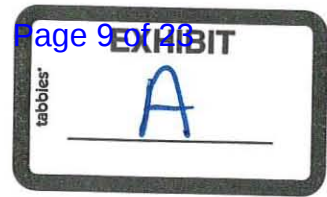
BRADEN K. BALL, JR.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 17th day of December, 2018 a copy of the foregoing has been furnished to the Defendant, Marc M. Moszkowski, m.moszkowski@deepgulf.net, Le Verdos, 83300 Châteaudouble, France, via the Court's E-filing system.



BRADEN K. BALL, JR.



IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3: 18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

DEFENDANT MARC M. MOSZKOWSKI'S INITIAL DISCLOSURES

PURSUANT TO RULE 26(a)(1)

The Defendant apologizes for the delay in communicating his Initial Disclosures to the Attorney for the Plaintiffs one working day after he received the Plaintiffs' Initial Disclosures as a package in the mail, delivered to and signed by him 10 days after the deadline for the completion of the Initial Disclosures set in the Report of Parties' Planning Meeting.

Pursuant to Rule 26(a)(1) of the Federal Rules of Civil Procedure, the Defendant submits his Initial Disclosures as follow.

Continuing discovery may cause the Defendant to amend these initial disclosures, including by identifying other potential witnesses, documents, and by

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disclosing other pertinent information. The Defendant therefore reserves the right to supplement these initial disclosures.

I. Individuals likely to have discoverable information:

1. Rustin Howard:

- a. Phone: (850) 377 1856
- b. Email: rus@holdg.com
- c. Address: 431 East Zaragoza St., Pensacola, FL 32502
- d. Chairman of the Board, DeepGulf, Inc.
- e. Acting Chief Financial Officer since 2004

2. Bill Lott:

- a. Phone: (251) 583-3150
- b. Email: wblottjr@gmail.com
- c. Address: 26588 Rolling Ridge Road, Robertsdale, AL 36656
- d. Mr. Lott has participated in numerous DeepGulf management and board meetings since 2005
- e. Mr. Lott was on the Board of Directors until 2018
- f. Mr. Lott sustained the Defendant's basic survival needs for nearly five years, by providing accommodation for the Defendant without compensation while DeepGulf, Inc. had abandoned him

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resourceless. Mr. Lott contributed in earnest to DeepGulf, Inc.'s efforts by providing funds for the Defendant to travel to Indonesia and stay and live there at no cost to the company for over 6 weeks in 2016.

- g. Mr. Lott has firsthand knowledge of the reality of the Defendant's situation at the time.

3. Rodney Lewis:

- a. Phone: +61 412 661 346 (Australia)
- b. Email: rod@rodlewis.com.au
- c. Toke Oil and Gas' legal counsel in East Timor and Australia after 2010 and while the company was in existence
- d. Mr. Lewis has personal knowledge of DeepGulf's and Defendant's activities in East Timor, Australia, Indonesia, South Korea.

4. Arthur Moszkowski:

- a. Phone: +33 6 62 78 53 35 (France)
- b. Email: snowtur(@hotmail.fr
- c. Address: Chalet Le Belvédère, Le Crey, 73350 Champagny-en-Vanoise, France

d. Son of Defendant

5. Vicente Ximenes:

- a. Phone: + 670 7709 8190 (East Timor)
- b. Email: maubocy@gmail.com
- c. Co-founder, partial owner, and Director of Toke Oil and Gas SA.
while the company was in existence
- d. One time DeepGulf representative in East Timor and Indonesia
- e. Mr. Ximenes has personal knowledge of Toke Oil and Gas' and
Defendant's activities in East Timor, Australia, Indonesia since
2008

6. Gino Favaro:

- a. Hotel Dili, Suite 1, 56 rua dos Direitos Humanos, Dili, Timor
Leste.
- b. Co-founder, former partial owner of Toke Oil and Gas S.A.,
former Director of Toke Oil and Gas S.A.
- c. Mr. Favaro had personal knowledge of Toke Oil and Gas' and
Defendant's activities in East Timor between 2008 and 2010

7. I.J. Tark:

- a. Phone: +821020880694 (Republic of Korea)

- b. Former Vice Chairman NK,
- c. Mr. Tark has knowledge of Toke Oil and Gas' projects conducted in East Timor, and attempted to help Defendant raise capital in South Korea for the benefit of a potential South Korean subsidiary of DeepGulf, Inc.'s.
- d. Mr. Tark contributed in earnest to DeepGulf, Inc.'s efforts by providing funds for the Defendant to travel to South Korea and to Indonesia on at least three occasions, and staying and living in both locations at no cost to the company for several weeks in 2016.
- e. Mr. Tark has firsthand knowledge of the reality of the Defendant's situation at the time.

8. Benton Baugh:

- a. Phone: Home 281-599-9914, cell 713-419-8683
- b. Email: bbaugh@baughengrs.com
- c. Address: 19210 Cohen Green Lane, Houston, TX 77094-4126
- d. Ex-President and CEO, Radoil, Inc., Houston, Texas
- e. Mr. Baugh, PhD, P.E., NAE, is a Distinguished Adjunct Professor at the University of Houston Cullen College of Engineering. He chairs the Marine Technology Society

Deepwater Field Development Technology Committee. Mr. Baugh is a Member of the National Academy of Engineering since 1999. He has been awarded so far 137 U.S. patents.

- f. Mr. Baugh is co-inventor with the Defendant of several U.S. patents.
- g. Mr. Baugh has served as an expert witness on 12 lawsuits. He testified in 2010 as an expert witness on subsea blowout preventer systems before the U.S. House of Representatives' Committee on Science and Technology, and he is an Expert reviewer of Federal papers on the BP/Macondo Incident.
- h. The Defendant intends to call Mr. Baugh as an Expert Witness on this case, to testify about the character, integrity, and competence of the Defendant.

9. Bryan Lastrapes:

- a. Phone: (832) 312-5555 or 713.343.6431
- b. Email: bryan.lastrapes@moelis.com
- c. Address: 333 Clay Street, Suite 3750, Houston, TX 77002
- d. Managing Director, Moelis & Company, Houston

- e. Mr. Lastrapes has knowledge of representations made by the Defendant while attempting to raise funds.

10. Aaron Rosen:

- a. Phone: (585) 330-4009
- b. Email: aaronrosendds@gmail.com
- c. Address: 1641 East Avenue, Rochester, NY 14610
- d. A DeepGulf shareholder, he has corresponded privately with the Defendant since the dispute started, and attempted to sell his shares to the Defendant. He has received ample information from the Defendant concerning the dispute, but did not respond specifically.

11. Thomas Johnson:

- a. Phone: (850) 712-9095
- b. Email: tj757@live.com
- c. Address: 3520 Hopestill Rd., Pensacola, FL 32503
- d. A DeepGulf shareholder, Mr. Johnson has knowledge of representations made to him by DeepGulf in the course of fundraising activities.

- e. A close friend of Rus Howard's, Mr. Johnson was installed by Rus Howard in the seat made vacant on the Board of Directors after Rus Howard caused ex-Director Bill Lott to leave.

12. Kathy Tanner:

- a. Phone: (850) 982-0755
- b. Email: funtanner@aol.com
- c. Address: 421 E. Zaragoza St., Pensacola FL 32502
- d. A DeepGulf, Inc. shareholder
- e. Ms. Tanner sustained the Defendant's basic survival needs for nearly two and a half years, from October 2014 until his forced departure from the U.S. in February 2017, by providing food and cash for basic provisions to the Defendant and checking on him almost daily, while DeepGulf, Inc. had abandoned him resourceless.
- f. Ms. Tanner and her husband have firsthand knowledge of the reality of the Defendant's situation at the time.

13. Thomas McMillan:

- a. Phone: (251) 867-5413
- b. Email: tmcmillan@longleafenergy.com

- c. Address: P. O. Box 809, Brewton, AL 36427
- d. Mr. McMillan is a former member of DeepGulf's Board of Directors
- e. At one point suggested to the Defendant an audit by a third party and expressed hope that the major stockowners could work through the dispute. Although he gave a proxy to Rus Howard for the appointment of Thomas Johnson to the Board of Directors, he expressed during the dispute that it was next to impossible for him to form an opinion.

II. Description of Documents

The documents which the Defendant may use to support his defenses have been made abundantly available to the Plaintiffs in the form of letters and emails to the shareholders. The Defendant will use in particular the complete correspondence between the Defendant and Rus Howard and his secretaries, which includes thousands of emails, with attachments, as well as Skype and text messages, and is by consequence already in the hands of the extant Plaintiffs' Chairman of the Board Rus Howard.

III. Computation of damages claimed by the Defendant

Damages relating to the Defendant's counterclaim are based (a) on the payment by the extant Plaintiff of the salaries due and still unpaid to the Defendant

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since April 2013; (b) on the reimbursement of the fees personally earned as a consultant by the Defendant but credited to the extant Plaintiff's accounts ; (c) on the reimbursement of the monies expended by the Defendant in the first years of the company in support thereof; (d) on the corresponding interest at the highest rate allowed by law; (e) on just compensation to be paid to the Defendant for the failure by the extant Plaintiff to renew the Defendant's U.S. visa for him to be allowed to remain on U.S. soil; (f) on just compensation to be paid to the Defendant for defamation of his character and false accusations of embezzlement; (g) on just compensation to be paid to the Defendant for the attempted malicious destruction of his career; (h) on just compensation to be paid to the Defendant for attempted intimidation, or attempted corruption, as demonstrated when the Plaintiff's Chairman of the Board involved in the dispute a State Representative who is running for Florida Attorney General; (i) on just compensation to be paid to the Defendant for the expenditure without authorization by the extant Plaintiff's Chairman of the Board Rus Howard of all the capital raised from investors; (j) on just compensation to be paid to the Defendant for the extant Plaintiff's Chairman of the Board Rus Howard's repeated and persistent attempts to destroy the company with the sole purpose of protecting himself from the ire of investors; (k) on just compensation to be paid to the Defendant for masquerading due unpaid salaries as personal loans; and (l) on just compensation to be paid to the Defendant for the

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subsequent unmeritorious and failed foreign lawsuit, all of the above amounting to seven million U.S. dollars (\$7,000,000).

IV. Applicable insurance agreements

Not applicable.

A handwritten signature in black ink, reading "M. Moszkowski". The signature is written in a cursive, flowing style.

Marc M. Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Phone: +1 (850) 316 8462
Le Verdos, 83300 Châteaudouble,
France

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have, on this Monday, 28th day of October, 2018, before 6:00 AM, emailed a copy of this document to the Attorney for the Plaintiffs, Braden K. Ball, Jr., one working day after I received his own Initial Disclosures.

M. Moszkowski

12/12



Braden Ball

From: m.moszkowski@deepgulf.net
Sent: Tuesday, October 30, 2018 8:04 AM
To: Braden Ball
Subject: RE: Initial Disclosures

Mr. Ball,

I read that you are asking me if I "*intend to provide the same required disclosures*" as those in your possession, which you forwarded to me by International Mail. It appears to me that the adjective "*same*" is incorrect and should be understood perhaps as "*equivalent*" which would not be applicable anyhow, since you summarily and wrongly described your disclosures in your title II, as "*Documents in Defendant's possession, custody, or control that it may use to support its claims*".

As you justly write, "*a party ... must provide to the other parties: a copy – or a description by category and location – of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses*".

Please read title II, "*Description of Documents*", of my Initial Disclosures, which, unlike your own, clearly describes such documents, by category and location. These documents are already in your hands. Also, please read my remark in the last paragraph of my introduction regarding amendments and the reserved right to supplement Initial Disclosures.

Furthermore, a number of critical documents which I will use to support my claims and defenses are still unavailable to me although they are in the hands of extant Plaintiff DeepGulf, Inc.'s Chairman of the Board Rus Howard, who has duplicitously declined to communicate said documents to me and to an ex-Director, despite repeated demands before this frivolous lawsuit was filed. Mr. Howard had informed me at the time that I could only see said documents in the offices of the company and could not take any copy thereof, which is quite surprising, since I am the President and largest shareholder, whereas he knew I was unable to travel to Pensacola, since it is his incompetence and/or negligence that forced me to live 5,000 miles away without a visa to reenter the country.

In case you were thinking of my forwarding to you paper copies of those thousands of documents which are already in your hands electronically, be informed that the task, in addition to being utterly redundant since you already have the documents, is technically impossible for me to discharge because of the state of near destitution to which the Plaintiffs' reckless actions have reduced me. If you prefer a paper copy, I trust you will print those thousands of documents already in possession of the extant Plaintiff.

Marc Moszkowski

From: Braden Ball [mailto:braden@lawpensacola.com]
Sent: Monday, October 29, 2018 2:31 PM
To: m.moszkowski@deepgulf.net
Subject: RE: Initial Disclosures

Mr. Moszkowski:

Thank you for the documents that you forwarded to me this morning. Pursuant to Rule 26(a)(1)(A) of the Federal Rules of Civil Procedure, "[e]xcept as exempted by Rule 26(a)(1)(B) or as otherwise stipulated or ordered by the court, a party must, without awaiting a discovery request, provide to the other parties:

(ii) a copy--or a description by category and location--of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses, unless the use would be solely for impeachment;"

We forwarded such disclosures by International Mail to you by copying the documents and I know that such delivery can take time. Do you intend to provide the same required disclosures? Thank you.

Braden K. Ball, Jr., Esquire

Litvak Beasley Wilson & Ball, LLP

226 East Government Street

Pensacola, Florida 32502

Office-850-432-9818

Facsimile-850-432-9830

Email-braden@lawpensacola.com

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From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>

Sent: Monday, October 29, 2018 5:28 AM

To: Braden Ball <braden@lawpensacola.com>

Subject: Initial Disclosures

Mr. Ball,

see attached my:

1. **"Defendant's Comments on Plaintiffs' Rule 26(a)(1) Initial Disclosures"**, which I intend to submit to the Court, and
2. **"Defendant Marc M. Moszkowski's Initial Disclosures Pursuant To Rule 26(A)(1)"**

Sent this Monday, October 29, 2018, before 6:00 AM, CDT

Marc Moszkowski

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UNITED STATES DISTRICT COURT

for the

Northern District of Florida

Pensacola Division

DEEPGULF, INC.

Case No. 3:18-cv-01466-MCR-MJF

TOKE OIL AND GAS, INC.

Plaintiffs

v.

MARC M. MOSZKOWSKI

Defendant

**DEFENDANT'S MOTION TO COMPEL PLAINTIFFS TO PRODUCE THE
DOCUMENTS HE REQUIRES TO SUPPORT HIS DEFENSES AND
COUNTERCLAIM**

The Defendant respectfully requests that the Court compel extant Plaintiff DeepGulf, Inc. to produce the documents the Defendant requested on November 28th, 2018, in his First Request for Production of Documents. These documents pertain to the company of which the Defendant is the

principal shareholder with 46.2% of the stock, the President, and one of the three Directors. The Defendant intends to use company documentation, in particular detailed accounting and bank books and records, to determine whether, as he was led to believe from the analysis of cash flows known to him, extant Plaintiff DeepGulf, Inc.'s Chairman of the Board Rustin Howard misused large amounts of company funds over the course of the last decade, including all the capital and the net cash flow returned to the company singlehandedly by the Defendant, and initiated this frivolous lawsuit in order to tentatively preempt legal action on the part of the Defendant and the Shareholders. To this day, Rustin Howard has denied all the Defendant's requests for said information since at least November 2016, almost 18 months before this lawsuit was filed.

The Plaintiffs have objected to the Defendant's requests for documents, commonly claiming that the requests were "*overbroad, irrelevant, and required production of confidential financial information*". The Defendant vigorously objects to the Plaintiffs determining the relevance of his requests, and to the notion that any information pertaining to a company of which he is the principal shareholder, the President, and one of the three Directors be kept from him as being confidential.

BACKGROUND

On November 28th, 2018, Marc Moszkowski, Defendant, Pro-Se, pursuant to Federal Rules of Civil Procedure, requested Plaintiffs DeepGulf, Inc. and Toke Oil and Gas S.A., if the latter still existed, to produce 64 documents he needed for his defenses and counterclaim.

After having obtained from the Court an extension of time to respond until January 11th, 2019, the Plaintiffs made their responses available to the Defendant by email on January 11th, 2019.

The Defendant's requests consisted in: (a) 38 requests for evidence behind the Plaintiffs' claims; (b) 10 requests for company documents; and (c) 16 requests for proof of compliance with rules and regulations, in total 64 requests.

However, of these 64 documents, the Plaintiffs provided in effect none at all in response, except a few attachments that proved irrelevant to the Defendant.

It appears to the Defendant that: (a) the Plaintiffs were not able to provide a single piece of credible evidence behind their claims and accusations; (b) were unwilling to produce the company documents which the Defendant

needs to support his defenses and counterclaim; and (c) were not able to produce proofs of compliance with company or legal rules such as the jurisdiction of this Court in a case involving a non-existing foreign company with business strictly overseas suing in a U.S. Court a foreign national who resides overseas.

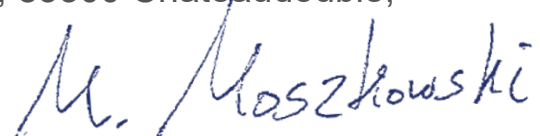
The Defendant has attached in Exhibit A his analysis of the Plaintiffs' responses, request by request. He apologizes for the length of this Motion, which however is within the Local Rule word limit, but he believes that the issues at hand require a thorough analysis of every detail.

CONCLUSION

For these reasons, the Defendant respectfully requests that the Court compel extant Plaintiff DeepGulf, Inc. to produce the documents he requested on November 28th, 2018, in his First Request for Production of Documents.

Respectfully submitted to the Court by

Marc M. Moszkowski, Pro Se
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Le Verdos, 83300 Châteaudouble,
France



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CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1 (B)

I certify that I personally attempted to communicate with the opposing party on January 14th, 2019, regarding the relief sought herein, but have received no acknowledgement of my email after 24 hours. It is the urgency of the matter which induces me to file this Motion soon after the expiration of the period.

M. Moszkowski

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1 (F)

I certify that this document contains 7,954 words including Exhibit A, but not including the case style, the signature block, and the certificates.

M. Moszkowski

CERTIFICATE OF SERVICE

I hereby certify that, on this Tuesday, 15th day of January, 2019, I have posted a copy of this document via the Court's E-filing system.

M. Moszkowski



**Defendant's Requests, Plaintiff's Responses, and Defendant's
Comments In Opposition to the Responses**

1. **Defendant's Request:** Affidavit establishing, if applicable, that DeepGulf, Inc. is not in possession of the correspondence between Rustin Howard and Marc Moszkowski since 2004 and that all or part of it has been lost by Plaintiff's Rustin Howard and/or his secretaries;

Plaintiffs' response: No such Affidavit in Plaintiff's custody, possession or control.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the response that the Plaintiff is indeed in possession of the correspondence between Rustin Howard and Marc Moszkowski since 2004 and that no part of it has been lost by Plaintiff's Rustin Howard and/or his secretaries, and therefore the Defendant does not understand the

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repeated demands made by the Plaintiffs for documents they now recognize they already had.

2. **Defendant's Request**: All accounting books and records for Plaintiff DeepGulf, Inc. since the founding of the company until this day;

Plaintiffs' response: Objection, overbroad, irrelevant, and request requires production of confidential financial information.

Defendant's comments in opposition to Plaintiff's

response: The Defendant is the largest shareholder in the company, He is the President and he is a Director. He therefore has the right to obtain all accounting books and records for the company, which certainly are not confidential as far as he is concerned, especially since he intends to determine whether the Plaintiff misused company funds. The Defendant does not believe that Plaintiffs have the right to declare said books and records irrelevant on behalf of the Defendant, since they are at the core of the issue.

3. **Defendant's Request**: All accounting records relative to Rustin Howard's expenditure of DeepGulf, Inc.'s monies;

Plaintiffs' response: Objection, overbroad and irrelevant.

Defendant's comments in opposition to Plaintiff's response: The Defendant is the largest shareholder in the company, He is the President and he is a Director. He therefore has the right to obtain all accounting records relative to Rustin Howard's expenditure of DeepGulf, Inc.'s monies, especially since he intends to determine whether the Plaintiff misused company funds. The Defendant does not believe that Plaintiffs have the right to declare said books and records irrelevant on behalf of the Defendant, since they are at the core of the issue.

4. **Defendant's Request**: Detailed report of all monies received by DeepGulf, Inc. from Toke Oil and Gas S.A. and other sources;

Plaintiffs' response: Objection, overbroad and irrelevant.

Defendant's comments in opposition to Plaintiff's

response: The Defendant is the largest shareholder in the company, He is the President and he is a Director. He believes he has the absolute right to obtain from the Plaintiff a detailed report of all monies received by DeepGulf, Inc. from Toke Oil and Gas S.A. and other sources, since he is grounding his defenses and counterclaim partly on such documents.

5. **Defendant's Request**: Detailed report of all monies paid to Rustin Howard, plus incidentals and benefits;

Plaintiffs' response: Objection, overbroad and irrelevant.

Defendant's comments in opposition to Plaintiff's

response: The Defendant is the largest shareholder in the company, He is the President and he is a Director. He has the absolute right to know which monies were paid to Rustin Howard, plus incidentals and benefits, since he is grounding his defenses and counterclaim partly on such information.

6. **Defendant's Request**: Detailed report of all monies paid to Rustin Howard's secretaries and assistants, plus incidentals and benefits;

Plaintiffs' response: Objection, overbroad and irrelevant.

Defendant's comments in opposition to Plaintiff's response: The Defendant is the largest shareholder in the company, He is the President and he is a Director. He has the absolute right to know which monies were paid to Rustin Howard's secretaries and assistants, plus incidentals and benefits, since he is grounding his defenses and counterclaim partly on such information.

7. **Defendant's Request**: Detailed report of all monies spent on office leases;

Plaintiffs' response: Objection, overbroad and irrelevant.

Defendant's comments in opposition to Plaintiff's response: The Defendant is the largest shareholder in the company, He is the President and he is a Director. He has the absolute right to know which monies were spent

on office leases by Rustin Howard, since he is grounding his defenses and counterclaim partly on such information.

8. **Defendant's Request:** Evidence, if any, of Marc Moszkowski's authorization for the payments relative to the three points above. Marc Moszkowski is the President, and as such he had the rights powers and authorities reserved for the CEO as per Section 9 of Article VII of company Bylaws, since Marc Moszkowski understands now that according to Mr. Rustin Howard no CEO was designated by the board;

Plaintiffs' response: Objection, overbroad and irrelevant; however, Plaintiffs have no such documents.

Defendant's comments in opposition to Plaintiff's response: The Defendant understands from the Plaintiff's response that they acknowledge that the Defendant, as the President and Chief Executive Officer of the company, never authorized the payments relative to the three points above.

9. **Defendant's Request**: Evidence, if any, that Rustin Howard had been authorized by the Board of Directors to act as de-facto Chief Financial Officer;

Plaintiffs' response: Objection, overbroad and irrelevant; however, no such documents exist.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the response that the Plaintiff acknowledges that Rustin Howard had never been authorized by the Board of Directors to act as de-facto Chief Financial Officer, a position he however occupies since 2005.

10. **Defendant's Request**: Evidence, if any, that Marc Moszkowski, as the President and (Chief) Executive Officer of DeepGulf, Inc. had access to the company's bank accounts;

Plaintiffs' response: Objection, overbroad and irrelevant; however, no such documents exist.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the response that the Plaintiff acknowledges the Defendant never had access to any of the company's bank accounts.

11. **Defendant's Request:** Evidence, if any, of any and all banking operations done by Marc Moszkowski on or from DeepGulf, Inc.'s bank accounts;

Plaintiffs' response: Objection, overbroad and irrelevant; however, no such documents exist.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the response that the Plaintiff acknowledges the Defendant never conducted any banking operation on or from DeepGulf, Inc.'s bank accounts.

12. **Defendant's Request:** Evidence, if any, that Rustin Howard actually disbursed to the benefit of DeepGulf, Inc. the amount of \$5,000 which was to be his only founding contribution to the company;

Plaintiffs' response: Objection, relevancy and to the phrase “which was to be his only founding contribution to the company”. Plaintiff does not have such documents.

Defendant's comments in opposition to Plaintiff's response: The Defendant reiterates his demand for evidence that Rustin Howard did pay the amount of \$5,000 to the company, as his initial and only cash contribution.

13. **Defendant's Request:** Evidence, if any, that Marc Moszkowski did not spend his personal funds to support the development of DeepGulf, Inc. between 2005 and 2008;

Plaintiffs' response: Objection cannot prove a negative.

Defendant's comments in opposition to Plaintiff's response: The Defendant understands from the response that Plaintiffs cannot prove that the Defendant did not spend his personal funds to support the development of the company between 2005 and 2008.

14. **Defendant's Request:** Affidavit that Marc Moszkowski was not the CEO, as claimed by Rustin Howard despite his verbal statements to the contrary;

Plaintiffs' response: No such Affidavit in Plaintiff's custody, possession or control.

Defendant's comments in opposition to Plaintiff's response: The Defendant understands from the response that, contrary to Rustin Howard's assertions, the Defendant was indeed the CEO of the company until the end of 2017, when he was suspended as such by the Board of Directors.

15. **Defendant's Request:** Affidavit regarding who is the Vice President, according to Article VII of company by-laws;

Plaintiffs' response: No such Affidavit in Plaintiff's custody, possession or control.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the response that the Plaintiffs are not able to state who the Vice President is, according to Article VII of company by-laws.

16. **Defendant's Request:** Affidavit regarding who was and is the CEO, according to Article VII of company by-laws;

Plaintiffs' response: No such Affidavit in Plaintiff's custody, possession or control.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the response that the Plaintiffs are unwilling to state who was and is the CEO of the company, according to Article VII of company by-laws.

17. **Defendant's Request:** Affidavit regarding the validity of the title given lately to Marc Moszkowski by Rustin Howard at the end of 2017

("President and the Executive Officer"). A search on Google could not confirm the existence of such a title in the United States;

Plaintiffs' response: No such Affidavit in Plaintiff's custody, possession or control.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the response that the Plaintiffs are unwilling to support the claim made in 2017 by Rustin Howard.

18. **Defendant's Request:** Affidavit regarding why Article VII, Section 9, of DeepGulf, Inc. By-laws should not apply to Marc Moszkowski. See Article VII, Section 9, *The President: "The President shall have the rights powers and authorities as designated by the Board. If no CEO is designated by the board the President shall have all the rights powers and authorities reserved for the CEO unless otherwise authorized by the board."*;

Plaintiffs' response: No such Affidavit in Plaintiff's custody, possession or control.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the response that the Plaintiffs are unwilling to clarify the point regarding the rights, power, and authorities of the President. The Defendant is the company's President.

19. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski stole intellectual property from the company, since Marc Moszkowski is the author of said intellectual property and currently works for the company, albeit without a salary since 2013, and is a Director, and the President;

Plaintiffs' response: See attached (RFP 19).

Defendant's comments in opposition to Plaintiff's

response: The Plaintiffs bring no evidence whatsoever that the Defendant stole intellectual property from the company, which would have been quite impossible, since he is the author of said intellectual property and therefore could not technically steal it, and he currently works for the company, albeit without a salary since 2013, and is a

Director, and the President. Attachment RFP 19 reproduces a number of documents which were already mentioned elsewhere, in particular an email written by Thomas Johnson to the shareholders on January 3rd, 2018, to which the Defendant had replied elaborately the very next day to refute Mr. Johnson's uneducated and false statements and fabrications. The Defendant's reply was emailed at 10:53 CST on January 4th, 2018 to all shareholders for whom the Plaintiff had not withheld email addresses, and is therefore among the emails that the Plaintiffs acknowledged having in their possession. The Defendant infers that the Plaintiff has no evidence regarding Request 19.

20. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that the salary received by Marc Moszkowski from third party Toke Oil and Gas S.A. was stolen from DeepGulf, Inc.;

Plaintiffs' response: Objection to the extent work product is being requested; however, see attached (RFP 20).

Defendant's comments in opposition to Plaintiff's

response: The document provided in RFP 20 is irrelevant since it cannot refer to the salaries received by the Defendant more than 5 years before this lawsuit was filed, said salary having been clearly reported and acknowledged by the Plaintiff more than 5 years before this lawsuit was filed. Contrary to the recent Plaintiffs assertions, the extant Plaintiff was perfectly aware of the position of the Defendant within the now defunct foreign company which is one of the Plaintiffs, and could not have ignored it, considering that more than 18,000 messages were exchanged between the Defendant and the Plaintiff over the course of the last decade. The Defendant infers that the Plaintiff has no evidence regarding Request 20.

21. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that the salaries received by the other two founders and Directors of Toke Oil and Gas S.A. from third party Toke Oil and Gas S.A. were stolen by Marc Moszkowski from DeepGulf, Inc.;

Plaintiffs' response: Objection to the extent work product is being required.

Defendant's comments in opposition to Plaintiff's

response: The Defendant is not a professional of the Law, but he reads in the dictionary that the definition of "work product" is: *"the set of materials (as notes), mental impressions, conclusions, opinions, or legal theories developed by or for an attorney in anticipation of litigation or for trial."* He does not understand in which way the phrase applies in this instance. The fact of the matter is that the Plaintiffs have falsely and absurdly accused the Defendant of having stolen from DeepGulf, Inc. the monies that were paid to the other two founders and Directors of Toke Oil and Gas S.A. by Toke Oil and Gas S.A. before it became a subsidiary of DeepGulf, Inc. The Defendant understands from the response that the Plaintiff is not able to produce evidence about the accusation.

22. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that the salaries received by the other two founders and Directors of Toke Oil and Gas S.A. from third party Toke Oil and Gas S.A. were actually paid to Marc Moszkowski;

Plaintiffs' response: None.

Defendant's comments in opposition to Plaintiff's response: The Defendant understands from the response that Plaintiff is unable to produce evidence that the Defendant received the monies which he is accused of having stolen.

23. **Defendant's Request:** Evidence, if any, as to the whereabouts of the monies DeepGulf, Inc. is accusing Marc Moszkowski of having stolen;

Plaintiffs' response: None.

Defendant's comments in opposition to Plaintiff's response: The Defendant understands from the response that Plaintiff is unable to produce evidence

about the whereabouts of the monies which the Plaintiff has accused the Defendant of having stolen.

24. **Defendant's Request:** Evidence, if any, as to the manner in which Marc Moszkowski spent the monies DeepGulf, Inc. is accusing Marc Moszkowski of having stolen;

Plaintiffs' response: None.

Defendant's comments in opposition to Plaintiff's response: The Defendant understands from the response that Plaintiff is unable to produce evidence about the manner in which the monies which the Plaintiff has accused the Defendant of having stolen were spent.

25. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that the salaries paid by Toke Oil and Gas S.A. to its Directors and Officers should not have been paid to said Directors and Officers;

Plaintiffs' response: See attached (RFP 25).

Defendant's comments in opposition to Plaintiff's

response: The document provided in RFP 25 is irrelevant and has no bearing whatsoever on the salaries paid by third party company Toke Oil and Gas S.A. to its Directors and Officers. The Plaintiffs have failed to establish a credible link between the document they produce as RFP 25 and the Defendant's Request 25. The Defendant infers that the Plaintiff has no evidence regarding Request 25.

26. **Defendant's Request**: Evidence, if any, contracts, and documentation, to support DeepGulf, Inc.'s claim that the salaries paid by Toke Oil and Gas S.A. to its Directors and Officers should have been paid instead to DeepGulf, Inc.;

Plaintiffs' response: See attached (RFP 26).

Defendant's comments in opposition to Plaintiff's

response: The document provided in RFP 25 is irrelevant and has no bearing whatsoever on the salaries paid by third party company Toke Oil and Gas S.A. to its Directors and Officers. The Plaintiffs have failed to establish a

credible link between the document they produce as RFP 26 and the Defendant's Request 26. The Defendant infers that the Plaintiff has no evidence regarding Request 26.

27. **Defendant's Request:** Evidence, if any, to support Rustin Howard's claim that it was illegal for Director Bill Lott to communicate with Marc Moszkowski or to try to conciliate the dispute between Marc Moszkowski and Rustin Howard;

Plaintiffs' response: None. Objection to the phrase, "Rustin Howard's claim that it was illegal for Director Bill Lott to communicate with Marc Moszkowski or to try to conciliate the dispute between Marc Moszkowski and Rustin Howard".

Defendant's comments in opposition to Plaintiff's response: The Defendant notes that the Plaintiff is unable to bring evidence in support of his claim that it was illegal for Director Bill Lott to communicate with Marc Moszkowski or to try to conciliate the dispute between Marc Moszkowski and Rustin Howard.

28. **Defendant's Request:** Evidence, if any, in support of the legality of the process by which Rustin Howard obtained from some shareholders proxies to change the composition of the Board of Directors to his own advantage and to sue Marc Moszkowski, who did not have access to all the shareholders;

Plaintiffs' response: Objection, work product and irrelevant; however, see attached (RFP 28).

Defendant's comments in opposition to Plaintiff's

response: Parts of the attached RFP 28 are illegible.

However, the Defendant sees no link whatsoever between his Request 28 and the document attached by the Plaintiffs as a response, although he reads in the document an email sent by the Plaintiffs announcing a Board of Directors meeting in which he was not party to nor voted, and he could not have, since the email the Plaintiffs sent him before the meeting (a) was sent only two days before the meeting; (b) did not specify the actual nature of the meeting regarding this lawsuit; (c) gave a time for the meeting which was very late at night and

impractical for the Defendant (11 PM); and (d) did not provide free of charge Skype as the means of communication as had been the case for a decade in the company, but required the Defendant to place a long distance phone call either to the U.S. or the U.K. The Defendant had informed the Plaintiffs of his request regarding teleconferencing in writing. The Defendant infers that the Plaintiff has no evidence regarding Request 28.

29. **Defendant's Request:** Evidence, if any, to support Rustin Howard's claim that it was illegal for Marc Moszkowski to write to some of the shareholders in order to keep them informed of Rustin Howard's deeds and accusations;

Plaintiffs' response: Objection, work product and to language "Rustin Howard's claim that it was illegal for Marc Moszkowski to write to some of the shareholders in order to keep them informed of Rustin Howard's deeds and accusations; however, see attached (RFP 29).

Defendant's comments in opposition to Plaintiff's

response: The Defendant finds the attached RFP 29 to be outrageously irrelevant and not to respond to the Request appropriately. The Defendant was writing to the Shareholders about his personal dispute with Rustin Howard (which Mr. Howard has attempted mendaciously to disguise as a dispute with DeepGulf, Inc., which it was not), after Mr. Howard had accused the future Defendant in writing of being a thief, an unsupported accusation which rendered all further direct conversation impossible. The personal injunction expressed by Rustin Howard in his email of December 22nd, 2017, is not sufficient to establish the illegality of a direct communication between the Defendant and the Shareholders, and the assertion that any communication regarding a personal dispute between the Defendant and Rustin Howard and his friend Thomas Johnson, whom he installed in the seat of the third Director, should be vetted by the very two Directors with whom the dispute existed is just plainly

presumptuous. The Defendant infers that the Plaintiff has no evidence regarding Request 29.

30. **Defendant's Request:** Evidence, if any, that Rustin Howard was entitled to withhold nearly half the shareholders' contact addresses from Marc Moszkowski, and to consistently ignore Marc Moszkowski's demands for said contact addresses;

Plaintiffs' response: Objection to phrase, "Rustin Howard was entitled to withhold nearly half the shareholders' contact addresses from Marc Moszkowski, and to consistently ignore Marc Moszkowski's demands for said contact addresses"; however, see attached (RFP 30).

Defendant's comments in opposition to Plaintiff's response: Parts of attachment RFP 30 are illegible. However, the Defendant finds no connection whatsoever between the attachment and his request. None of the missing addresses appear in attachment RFP 30. The Defendant infers that the Plaintiff has no evidence regarding Request 30.

31. **Defendant's Request:** Statement as to the identity of the persons who retained the Attorney for the Plaintiffs;

Plaintiffs' response: None.

Defendant's comments in opposition to Plaintiff's

response: The Defendant being the largest shareholder of the Plaintiff company, its President, and one of its three Directors is entitled to know the manner in which the company's money is expended, in particular on this lawsuit against him. He notes that the Plaintiff refuses to provide information about the individuals who decided to engage the company in this lawsuit.

32. **Defendant's Request:** As the principal owner of the company, its President, and one of its three Directors, the Defendant hereby demands to be provided with a copy of the agreement between DeepGulf, Inc. and Toke Oil and Gas S.A. and the attorney for the DeepGulf, Inc., including about pecuniary arrangements;

Plaintiffs' response: Objection, irrelevant.

Defendant's comments in opposition to Plaintiff's

response: The Defendant being the largest shareholder of the Plaintiff company, its President, and one of its three Directors is entitled to know the manner in which the company's money is expended, in particular on this lawsuit against him. He notes that the Plaintiff refuses to provide information about the arrangement between the company and the attorney. The subject is far from being irrelevant, and is at the core of the Defendant's defense and counterclaim.

33. **Defendant's Request**: Explanations as to why DeepGulf, Inc. has still not provided representation to its President and Director Marc Moszkowski despite Article XI of company's bylaws;

Plaintiffs' response: None.

Defendant's comments in opposition to Plaintiff's

response: Article XI of company bylaws stipulates that the company owes legal defense and representation to

the Defendant, who understands from the response that Plaintiffs are unwilling to abide by their own company regulation.

34. **Defendant's Request:** Evidence, if any, that there is no conflict of interest whatsoever for DeepGulf, Inc.'s Attorney, whose client's principals are DeepGulf, Inc.'s Directors, including the Defendant Director. Such conflict of interest is incompatible with an impartial and just resolution of this case;

Plaintiffs' response: None.

Defendant's comments in opposition to Plaintiff's response: The Defendant reiterates that there is an obvious conflict of interest for the Plaintiffs' Attorney to partly represent the very Defendant he is suing. The Defendant notes that Plaintiff has no evidence that there is no conflict of interest.

35. **Defendant's Request:** Evidence, if any, that the Defendant is and will be held harmless by DeepGulf, Inc. with regard to the current legal representation and other legal costs for DeepGulf, Inc.;

Plaintiffs' response: None.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the response that the Plaintiff is not prepared to hold him harmless with regard to legal costs, and that he is in the paradoxical position of being exposed to pay for the Plaintiffs' legal costs even if they are unsuccessful in this lawsuit. The Defendant is Plaintiff company's largest shareholder.

36. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that DeepGulf did not owe Marc Moszkowski a salary despite the terms of his visa which stipulated said salary explicitly;

Plaintiffs' response: See attached (RFP 36).

Defendant's comments in opposition to Plaintiff's

response: The Defendant finds no relevance with his request in the document attached by the Plaintiff as his response. Nothing in that document addresses the issue that as a condition to his H1B visa the Defendant was to receive a salary and that the company must have either paid him a salary or reported to the immigration authorities the discontinuance of said salary. The Defendant infers that the Plaintiff has no evidence regarding Request 36.

37. **Defendant's Request**: Evidence, if any, that the Court has jurisdiction over Plaintiff Toke Oil and Gas S.A.'s complaint. Plaintiff Toke Oil and Gas S.A., whose identity has finally been confirmed by the Plaintiffs as that of a foreign corporation (although its address is described in the summons as being the private domicile of Plaintiff DeepGulf, Inc.'s Chairman of the Board in Pensacola, Florida), is extinct as far as the Defendant is aware, operated exclusively in a foreign country, but is suing the Defendant, who is a foreign national residing in a foreign country, in a United States Court;

Plaintiffs' response: Objection, irrelevant and work product.

Defendant's comments in opposition to Plaintiff's

response: The Defendant believes that the matter of the Court's jurisdiction is anything but irrelevant, and he does not see how the issue could be work product. The matter of the jurisdiction of the Court needs to be urgently addressed in the case of non-existing Plaintiff Toke Oil and Gas S.A., a foreign entity with business strictly out of the United States, which is suing in U.S. Court a foreign national who resides overseas.

38. **Defendant's Request:** Evidence, if any, establishing that Marc Moszkowski should have requested permission from DeepGulf, Inc.'s Board of Directors before accepting compensation from Toke Oil and Gas S.A., or that he should have requested permission from Toke Oil and Gas S.A.'s Board of Directors before accepting compensation from DeepGulf, Inc.;

Plaintiffs' response: See attached (RFP 38).

Defendant's comments in opposition to Plaintiff's

response: The Defendant sees no relevance in the document attached by the Plaintiffs as RFP 38 in response to his precisely worded request. The Defendant infers that the Plaintiff has no evidence regarding Request 38.

39. **Defendant's Request:** Affidavit regarding which decision the Board of Directors would have reached if permission had been requested for compensation to be paid to Marc Moszkowski by Toke Oil and Gas S.A.;

Plaintiffs' response: No such Affidavit in Plaintiffs custody, possession or control.

Defendant's comments in opposition to Plaintiff's

response: The Defendant believes that the Board of Directors would evidently have granted permission.

40. **Defendant's Request:** Evidence, if any, establishing that Rustin Howard was granted permission from DeepGulf, Inc.'s Board of Directors before accepting compensation from DeepGulf, Inc.;

Plaintiffs' response: Objection, irrelevant.

Defendant's comments in opposition to Plaintiff's

response: The Defendant believes that the Board of Directors did not grant permission for a salary to be paid to Rustin Howard, who was a relatively idle employee. The issue is not irrelevant, but on the contrary at the core of the Defendant's defenses and counterclaim.

41. **Defendant's Request:** Affidavit regarding which decision the Board of Directors would have reached if permission had been requested for compensation to be paid to Rustin Howard by DeepGulf, Inc.;

Plaintiffs' response: Objection, not required.

Defendant's comments in opposition to Plaintiff's

response: The Defendant believes that the Board of

Directors would not have granted permission at the levels of salary paid to Rustin Howard, who was a relatively idle employee. The issue is not irrelevant, but on the contrary at the core of the Defendant's defenses and counterclaim. The Defendant understands the response as an acknowledgement that the permission in Request 40 was never granted.

42. **Defendant's Request:** Evidence, if any, of the minutes of meeting of the full Board of Directors, including Director Marc Moszkowski, which resulted in this lawsuit;

Plaintiffs' response: See attached (RFP 42).

Defendant's comments in opposition to Plaintiff's response: The document attached as RFP 42 is the first information the Defendant has ever received regarding the Board of Directors meeting in which the decision was made to sue him. The Defendant strongly objects to the Board of Directors never having sent him said minutes of meeting until this day. The statements made in the

minutes of meeting regarding the Defendant's actions are either mendacious or grossly misrepresenting. Although a "*Committee to Investigate*" is mentioned, no information is given as to the individuals present in said committee.

43. **Defendant's Request:** Evidence, if any, that Marc Moszkowski was requested to assist in due time with sufficient notice and during working hours to said Board of Directors meeting in the usual manner in which communication had been established within the company since at least 2005;

Plaintiffs' response: Objection, too vague and ambiguous to respond to; however, Notices are attached (RFP 43).

Defendant's comments in opposition to Plaintiff's response: The email the Plaintiffs sent the Defendant before the meeting (a) was sent only two days before the meeting; (b) did not specify the nature of the meeting regarding this lawsuit; (c) gave a time for the meeting that was very late at night and impractical for the Defendant (11 PM); and (d) did not provide free of charge Skype as

the means of communication as had been the case for a decade in the company, but required the Defendant to place a long distance phone call either to the U.S. or the U.K. The Defendant had informed the Plaintiffs of his request regarding teleconferencing in writing. The Defendant infers that the Plaintiff has no evidence regarding Request 43.

44. **Defendant's Request:** Evidence, if any, that Marc Moszkowski was party to and voted in the Board of Directors meeting during which the decision was made to bring suit against him;

Plaintiffs' response: None.

Defendant's comments in opposition to Plaintiff's response: The Defendant was not party to nor voted in the Board of Directors meeting during which the decision was made to bring suit against him, and he could not have, since the email the Plaintiffs sent him before the meeting (a) was sent only two days before the meeting; (b) did not specify the nature of the meeting regarding this

lawsuit; (c) gave a time for the meeting that was very late at night and impractical for the Defendant (11 PM); and (d) did not provide free of charge Skype as the means of communication as had been the case for a decade in the company, but required the Defendant to place a long distance phone call either to the U.S. or the U.K. The Defendant had informed the Plaintiffs of his request regarding teleconferencing in writing.

45. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski was ever contracted by Toke Oil and Gas S.A. for consulting activities;

Plaintiffs' response: None.

Defendant's comments in opposition to Plaintiff's response: The Defendant understands that despite their claim that he had been contracted by Toke Oil and Gas S.A. for consulting activities, the Plaintiffs are not able to provided evidence to support their claim.

46. **Defendant's Request:** Evidence, if any, that Marc Moszkowski should not have received a salary from Toke Oil and Gas S.A. while he was Toke's President Director General, Project Manager, support boat operator, survey ship pilot, cartographer, data analyst, senior scientist, senior engineer, website administrator, communication director, ship salvage manager, contract negotiator, head of the legal department, logistics manager, etc., several of the above activities occurring offshore;

Plaintiffs' response: See attached (RFP 46).

Defendant's comments in opposition to Plaintiff's

response: The Defendant asserts that the attachment provided by the Plaintiffs as a response to his request does not address the Defendant's very detailed request. The Plaintiffs were perfectly aware that the Defendant held all the positions he described in his request, and could not have ignored it, as the more than 18,000 emails and Skype messages exchanged between the Defendant and the Plaintiff plainly suggest. If there had been a discrepancy between said positions and the attachment,

the Plaintiff should and must have addressed it on time, instead of waiting almost a decade to find issue with the positions after the personal dispute between the Defendant and Chairman of the Board Rustin Howard had started. The Defendant infers that the Plaintiff has no evidence regarding Request 46.

47. **Defendant's Request:** Evidence, if any, that Rustin Howard never received Toke Oil and Gas S.A. financial documents and reports more than 5 years before this lawsuit was filed, and that he did not acknowledge receiving them;

Plaintiffs' response: Objection, cannot prove a negative.

Defendant's comments in opposition to Plaintiff's response: The Defendant is grounding his defense that the Statute of Limitations clearly applies on the fact that he informed the extant Plaintiff more than 5 years before this lawsuit was filed of events that had occurred more than 5 years before this lawsuit was filed precisely about these events. The Defendant understands from the

Plaintiff's response that Plaintiff is unable to bring evidence that he did not receive said information more than 5 years before he filed suit and he did not acknowledge having received said information. The Statute of Limitations can therefore not be questioned.

48. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski did not disclose the salaries paid by Toke Oil and Gas S.A. to its Directors more than 5 years before this lawsuit was filed;

Plaintiffs' response: Objection, cannot prove a negative.

Defendant's comments in opposition to Plaintiff's response: The Defendant is grounding his defense that the Statute of Limitations clearly applies on the fact that he informed the extant Plaintiff more than 5 years before this lawsuit was filed of events that had occurred more than 5 years before this lawsuit was filed precisely about these events. The Defendant understands from the Plaintiff's response that Plaintiff is unable to bring

evidence that he did not receive said information more than 5 years before he filed suit and he did not acknowledge having received said information. The Statute of Limitations can therefore not be questioned.

49. **Defendant's Request:** Evidence, if any, existing in the agreements relative to the transfer of stock between Toke Oil and Gas S.A. and DeepGulf, Inc., regarding the availability and production of existing and past company information, reports and records to DeepGulf, Inc.;

Plaintiffs' response: Objection, irrelevant, vague and ambiguous.

Defendant's comments in opposition to Plaintiff's response: The Defendant hereby asserts that the issue is at the core of the lawsuit and is anything but irrelevant, vague or ambiguous. It is on the contrary absolutely relevant, to the point, and unambiguous. The Defendant understands from the response that the Plaintiff is unable to provide any evidence regarding the availability and

production of existing and past Toke Oil and Gas S.A.
information, reports and records to DeepGulf, Inc.

50. **Defendant's Request:** Copies of all correspondence between DeepGulf, Inc., or its Directors, and Mr. Frank White, a Florida State Representative running at the time for the office of Florida Attorney General who had no authorized business with DeepGulf, Inc.;

Plaintiffs' response: Objection, irrelevant.

Defendant's comments in opposition to Plaintiff's response: The matter is anything but irrelevant, since Mr. Frank White was copied of emails sent by Rustin Howard to the Defendant in the course of the dispute. As the principal shareholder, the President, and one of the three Directors, the Defendant is entitled to the information he requested in Request 50.

51. **Defendant's Request:** Evidence, if any, that Mr. Frank White had authorized business with DeepGulf, Inc.,

Plaintiffs' response: Objection, irrelevant.

Defendant's comments in opposition to Plaintiff's

response: The matter is anything but irrelevant, since Mr. Frank White was copied of emails sent by Rustin Howard to the Defendant in the course of the dispute. As the principal shareholder, the President, and one of the three Directors, the Defendant is entitled to the information he requested in Request 51.

52. **Defendant's Request**: Copy of all correspondence regarding DeepGulf, Inc.'s business or activities, which has not been copied to Marc Moszkowski, who was and is the company's President and one of its three Directors;

Plaintiffs' response: Objection, overbroad and irrelevant.

Defendant's comments in opposition to Plaintiff's

response: The matter is anything but irrelevant, since the Defendant, who is the principal shareholder, the President, and one of the three Directors, is entitled to know all of the company's activities.

53. **Defendant's Request:** Evidence, if any, that Plaintiff DeepGulf, Inc. had no obligation or duty to provide a visa for Marc Moszkowski, whereas five visa applications had been made, all by Rustin Howard, four of which visas having been picked up in Paris, Jakarta, Hong Kong, and Paris again;

Plaintiffs' response: Objection, work product regarding obligations or duty.

Defendant's comments in opposition to Plaintiff's response: The Defendant does not understand the relevance of the phrase "*work product*" regarding obligations and duty. Besides, irrespective of whether it is or not a duty for the company to obtain visas for its employees, which it clearly is, as all the visas the company petitioned for the Defendant clearly show, the issue for the Defendant is that the Plaintiffs cannot accuse him of having "*absconded*" since he was forced to leave the country because the company had not provided a visa for him to stay.

54. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that all of Marc Moszkowski's private revenue had to be paid to DeepGulf, Inc., especially as a foreign citizen working in a foreign country for a foreign employer, while DeepGulf, Inc. did not pay him a salary;

Plaintiffs' response: See attached (RFP 54)

Defendant's comments in opposition to Plaintiff's response: The Defendant finds that the document in attachment RFP 54 is wholly irrelevant and does not respond to his request, which was about his receiving no salary while he returned substantial revenue to the Plaintiff. The Defendant infers that the Plaintiff has no evidence regarding Request 54.

55. **Defendant's Request:** Evidence, if any, that it was ethical and legal for Rustin Howard to connive with his friend and business associate Dave Rumsey, with the design to substitute a private loan

from a third party at an usurious interest rate for a duly owed company salary;

Plaintiffs' response: Objection as assuming facts not in evidence and work product; however, none.

Defendant's comments in opposition to Plaintiff's

response: The events are not assumed, but factual, a fact that has been clearly shown by the Defendant in the course of his defenses. The Defendant understands from the Plaintiff's response that the Plaintiff acknowledges it was neither ethical nor legal for Rustin Howard to connive with a friend of his with the design of substituting a private loan from a third party at a usurious interest rate for a duly owed company salary.

56. **Defendant's Request:** Evidence, if any, that it was ethical and legal for Rustin Howard to connive with Dave Rumsey to sue Marc Moszkowski in French Court for the reimbursement of a loan in substitution of a duly owed salary, said loan never having been paid by Dave Rumsey to Marc Moszkowski;

Plaintiffs' response: Objection as assuming facts not in evidence and work product; however, none.

Defendant's comments in opposition to Plaintiff's

response: The Defendant understands from the Plaintiff's response that the Plaintiff acknowledges it was neither ethical nor legal for Rustin Howard to connive with a friend of his with the design of suing him in French Court for the reimbursement of a loan in substitution of a duly owed salary, said loan never having been paid by Dave Rumsey to the Defendant.

57. **Defendant's Request:** Evidence, if any, to support the fact that while Marc Moszkowski was employed in Singapore and West Africa by a third party company, part of the time offshore, and while he had ascribed to DeepGulf, Inc. all the \$100,000 revenue from his clients, he should not have received any salary whatsoever from DeepGulf, Inc. for discharging the duties that were demanded from him by his clients;

Plaintiffs' response: See attached (RFP 57).

Defendant's comments in opposition to Plaintiff's response: The document supplied by the Plaintiff as RFP 57 states a partial revenue of only \$18,750, whereas the actual total invoicing was \$100,000. The request remains unanswered by the Plaintiff, who produced a document that is wholly irrelevant and incomplete and therefore misrepresenting. The Defendant infers that the Plaintiff has no evidence regarding Request 57.

58. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski "*absconded*" and stole intellectual property, since he left the country only because the company did not provide him with the required visa to stay, and he is still the company's President and one of its three Directors;

Plaintiffs' response: See attached (RFP 58)

Defendant's comments in opposition to Plaintiff's response: The document supplied as RFP 58 is wholly irrelevant and does not respond at all to the Defendant's

legitimate request. The Defendant infers that the Plaintiff has no evidence regarding Request 58.

59. **Defendant's Request:** Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski is using any of company's intellectual property for his personal gain;

Plaintiffs' response: See attached (RFP 59).

Defendant's comments in opposition to Plaintiff's response: The Defendant finds that nothing in the document attached by the Plaintiffs as RFP 59 responds to his request, and rather states quite the opposite. The Defendant infers that the Plaintiff has no evidence regarding Request 59.

60. **Defendant's Request:** Evidence, if any, of the continued and uninterrupted existence of Toke Oil and Gas S.A. since 2008, as delivered by the relevant East Timorese governmental authority;

Plaintiffs' response: Objection, irrelevant; however, none.

Defendant's comments in opposition to Plaintiff's

response: The issue is anything but irrelevant and is on the contrary at the core of the lawsuit, since Plaintiff Toke Oil and Gas S.A. is unable to prove its legal existence. The Defendant takes note that the Plaintiff cannot produce evidence that Toke Oil and Gas S.A. does exist legally.

61. **Defendant's Request**: Evidence, if any, that Toke Oil and Gas S.A. is a full subsidiary of DeepGulf, Inc. ;

Plaintiffs' response: See attached (RFP 61).

Defendant's comments in opposition to Plaintiff's

response: The document attached by the Plaintiff as RFP 61 is singularly irrelevant, since it provides no evidence whatsoever that the agreed price for the last 1/3 of Toke Oil and Gas S.A. had been fully paid by DeepGulf, Inc., to its previous owner and Director. The Defendant infers that the Plaintiff has no evidence regarding Request 61.

62. **Defendant's Request:** If company Toke Oil and Gas S.A. still exists in East Timor as a continued and uninterrupted corporation since 2008, evidence, if any, of a certification of the composition of the Board of Directors, as delivered by the relevant East Timorese governmental authority;

Plaintiffs' response: Objection, irrelevant.

Defendant's comments in opposition to Plaintiff's response: The issue is anything but irrelevant and is on the contrary at the core of the lawsuit, since Plaintiff Toke Oil and Gas S.A. is unable to prove not only its legal existence but also the composition of its Board of Directors if it still existed. The Defendant takes note that Plaintiff cannot produce any evidence that Toke Oil and Gas S.A. does exist legally and has a legitimate Board of Directors.

63. **Defendant's Request:** Evidence, if any, that DeepGulf, Inc. completed the acquisition of Toke Oil and Gas S.A., and that the full

payment was paid by DeepGulf, Inc. to Vicente Ximenes for the transfer of his shares to DeepGulf, Inc.;

Plaintiffs' response: None in DeepGulf Inc.'s possession; however, upon information and belief, Defendant has such evidence.

Defendant's comments in opposition to Plaintiff's response: The information the Defendant has and which he has stated repeatedly in his defenses, is that the full payment to Vicente Ximenes was never made. The Defendant asserts that the Plaintiff would be able to provide proof of the payment of amounts which were quite substantial, if said payments had actually occurred. The Defendant infers from the Plaintiff's response that the Plaintiff has no evidence that DeepGulf, Inc. completed the acquisition of Toke oil and Gas S.A.

64. **Defendant's Request:** Evidence of the origin of the funds that supported the company's activities between mid-2005 and early 2008, if not from Marc Moszkowski, during the period when Rustin Howard

did not raise capital and Marc Moszkowski received no salary, although the company operated, with commercial promotion paid for and daily work done by Marc Moszkowski, who had to support himself and the company and pay for all travel expenses.

Plaintiffs' response: Objection, irrelevant, vague and ambiguous.

Defendant's comments in opposition to Plaintiff's response: Again, the request is anything but irrelevant and on the contrary is quite at the core of the issue. It is also neither vague nor ambiguous, but quite to the point and detailed. The Defendant understands from the response that the Plaintiffs are not able to provide evidence that the Defendant did not support the company out of his own pocket between 2005 and 2008.

**UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC., and TOKE OIL AND
GAS, S.A.,

Plaintiffs,

v.

Case No. 3:18-cv-1466-MCR/MJF

MARC M. MOSZKOWSKI,

Defendant.

_____ /

ORDER

This cause is before this Court on Plaintiffs’ motion to compel the Defendant to: (1) appear in the Northern District of Florida for a deposition; and (2) appear in the Northern District of Florida for mediation. (Doc. 31).¹ For the reasons set forth below, this motion will be denied without prejudice.

I. Background

On April 3, 2018, Plaintiffs initiated this action in the Circuit Court of Escambia County, Florida. (Doc. 1). On June 4, 2018, Defendant filed a “Notice of Removal,” pursuant to 28 U.S.C. § 1441(b). (*Id.*). Plaintiff DeepGulf, Inc. (“DeepGulf”), is organized under the laws of Florida and has its principal place of business in Florida. (*Id.* at 2, ¶ 5). Defendant, Marc M. Moszkowski, is a citizen of

¹ Initially the Plaintiffs also sought to compel the Defendant to produce initial disclosures, but the parties resolved that issue without court intervention. (Doc. 38). Accordingly, that portion of the motion to compel is now moot.

the French Republic and apparently remains the President of DeepGulf in some fashion. (Doc. 9 at 2; Doc. 1 at 22, ¶ 7). He is one of three directors of DeepGulf and claims to be its largest shareholder. (Doc. 9 at 2). Plaintiffs alleged that Toke Oil and Gas, S.A. is a wholly-owned subsidiary of DeepGulf that is domiciled in East Timor. (Doc. 1 at 22). The Defendant, however, contends that it is a fraudulent corporation. (Doc. 1 at 2).

In their complaint, the Plaintiffs allege breach of a non-competition agreement, civil theft, conversion, and fraudulent misrepresentation. Plaintiffs seek, among other relief, an accounting, damages, injunctive and declaratory relief, court costs, and attorney's fees. On August 22, 2018, Defendant, proceeding *pro se*, filed his answer asserting counterclaims against the Plaintiffs. (Doc. 9). The counterclaims appear to be for fraud, breach of contract, and defamation. (Doc. 9). As relief, the Defendant seeks damages, injunctive relief, costs, and attorney's fees.

I. Discussion

A. Motion to Compel the Defendant's Deposition

“[T]he purpose of discovery is to provide a mechanism for making relevant information available to the litigants.” *Lozan v. Maryland Cas. Co.*, 850 F.2d 1470, 1473 (11th Cir. 1988) (citing Fed. R. Civ. P. 26 advisory committee notes). “Mutual knowledge of all the relevant facts gathered by both parties is essential to proper litigation. To that end, either party may compel the other to disgorge whatever facts

he has in his possession.” *Hickman v. Taylor*, 329 U.S. 495, 507, 67 S. Ct. 385, 392 (1947). Liberal discovery rules allow litigants to see the full breadth of the evidence that exists in a case. This helps litigants avoid surprises, leads to the speedier settlement of cases, and helps prevent miscarriages of justice in cases where evidence would otherwise be available to only one party. *See Brown Badgett, Inc. v. Jennings*, 842 F.2d 899, 902 (6th Cir. 1988). Rules favoring broad discovery help “make a trial less a game of blind man’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” *United States v. Procter & Gamble Co.*, 356 U.S. 677, 682, 78 S. Ct. 983, 986-87 (1958).

Consistent with these policies, Rule 30(a) of the Federal Rules of Civil Procedure authorizes parties to depose witnesses, including an opposing party. *See Fed. R. Civ. P. 30(a)*. Depositions can be extremely important to the discovery of relevant facts and the acquisition of key admissions from parties or witnesses. In some cases, depositions are “indispensable.” *Mill-Run Tours, Inc. v. Khashoggi*, 124 F.R.D. 547, 549 (S.D.N.Y. 1989).

“A party has a general right to compel any person to appear at a deposition, through issuance of a subpoena if necessary.” *CSC Holdings, Inc. v. Redis*, 309 F.3d 988, 993 (7th Cir. 2002) (citing Fed. R. Civ. P. 30(a)). More specifically, “each party to a civil law suit has the right to take depositions of the other party, absent a protective order entered by the trial judge.” *Colonial Times, Inc. v. Gasch*, 509 F.2d

517, 521 (D.C. Cir. 1975); *see Jules Jordan Video, Inc. v. 14482 Can. Inc.*, 617 F.3d 1146, 1158 (9th Cir. 2010) (observing that “under Rule 30 any person’s testimony may be taken by deposition”); *Nat’l Life Ins. Co. v. Hartford Acc. & Indem. Co.*, 615 F.2d 595, 599 (3d Cir. 1980) (“The Federal Rules of Civil Procedure specifically give a party the right to question a witness by oral deposition.”). The right to take depositions is a “broad” one because depositions are such an important tool of discovery. *See Credit Lyonnais, S.A. v. SGC Intern., Inc.*, 160 F.3d 428, 429 (8th Cir. 1998).

Rule 30(b)(1) states: “A party who wants to depose a person by oral questions must give reasonable written notice to every other party. The notice must state the time and place of the deposition” Fed. R. Civ. P. 30(b)(1). Thus, to initiate a deposition of an opposing party, the deposing party must first notice the deposition by serving the notice on the opposing party. *See Sali v. Corona Reg’l Med. Ctr.*, 884 F.3d 1218, 1222 (9th Cir. 2018) (“The only requirement is that the party be ‘served with proper notice’ of the deposition beforehand.”). “If a person is a party, a simple notice of deposition is sufficient to compel attendance” *Jules Jordan Video, Inc.*, 617 F.3d at 1158; *Peitzman v. City of Illmo*, 141 F.2d 956, 960 (8th Cir. 1944) (“Service of the notice upon the attorney for defendants was all that was required to make it incumbent upon the parties to appear.”); *Collins v. Wayland*, 139 F.2d 677, 678 (9th Cir. 1944) (“The notice for taking appellant’s deposition was a proper

notice and was properly served. It is immaterial, if true, that no subpoena was served on appellant, for he was a party, and therefore no subpoena was necessary.”). To be efficacious, however, the notice must be “reasonable” and must inform the opposing party of the date, time, and location of the deposition with sufficient time for compliance. *See Kolon Indus. Inc. v. E.I. DuPont de Nemours & Co.*, 748 F.3d 160, 173 (2014) (holding that a deposition notice was unreasonable when it was provided only five days before the deposition); *Mims v. Cent. Mfrs. Mut. Ins. Co.*, 178 F.2d 56, 59 (5th Cir. 1949) (holding that deposition notices were unreasonable when they called “the taking of depositions of numerous witnesses on the same date, in scattered localities across the continent”).

Before a party can move to compel a deposition, it first must show that it served notice of the deposition on the opposing party and that the opposing party failed to attend. *Nuskey v. Lambright*, 251 F.R.D. 3, 12 (D.D.C. 2008) (denying a motion to compel when the witness did not receive written notice stating the time and the place of the deposition); *Wolk v. Seminole County*, No. 6:05-cv-1722-Orl18KRS, 2007 WL 328685, at *1 n.1 (M.D. Fla. Jan. 31, 2007) (“Because no deposition had been noticed as of the date of filing of the motion, a motion to compel such a deposition is not ripe for consideration.”). “Absent evidence that the witnesses at issue were given reasonable written notices stating the time and place of their depositions, as required by Rule 30(b)(1), or that they failed to comply with

subpoenas compelling their attendance, pursuant to Rule 45, the Court has no authority to compel witnesses, including the parties, to attend any depositions.” *Pegoraro v. Marrero*, 281 F.R.D. 122, 128 (S.D.N.Y. 2012); *Siegel v. Truett-McConnell Coll., Inc.*, 13 F. Supp.2d 1335, 1337 (N.D. Ga. 1994) (“The court has no evidence before it that proper notice was given for any of defendants’ witnesses to appear at a deposition. The notice required for depositions is well-defined in the Federal Rules of Civil Procedure, Rule 30(b)(1) and (2). Without proper notice there can be no failure to appear.”), *aff’d on other grounds*, 73 F.3d 1108 (11th Cir. 1995).

In their motion to compel, the Plaintiffs do not allege that they provided written notice to the Defendant and that he failed to attend. Therefore, their motion to compel the Defendant’s deposition is premature. With that said, in light of the parties’ filings with this court and the Defendant’s *pro se* status, some additional guidance regarding the location and timing of the Defendant’s deposition is warranted.² Nothing stated below, however, should be taken as an indication of how

² The Defendant contends that he lives in France and lacks the funds to travel to the United States for a deposition. (Doc. 33 at 2, 8-11). He also makes conflicting claims about his ability to travel to the United States. Initially, he stated that he “has no visa to enter the United States” (Doc. 33 at 2). But Defendant alleged that he is a citizen of the French Republic. (Doc. 1 at 2, ¶ 5). French citizens generally are eligible to participate in the U.S. Visa Waiver Program, which means that the Defendant likely can “apply for admission to the United States for 90 days or less as nonimmigrant visitors for business or pleasure without first obtaining a nonimmigrant visa.” *Lacey v. Gonzales*, 499 F.3d 514, 516 (6th Cir. 2007); *see* 8 U.S.C. § 1187(a)(1). Later, the Defendant asserted that he “is not allowed by U.S. authorities to enter the United States for purposes other than tourism or limited

this court might decide a subsequent motion to compel or a motion for a protective order.

First and foremost, parties should confer in good faith to reach an agreement as to the date and location of a deposition. *See Tequila Centinela, S.A. de C.V. v. Bacardi & Co. Ltd.*, 242 F.R.D. 1, 5-6 (D.D.C. 2007) (stating that, “[a]s a general policy, the Court encourages parties to set depositions in mutually agreeable locations.”). A willingness to cooperate goes a long way toward resolving discovery issues. If the parties fail to reach an agreement, however, the proper situs for a deposition becomes more complicated and there are a number of presumptions, general rules, and factors that a court must consider in selecting a proper site for a deposition.

The Federal Rules of Civil Procedure do not mandate a particular situs for a deposition. *Afram Export Corp. v. Metallurgiki Halyps, S.A.*, 772 F.2d 1358, 1365 (7th Cir.1985) (“The civil rules do not specify the place for deposing a party”). “As a general rule, ‘the party noticing the deposition usually has the right to choose the location’” *Buzzeo v. Bd. of Educ., Hempstead*, 178 F.R.D. 390, 392 (E.D.N.Y. 1998) (quoting 7 Moore’s Federal Practice—Civil § 30.20). The party

business” (Doc. 33 at 11). These vague remarks are insufficient to persuade this court that U.S. immigration law poses insurmountable impediments to the Defendant travelling to the United States to be deposed. This would not be the first time that a foreign national travelled to the United States to be deposed.

initiating the deposition “may unilaterally choose the place for deposing an opposing party, subject to the granting of a protective order by the Court” *Turner v. Prudential Ins. Co. of Am.*, 119 F.R.D. 381, 383 (M.D. N.C. 1988); *see* Fed. R. Civ. P. 30(b)(1) (notice for deposition stating time and place of the deposition). But this general rule falls by the wayside when dealing with a defendant who is not a resident of the locale designated by the plaintiff for a deposition.

The deposition of a non-resident defendant “is generally conducted at the defendant’s place of residence” *Buzzeo*, 178 F.R.D. at 392. “Because the Plaintiff has greater influence over the choice of forum, courts are more willing to protect defendants from having to come to the forum for the taking of his or her deposition than they are in the case of plaintiffs.” *O’Sullivan v. Rivera*, 229 F.R.D. 187, 189 (D. N.M. 2004) (quoting Charles Alan Wright & Arthur R. Miller, *Federal Practice and Procedure* § 2112 (1994)); *United States v. \$160,066.98 from Bank of Am.*, 202 F.R.D. 624, 627 (S.D. Cal. 2001) (noting that because plaintiffs choose the forum, they “normally cannot complain if they are required to take discovery at great distances from the forum”); *Payton v. Sears, Roebuck & Co.*, 148 F.R.D. 667, 669 (N.D. Ga. 1993) (noting that “it is the plaintiffs who bring the lawsuit and who exercise the first choice as to the forum” and thus “courts have held that plaintiffs normally cannot complain if they must take discovery at great distances from the forum”). “A defendant, on the other hand, does not choose the forum and, therefore,

the Court is more likely to protect it from a deposition set in the forum district.”

Turner, 119 F.R.D. at 383.

In the words of one court:

Although the federal rules do not prevent plaintiff’s designating any place he chooses for the taking of a defendant’s deposition, the cases indicate that it is presumed that a defendant will be examined at his residence or at his place of business or employment; if another place is named and defendant files a timely objection the objection should be sustained absent some unusual circumstance to justify putting the defendant to such inconvenience.

Grey v. Cont’l Mktg. Assoc., Inc., 315 F. Supp. 826, 832 (N.D. Ga. 1970). Thus, there “is a general presumption that a non-resident defendant’s deposition will be held where he or she resides or works.” *Bank of New York v. Meridien Biao Bank Tanzania Ltd.*, 171 F.R.D. 135, 155 (S.D.N.Y. 1997); *Mill-Run Tours, Inc. v. Khashoggi*, 124 F.R.D. 547, 550 (S.D.N.Y. 1989); *Turner*, 119 F.R.D. at 383 (noting that “there is an initial presumption that a defendant should be examined at his residence or the principal place of business”); *Farquhar v. Sheldon*, 116 F.R.D. 70, 72 (E.D. Mich. 1987); *Pinkerton v. Paul*, 91 F.R.D. 613, 614-15 (D. Me. 1981); *Gen. Leasing Co. v. Lawrence Photo-Graphic Supply*, 84 F.R.D. 130, 131 (W.D. Mo. 1979).

As another court has stated, “because a non-resident defendant ordinarily has no say in selecting a forum, an individual defendant’s preference for a situs for his or her deposition near his or her place of residence—as opposed to the judicial

district in which the action is being litigated—is typically respected.” *In re Outsidewall Tire Litig.*, 267 F.R.D. 466, 471 (E.D. Va. 2010); *Metrex Research Corp. v. United States*, 151 F.R.D. 122, 125 (D. Colo. 1993). “And this presumption applies with no less force when the defendant is domiciled in another country.” *In re Outsidewall Tire Litig.*, 267 F.R.D. at 471. Because a “foreign defendant may be more inconvenienced by having to travel to the United States than a defendant who merely resides in another state or in another judicial district, the presumption that the deposition should occur at a foreign defendant’s place of residence may be even stronger.” *Id.*

But remember that the rationale for this rule is that the plaintiff initially chose the forum while the defendant is “not before the court by choice.” *Farquhar*, 116 F.R.D. at 72; *Buzzeo*, 178 F.R.D. at 392. Accordingly, the plaintiff is generally required to bear any reasonable burdens of inconvenience that the action presents. *Buzzeo*, 178 F.R.D. at 392. This becomes more complicated in this case because the Defendant elected to file counter-claims against the Plaintiffs. The Defendant, therefore, is also a plaintiff for purpose of his counter claims. Thus, the Defendant himself voluntarily chose to proceed in the Northern District of Florida, or at least acquiesced in the Plaintiffs’ decision to proceed in this District.

As stated above, there is a presumption that a plaintiff may be deposed in the district in which he has initiated his action. The “Plaintiff in an action should expect

to be deposed in the forum where the action is pending.” *Culhane v. MSC Cruises (USA), Inc.*, 290 F.R.D. 565, 566 (S.D. Fla. 2013); *Levick v. Steiner Transocean, Ltd.*, 228 F.R.D. 671, 672 (S.D. Fla. 2005) (The general rule is that a plaintiff who brings suit in a particular forum may not avoid appearing for examination in that forum.”); *Instituto Per Lo Sviluppo Economico Dell' Italia Meridionale v. Sperti Prods. Inc.*, 47 F.R.D. 530, 533 (S.D.N.Y. 1969) (“Ordinarily, a defendant is entitled to examine a plaintiff in the forum where plaintiff has chosen to sue. Where special circumstances are shown that outweigh any prejudice to the defendant, a court will exercise its discretion to designate a different place for the deposition.”); *Ellis Air Lines v. Bellanca Aircraft Corp.*, 17 F.R.D. 395, 396 (D. Del. 1955) (“There is a principle that a plaintiff having selected a particular forum for the adjudication of his case should be prepared to answer a notice of deposition in that locality.”).³ Therefore, as long as the Defendant chooses to pursue affirmative claims for relief, this presumption applies.

³ There is also a presumption that deposition of an officer of a corporation take place at the corporation’s principal place of business. *Salter v. Upjohn Co.*, 593 F.2d 649, 651 (5th Cir. 1979). Defendant conceded that DeepGulf’s principal place of business is Florida. (Doc. 1 at 2, ¶ 5). More specifically, the Plaintiffs alleged that it was the Northern District of Florida. (Doc. 1 at 22). Plaintiffs also alleged that the Defendant is an officer, director, and one of the founders of DeepGulf. (*Id.*). Nevertheless, this presumption carries less weight in a case such as this, where the corporation is pursuing claims against one of its officers.

Furthermore, the Local Rules for the Northern District of Florida generally require any party that seeks affirmative relief in this District to submit to a deposition in this District. Local Rule 26.1(B)(1) of the Local Rules for the U.S. District Court for the Northern District of Florida provides:

(B) Place of Depositions.

Unless the Court orders otherwise for cause,

(1) a party who asserts a claim for affirmative relief—other than costs and attorney’s fees—can be required to appear once in this District for a deposition

N.D. Fla. Loc. R. 26.1(b)(1).⁴ This Rule admits of exceptions, however, insofar as the general rule is prefaced by the notation that this court may order otherwise “for cause.” *Id.*

Certainly a court may consider a litigant’s financial means when considering whether there is “good cause”—if evidence on this point is submitted to the court. But indigence normally has not absolved a party seeking affirmative relief from his

⁴ “A district court has discretion to adopt local rules.” *Hollingsworth v. Perry*, 558 U.S. 183, 191, 130 S. Ct. 705, 710 (2010); *Frazier v. Heebe*, 482 U.S. 641, 645, 107 S. Ct. 2607, 2611 (1987); *see* 28 U.S.C. § 2071; Fed. R. Civ. P. 83. Rule 83 of the Federal Rules of Civil Procedure authorizes federal courts to promulgate local rules. *See* Fed. R. Civ. P. 83(a). Local rules have the force of law. *See Hollingsworth*, 558 U.S. at 191, 130 S. Ct. at 710; *Weil v. Neary*, 278 U.S. 160, 169, 49 S. Ct. 144, 148 (1929) (“a rule of court thus authorized and made has the force of law”); *Cheshire v. Bank of Am., NA*, 351 F. App’x 386, 288 (11th Cir. 2009) (stating that a “valid local rule has the force of law.”). Courts may dismiss an action for failure to comply with a local rule. *See Reed v. Bennett*, 312 F.3d 1190, 1195 (10th Cir. 2002).

duty to submit to a deposition in the forum district. *See Newman v. Metro. Pier & Exposition Auth.*, 962 F.2d 589, 591-92 (7th Cir. 1992) (holding that serious financial hardship was insufficient to overcome the presumption that a plaintiff's deposition may be taken within the forum district); *Gen. Leasing Co. v. Lawrence Photo-Graphic Supply*, 84 F.R.D. 130, 131 (W.D. Mo. 1979). Furthermore, any litigant who seeks a protective order to preclude a deposition in a particular place, must *establish with evidence* an inability to attend a deposition at that place. A mere claim of indigence will not suffice. Furthermore, any motion for a protective order should include an offer to appear for a deposition at an alternative location. Merely throwing up one's hands and saying "I can't afford to be deposed" will not allow a party to escape a deposition.

Ultimately "the district court has great discretion in designating the location of taking a deposition" *Thompson v. Sun Oil, Co.*, 523 F.2d 647, 648 (8th Cir. 1975) (per curiam); *see Afram Export Corp.*, 772 F.2d at 1365 (noting a district court's broad discretion to set the location of a deposition); *Asea, Inc. v. S. Pac. Transp. Co.*, 669 F.2d 1242, 1248 (9th Cir. 1981) (holding that a "district judge has discretion to direct the place of a deposition" and it is "not an abuse of discretion for the district judge to protect" a "witness from the burden of traveling overseas for examination"); *Armsey v. Medshares Mgmt. Servs., Inc.*, 184 F.R.D. 569, 571 (W.D. Va. 1998) (noting that a district court enjoys "broad discretion to determine the

appropriate location for a deposition and may attach conditions, such as the payment of expenses, as it finds appropriate”); *Farquhar*, 116 F.R.D. at 72 (“It is within the discretion of the court to designate the location for a taking of depositions, and each application must be considered on its own facts and equities.”); *Financial Gen. Bankshares, Inc. v. Lance*, 80 F.R.D. 22, 23 (D.D.C. 1978) (“The matter of the location of depositions of defendants ultimately is within the discretion of the Court”).

In exercising its discretion concerning where a deposition should be held, courts can consider all relevant factors. In a particular case, these might include:

- (1) the citizenship, location, and convenience of the deponent;
- (2) the citizenship, location, and convenience of the parties;
- (3) the location and convenience of the attorneys for the parties and for the deponent;⁵
- (4) the plaintiff’s preferred site for the deposition;
- (5) the defendant’s preferred location of the deposition;
- (6) whether it would be impossible or fundamentally unfair to make the deponent travel to the location chosen by either party;

⁵ *But see Mill-Run Tours, Inc.*, 124 F.R.D. at 551 (noting that the convenience of the attorneys is “less important than any hardship on the parties”).

(7) whether the plaintiff and/or defendant chose the forum for the civil action or whether the law compelled the venue;⁶

(8) whether a defendant has also filed a counter claim against the plaintiff in the relevant forum and, if so, whether the counterclaim was permissive or compulsory under Rule 13(a);

(9) if one of the parties is a business, its size, principal place of business, and geographic scope—including whether it does business in multiple locations and the location selected for the deposition;

(10) the relative economic strength of the parties and whether payment of travel expenses would pose an undue burden for a particular party, and whether granting a party additional time to raise funds would permit the party to fund travel for a deposition;

(11) the costs associated with holding the deposition in a particular place;

(12) the inconvenience posed by a particular site (for example, if a large number of documents would need to be transported to the location);

(13) the nature of the claims at issue in the action and their weight relative to the cost of conducting a deposition at a particular location;

⁶ See, e.g., *Continental Federal Sav. & Loan Ass’n v. Delta Corp. of Am.*, 71 F.R.D. 697, 700 (W.D. Okla. 1976). If a counterclaim was compulsory under the Federal Rules, a defendant who files such a claim cannot be said to have “chosen” the venue in any real sense. *Id.*

(14) whether a particular location would prove more efficient or would result in more expeditious resolution of the case;

(15) whether multiple deponents can be deposed at a particular site on a single day such that holding a deposition for a single witness elsewhere would be highly inefficient;

(16) whether the deponent is an officer or employee of a company that is a party to the suit and his relative rank in the company;

(17) whether conducting a deposition at a particular location would disrupt important business or governmental functions because the deponent is a corporate or government official with significant official duties;

(18) the breadth and weight of the information the deponent likely possesses;

(19) whether a party or the deponent's employer has offered to cover the costs associated with travel to the proposed deposition site;

(20) whether the deponent frequently or periodically travels to or near the proposed deposition site;

(21) whether the court has the ability to compel the deponent to appear in the forum or the proposed deposition site;

(22) the inconvenience to either party;

(23) the relationship of the parties to the deponent;

(24) whether the welfare of a deponent would be compromised by the rigors of travel (due to poor health or advanced age);

(25) the difficulty of traveling to a particular location due to a lack of transportation infrastructure and means of transportation available to the parties and deponents;

(26) whether natural disasters, weather, economic or political strife makes a particular location dangerous or unsuitable for conducting a deposition;

(27) whether it appears that a deposition site was chosen to harass or inconvenience the deponent or an opposing party, and the good faith or bad faith of the party selecting a site;

(28) whether either party made an effort to select a compromise site;

(29) whether significant discovery disputes are likely to arise that will require court supervision or intervention—thus suggesting that for the sake of judicial economy the deposition should take place near the forum;⁷

(30) whether sufficient alternatives to an “in person” deposition exist, such as a telephonic deposition, submission of written questions; or a video conference;⁸

⁷ *Mill-Run Tours, Inc.*, 124 F.R.D. at 551 (“Although a judge or magistrate could conceivably resolve discovery disputes at an overseas deposition by telephone, such a procedure is costly and unwieldy.”).

⁸ At least one court has noted some of the shortcomings of the submission of written questions:

(31) whether the services of a linguist, interpreter, or stenographer are required and the feasibility of obtaining one at a particular site; and

(32) whether the witness, parties, or attorneys can secure the requisite travel documents and permission from relevant governments. *Newman*, 962 F.2d at 591; *Afram Export Corp.*, 772 F.2d at 1365; *Thompson*, 523 F.2d at 648; *Winston & Strawn LLP v. Law Firm of John Arthur Eaves*, 307 F.R.D. 259, 262 (D.D.C. 2014); *In re Outsidewall Tire Litig.*, 267 F.R.D. at 471-73; *Mill-Run Tours, Inc.*, 124 F.R.D. at 550-52; *Turner*, 119 F.R.D. at 383; *Gen. Leasing Co. v. Lawrence Photo-Graphic Supply*, 84 F.R.D. 130, 131 (W.D. Mo. 1979); *Leist v. Union Oil Co. of Calif.*, 82 F.R.D. 203, 204 (E.D. Wis. 1979); *Financial Gen. Bankshares, Inc.*, 80 F.R.D. at 23; *Baker v. Standard Indus., Inc.*, 55 F.R.D. 178, 179-80 (D. P.R. 1975).

Of course, this is not an exhaustive list and many of these factors may prove to be irrelevant in a “typical” case. In other cases, factors not listed here will be

But there are several reasons why oral depositions should not be routinely replaced by written questions. . . . First, the interrogatory format does not permit the probing follow-up questions necessary in all but the simplest litigation. Second, without oral deposition, counsel are unable to observe the demeanor of the witness and evaluate his credibility in anticipation of trial. . . . Finally, written questions provide an opportunity for counsel to assist the witness in providing answers so carefully tailored that they are likely to generate additional discovery disputes.”

Mill-Run Tours, Inc., 124 F.3d at 459. Additionally, showing the deponent physical exhibits might be impossible, not to mention the difficulty of directing him to specific text in documents.

highly relevant. This list simply illustrates that the court’s decision regarding the location of a deposition is a fact-intensive one and “each application must be considered on its own facts and equities.” *Terry v. Modern Woodmen of Am.*, 57 F.R.D. 141, 143 (W.D. Mo. 1972); *see Turner*, 119 F.R.D. at 383 (noting that a number of factors “may persuade the Court to require the deposition to be conducted in the forum district or some other place”); *Connell v. Biltmore Sec. Life Ins. Co.*, 41 F.R.D. 136, 137 (D. S.C. 1956) (noting that the “factual situations and considerations vary by the number of cases”).

The parties’ submissions did not fully address—indeed, barely discussed—the relevant presumptions, the balancing of the equities, and the relevant factors this court must consider. Furthermore, simply reciting the factors does not suffice. There are competing equities in this case such that this court’s broad discretion properly could result in this court ordering that the deposition be held in such locations as Pensacola, Atlanta, New York, London, or Paris, to name but a few. As mentioned above, therefore, the parties would be well advised to work toward a mutually-beneficial agreement on this issue.

The parties should also discuss—in their conference and in any subsequent submission on this issue—the feasibility of alternatives to an “in person” deposition. *See Fed. R. Civ. P. 30(b)(4)*. Courts have noted that, in some cases, a “telephone interview or, better, a video-recorded conference call, would be an acceptable

substitute” See *Newman v. Metro. Pier & Exposition Auth.*, 962 F.2d 589, 591-92 (7th Cir. 1992); *Abdel-Ghaffar v. Illinois Tool Works, Inc.*, 706 F. App’x 871, 876 (7th Cir. 2017) (“Federal Rule of Civil Procedure 30(b)(4) allows depositions by ‘remote means’ either on the stipulation of the parties, or on motion.”).⁹ Another alternative is to conduct the deposition by submitting written questions to a witness. See *Nat’l Life Ins. Co. v. Hartford Acc. & Indem. Co.*, 615 F.2d 595, 599 (3d Cir. 1980) (citing Fed. R. Civ. P. 31). Although an “in person” deposition is generally superior to these alternatives, in certain cases these alternatives may be necessary. Indeed, several rounds of written questions might prove superior to one “in person” deposition.¹⁰ If the parties are interested in several rounds of written questions, they should make that clear.

⁹ The parties may also wish to discuss one party paying the other party’s travel expenses to the desired deposition location, as this court will certainly consider that option. See, e.g., *Huynh v. Werke*, 90 F.R.D. 447, 449-50 (S.D. Ohio 1981) (ordering that the plaintiff travel to West Germany to depose corporate employees of the defendant, but also requiring the defendant to advance plaintiff one-half the total reasonable travel expenses required for the depositions, and deeming this amount to be taxed as costs of litigation in favor of the prevailing party); *Haymes v. Smith*, 73 F.R.D. 572, 575 (W.D.N.Y. 1976) (ordering the defendant to choose between: (1) traveling to the forum district to be deposed; or (2) paying for the plaintiff’s attorney to travel to the defendant to depose him in Florida).

¹⁰ If this court is called upon to decide the location of the Defendant’s deposition and any mediation conference, the parties should keep in mind that a “plaintiff’s failure to comply with discovery orders is properly sanctioned by dismissal of the suit, a defendant’s by entry of a default judgment.” *Newman*, 962 F.2d at 591.

In subsequent submissions to this court, the parties also should keep in mind Local Rule 7.1(B), which requires *a meaningful conference* with the adverse party in which the parties “attempt in good faith to resolve the issue” *See* N. D. Fla. Loc. R. 7.1(B). The Plaintiffs’ “Certificate of Compliance with Local Rule 7.1(B)” states only that counsel for Plaintiffs “personally attempted communicate with opposing party regarding the relief sought herein.” (Doc. 31 at 8). This suggests that the parties did not conduct a meaningful conference, and perhaps no conference at all. If one party refuses to participate in a conference, the other party should inform this court.

It also appears that when the parties have conferred, they have done so only via email, and not by telephone or video-conferencing.¹¹ (*see, e.g.*, Doc. 31 at 2-3; Doc. 33 at 4-5; Doc. 36 at 3). A dialogue that allows for a nearly simultaneous “give and take” is much more likely to resolve an issue than a barrage of emails. A court may deny a motion when the movant has not shown that he made a good faith effort to confer and work with an opposing party. *See Holloman v. Mail-Well Corp.*, 443 F.3d 832, 844 (11th Cir. 2006).

¹¹ The Local Rule states in relevant part: “The conference may be conducted in person, by telephone, in writing, or electronically, *but an oral conference is encouraged.*” N.D. Fla. Loc. R. 7.1(B) (emphasis added). An email sent minutes before filing a motion is not a “meaningful conference.” Parties are far more likely to resolve a dispute if they speak to each other directly.

Further, neither the Plaintiffs nor the Defendant suggested possible resolutions to the disputes. In the future, the parties should make a concerted effort to ensure that they confer and seek to resolve issues without necessitating court involvement, and they should propose possible solutions. Furthermore, factual assertions in support of their respective positions should be made in affidavits supported by evidence whenever possible. *See Mill-Run Tours, Inc.*, 124 F.R.D. at 551 (noting that the defendants failed to submit affidavits in support of their claim that they would suffer harm); *Dalmady v. Price Waterhous & Co.*, 62 F.R.D. 157, 159 (D. P.R. 1973) (“It is not sufficient that plaintiff’s attorneys make naked assertions with respect to the financial and hardship conditions faced by him. Well prepared and complete affidavits are necessary to corroborate and give substance to his attorneys’ assertions.”).

B. Motion to Compel Mediation

Plaintiffs also seek to compel the Defendant to participate in mediation.

The value of mediation has been widely recognized. Indeed, the “general policy of the law is to favor the settlement of litigation” *Schering-Plough Corp. v. FTC*, 402 F.3d 1056, 1072 (11th Cir. 2005); *Kothe v. Smith*, 771 F.2d 667, 669 (2d Cir. 1985) (noting that “the law favors the voluntary settlement of civil suits”); *Metro. Hous. Dev. Corp. v. Vill. of Arlington Heights*, 616 F.2d 1006, 1013 (7th Cir. 1980) (“The law generally favors and encourages settlements.”). Accordingly, the

federal courts “have practiced numerous and varied types of pretrial settlement techniques for many years.” *G. Heilman Brewing Co., Inc. v. Joseph Oat Corp.*, 871 F.2d 648, 651 (7th Cir. 1989) (en banc). One of these is mediation. “Mediation with the assistance of a skilled facilitator gives parties an opportunity to explore a much wider range of options, including those that go beyond conventional zero-sum resolutions.” *In Re Atlantic Pipe Corp.*, 304 F.3d 135, 145 (1st Cir. 2002).

Pursuant to the policy favoring settlement, federal courts possess the inherent power to compel the parties to participate in the non-binding mediation of their dispute. *See Pieczenik v. Bayer Corp.*, 474 F. App’x 766, 773 (Fed. Cir. 2012); *In Re Atlantic Pipe Corp.*, 304 F.3d at 145. Furthermore, a “district court’s local rules may provide an appropriate source of authority for ordering parties to participate in mediation.” *In Re Atlantic Pipe Corp.*, 304 F.3d 135, 140 (1st Cir. 2002). For example, Rule 16.3 of the Local Rules for the U.S. District Court for the Northern District of Florida state: “The Court may order the parties to mediate a civil case.” N.D. Fla. Loc. R. 16.3.

On October 23, 2018, this court ordered mediation, in part because the Defendant stated in the “Report of the Parties’ Planning Meeting” that he “strongly” disagreed with Plaintiff’s assessment that “mediation would be futile.” (Doc. 29 at 7, ¶ 4(f)). If Defendant now has changed his mind, his recourse is to file a motion accordingly. In any event, the parties have not informed this court of the progress, if

any, they have made regarding the scheduling of a mediation conference. Without such information and a synopsis of the parties' discussions on this point, an order to compel mediation would be premature.

III. Conclusion

For the reasons set forth above, it is **ORDERED** that:

1. Plaintiffs' motion to compel the Defendant's deposition and mediation of this case (Doc. 31) is **DENIED** without prejudice due to its prematurity.

2. The parties must confer and make a good faith effort to reach an agreement regarding the location of the Defendant's deposition and the mediation of this case.

SO ORDERED this 30th day of January 2019.

/s/ Michael J. Frank

Michael J. Frank
United States Magistrate Judge

**UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC., and TOKE OIL AND
GAS, S.A.,

Plaintiffs,

v.

Case No. 3:18-cv-1466-MCR/MJF

MARC M. MOSZKOWSKI,

Defendant.

_____ /

ORDER

This cause is before this Court on Defendant's motion to compel the Plaintiffs to produce documents. (Doc. 39). For the reasons set forth below, this motion will be denied without prejudice.

I. Background

A. The Parties' Claims

In their complaint, the Plaintiffs allege breach of a non-competition agreement, civil theft, conversion, and fraudulent misrepresentation. Plaintiffs seek, among other relief, an accounting, damages, injunctive and declaratory relief, court costs, and attorney's fees. On August 22, 2018, Defendant, proceeding *pro se*, filed his answer asserting counterclaims against the Plaintiffs. (Doc. 9). The counterclaims appear to be for fraud, breach of contract, and defamation. (Doc. 9). The Defendant seeks damages, injunctive relief, costs, and attorney's fees.

Page 1 of 7

B. Defendant's Requests for Production

On November 28, 2018, Defendant propounded upon the Plaintiffs 64 requests for the production of documents. (“Requests”) (Doc. 39 at 1). On January 11, 2019, Plaintiffs—after receiving an extension of time from this court—responded. On January 15, 2019, Defendant filed this instant motion to compel. (*Id.*). Defendant argues that the Plaintiffs have not sufficiently produced documents to even a single request, and he seeks to compel the Plaintiffs to produce documents responsive to all 64 Requests.

II. Discussion

Rule 37(a) of the Federal Rules of Civil Procedure authorizes a party to seek an order compelling an opposing party to produce discovery that is within its possession or control. Fed. R. Civ. P. 37(a); *see Rollins v. Cone Distrib., Inc.*, 710 F. App’x 814, 819 (11th Cir. 2017); *Bloodworth v. United States*, 623 F. App’x 976, 979 (11th Cir. 2015); *Bennett v. Chitwood*, 519 F. App’x 569, 572 (11th Cir. 2013); *Gile v. United Airlines, Inc.*, 95 F.3d 492, 495 (7th Cir. 1996). But this rule has a strict requirement that the parties first confer in an effort to resolve any dispute. *See El-Saba v. Univ. of S. Ala.*, 738 F. App’x 640, 646 (11th Cir. 2018) (holding that a district court may deny a motion to compel when it fails to contain a certification that the movant conferred with opposing counsel); *Houston v. C.G. Sec. Serv., Inc.*,

820 F.3d 855, 858 (7th Cir. 2016) (noting the movant's duty to confer). Indeed, any motion to compel must contain a certificate indicating that the parties conferred. *See* Fed. R. Civ. P. 37(a)(1) ("The motion [for an order to compel disclosure] must include a certification that the movant has in good faith conferred or attempted to confer with the person or party failing to make disclosure or discovery in an effort to obtain it without court action."); *see Samadi v. Bank of Am., N.A.*, 476 F. App'x 819, 821 (11th Cir. 2012) (holding that the district court was not required to grant a motion to compel when the movant failed to certify that he had conferred in good faith with opposing counsel); *Naviant Mktg. Sols., Inc. v. Larry Tucker, Inc.*, 339 F.3d 180, 186 (3d Cir. 2003) (noting that a party must demonstrate that it made a good faith effort to obtain discovery from opposing counsel).

If a party declines to produce requested documents after the opposing party's good faith efforts to resolve a discovery dispute, the requesting party may move for a motion to compel disclosure. *See* Fed. R. Civ. P. 37(a)(1). But a court may deny a motion to compel when the record does not indicate that the parties conferred. *See Bennett*, 519 F. App'x at 572 (holding that a district court did not abuse its discretion when it denied a motion to compel in light of the movant's failure to confer with the opposing party as required by Rule 37(a)(1)); *Gay v. AirTran Airways, Inc.*, 427 F. App'x 743, 744-45 (11th Cir. 2011) (holding that a court may deny a motion to

compel for failure to comply with Rule 37(a)(1)'s conferral requirement); *Lott v. Coyle*, 261 F.3d 594, 604 (6th Cir. 2001) (concluding that the district court permissibly denied a motion to compel when the parties failed to confer); *Robinson v. Potter*, 453 F.3d 990, 995 (8th Cir. 2006) (noting that a court should rule on a motion to compel discovery only after the moving party made a good faith attempt to resolve the dispute); *Kalis v. Colgate-Palmolive Co.*, 231 F.3d 1049, 1059 (7th Cir. 2000) (holding that the district court did not abuse its discretion in denying a motion to compel where the motion did not include a certificate indicating that that movant had conferred with opposing counsel).

In this case, the Defendant's motion to compel failed to include a certificate indicating that he had conferred in good faith with opposing counsel before filing the motion to compel. Defendant's motion did include a "certificate of compliance" with Northern District of Florida Local Rule 7.1, but this satisfied neither Local Rule 7.1 nor Rule 37(a)(1) of the Federal Rules insofar as it merely states that the Defendant "attempted to communicate with the opposing party" . . . "but have received no acknowledgement of my email after 24 hours." (Doc. 39 at 5).¹ That

¹ Local Rule 7.1(B) requires *a meaningful conference* with the adverse party in which the parties "attempt in good faith to resolve the issue . . ." See N. D. Fla. Loc. R. 7.1(B). A litigant's *pro se* status "does not excuse noncompliance with procedural rules" such as Rule 37(a)(1) and Local Rule 7.1(B). See *Kelly v. Old Dominion Freight Line, Inc.*, 376 F. App'x 909, 914 (11th Cir. 2010).

does not demonstrate a good faith effort to confer and attempt to resolve a discovery dispute. Rather, it is a concession that no conference took place. Additionally, as this court has previously indicated, the parties should confer telephonically whenever possible to facilitate a meaningful discussion.

As to Defendant's assertion that he afforded opposing counsel a mere 24 hours to respond, counsel normally should strive to respond to an opposing party within 24 hours. Undoubtedly, however, there will be many occasions when that is simply impossible, particularly if an attorney is otherwise engaged in litigation or is traveling. The fact that the parties are in different time zones makes a 24-hour deadline even more unreasonable. Thus, Defendant has utterly failed to demonstrate that he satisfied Rule 37(a)(1) and Local Rule 7.1(B).

Furthermore, Local Rule 26.1 requires that the party moving to compel discovery "set out the reasons why the discovery should be compelled." N.D. Fla. Loc. R. 26.1(D)(3). Defendant, however, generally failed to set forth reasons why this court should compel the Plaintiffs to produce the requested documents. (*See generally* Doc. 39 at 6-57). Defendant relies on conclusory statements that are simply insufficient as a matter of law. For example, Defendant states in several places that, as the president and a shareholder of DeepGulf, Inc., he has an "absolute right" to the documents he requested. (*See e.g.* Doc. 39 at 7-10). He also asserts that

he “does not believe that Plaintiffs have a right to declare” that requested documents are irrelevant. (*Id.*). He must provide legal support for his assertions of entitlement.

In a related vein, Rule 7(b)(1) of the Federal Rules of Civil Procedure requires that motions “state with particularity the grounds for seeking the order.” Fed. R. Civ. P. 7(b)(1)(B). Particularity means “reasonable specification.” *Talano v. Nw. Med. Faculty Found., Inc.*, 273 F.3d 757, 760 (7th Cir. 2001) (quoting *Martinez v. Trainor*, 556 F.2d 818, 819-20 (7th Cir. 1977)). “The purpose of the particularity requirement in Rule 7 is to afford notice of the grounds and prayer of the motion to both the court and to the opposing party, providing that party with a meaningful opportunity to respond and the court with enough information to process the motion correctly.” *Registration Control Sys., Inc. v. Compusystems, Inc.*, 922 F.2d 805, 807 (Fed. Cir. 1990). Motions that are devoid of any analysis or citation to authority generally will be insufficient to satisfy the particularity requirement. *See Flanigan’s Enters., Inc. of Ga. v. Fulton Cty., Ga.*, 242 F.3d 976, 987 n.16 (11th Cir. 2001) (holding that a party waives an issue when the party did not provide any citation of authority in support of its position).

III. Conclusion

Accordingly, for the reasons set forth above, it is **ORDERED** that:

Defendant's motion to compel (Doc. 39) is **DENIED** without prejudice. If Defendant desires to file a second motion to compel, he must first correct the deficiencies identified above.

SO ORDERED this 5th day of February 2019.

/s/ Michael J. Frank

Michael J. Frank

United States Magistrate Judge

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

_____/

**OBJECTION TO DEFENDANT'S NOTICE OF INTENT TO SERVE
SUBPOENA ON NON-PARTY WELLS FARGO BANK, N.A.**

COMES NOW, Plaintiffs, DeepGulf, Inc. and Toke Oil and Gas, S.A., by and through their undersigned counsel, and objects to the Notice of Intent to Serve Subpoena on Non-Party Wells Fargo Bank, N.A., a copy of which is attached hereto as Exhibit "A" and states as follows:

1. The financial records being requested are not relevant to Plaintiffs' lawsuit or Defendant's Counterclaim. The only conceivable relevance the Subpoena could have is on Count I, the claim for accounting. With regards to an accounting, as stated in the un-ruled upon Motion to Dismiss filed in this case [Doc 73]:

“Defendant’s allegations do not at all address why it is entitled to an accounting from Plaintiffs. Under Florida law, a party that seeks an equitable accounting must show that: (1) a fiduciary relationship exists between the parties or the transaction at issue is complex; and (2) the remedy at law is inadequate. Zaki Kulaibee Establishment v. McFlicker, 788 F. Supp. 2d 1363 (S.D. Fla. 2011), rev’d and remanded on other grounds, 771 F.3d 1301 (11th Cir. 2014); Chen v. Cayman Arts, Inc., 757 F. Supp. 2d 1294 (S.D. Fla. 2010). Element number 2 of the Zaki elements for an accounting, begs the question in this case, what is the wrong that Defendant is seeking a remedy for in Count I? Plaintiffs have no idea because Defendant has not properly alleged any facts to support such a claim. Just because one party is a stockholder and officer of the other party does not automatically entitle such party to a court ordered accounting. In fact, the 11th Circuit has stated that “accounting is only a remedy attached to an independent cause of action.” Becker v. Davis, 491 F.3d 1292, 1305 (11th Cir. 2007, abrogated on other grounds by Arthur Andersen v. Carlisle, 556 U.S. 624 (2009).

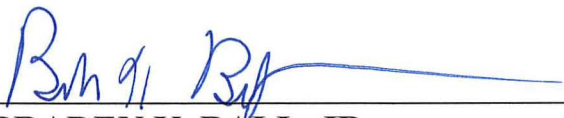
Plaintiffs can only presume that this “action” is akin to the antiquated “bill of discovery” where a party improperly seeks to use judicial resources to determine whether a case of action even exists. See e.g. Vorbeck v. Betancourt, 107 So.3d 1142, 1147 (Fla. 3d DCA 2012) (holding bill of discovery could not be used to “see if causes of action exist” or to determine whether there is sufficient evidence to render a suspected cause of action viable.)”

2. Such financial records requests could not conceivably be relevant to the Count II (Breach of Contract), Count III (Work and Labor Done), Count IV (Breach of Contract), or Count V (Fraud Based Upon Promise to Pay), as described in Defendant’s Amended Answer and Counterclaim [Doc. 70].

3. Defendants believe that Plaintiff must allege an independent cause of action, in order to be entitled to a court-ordered accounting. See Becker v. Davis, supra. No such allegation has been made. Thus, the extraordinary remedy of a

court-ordered accounting is not proper. Therefore, because a court-ordered accounting is not proper, financial discovery that can only be *possibly* substantiated in this case through Count I of the Counterclaim is objectionable and such objection should be sustained.

WHEREFORE, Plaintiffs assert this objection to the Notice of Intent to serve Subpoena on Non-Party Wells Fargo Bank, N.A.


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CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(B)

I CERTIFY that I personally communicated with opposing counsel by phone and email regarding the relief sought herein.


BRADEN K. BALL, JR.

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Motion contains 536 words, exclusive of the case style, signature block and certificates of compliance/service.



BRADEN K. BALL, JR.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 1st day of July, 2019, a copy of the foregoing has been furnished to the Defendant's counsel, Mary Allie E. Boller (allie@bollerlawfirm.com) and Thomas R. Boller (tom@bollerlawfirm.com), via the Court's E-filing system.



BRADEN K. BALL, JR.



IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC.
TOKE OIL AND GAS S.A,
Plaintiffs,

vs.

MARC M. MOSZKOWSKI ,
Defendant.

*
*
*
*
*
*
*

CASE NO. 3:18-cv-01466-MCR-MJF

NOTICE OF INTENT TO SERVE SUBPOENA

To: Braden Ball, Esq.
braden@lawpensacola.com

YOU ARE HEREBY notified that after five (5) days from the date of service, if service is by mail or electronic-mail, and if no objections are received from any party, the undersigned will issue the attached Subpoena, pursuant to Fed.R.Civ.P. 45 upon the following:

Wells Fargo Bank, N.A.
Corporation Service Company
1201 Hays Street
Tallahassee, Florida 32301-2525

June 24, 2019

s/ Mary Allie E. Boller
MARY ALLIE E. BOLLER
Florida Bar No. 0111906
Thomas R. Boller, P.C.
150 Government Street, Suite 1001
Mobile, Alabama 36602
Telephone: (251) 433-2133
Facsimile: (251) 433-2135
Attorneys for Defendants
allie@bollerlawfirm.com

s/ Thomas R. Boller
THOMAS R. BOLLER
Thomas R. Boller, P.C.
150 Government Street, Suite 1001
Mobile, Alabama 36602
Telephone: (251) 433-2133
Facsimile: (251) 433-2135
Attorneys for Defendant
tom@bollerlawfirm.com

CERTIFICATE OF SERVICE

I hereby certify that on 24 June 2019, the foregoing was sent via email to all other counsel of record, namely Braden Ball, Esq. (braden@lawpensacola.com)

s/ Mary Allie E. Boller
MARY ALLIE E. BOLLER

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action

UNITED STATES DISTRICT COURT

for the

Northern District of Florida

DeepGulf, Inc. Toke Oil and Gas S.A.

Plaintiff

v.

Marc M. Moszkowski

Defendant

Civil Action No. 3:18-cv-01455-MCR-MJF

SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS
OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION

To:

Wells Fargo Bank, N.A.

Corporation Service Company, 1201 Hays Street, Tallahassee, Florida 32301-2525

(Name of person to whom this subpoena is directed)

☒ **Production:** **YOU ARE COMMANDED** to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material: Produce copies of any and all records of any account activity, for any and all accounts associated with the Plaintiff, DeepGulf, Inc. including but not limited to Account No. 2000016791369, for the time period beginning from the date of inception of account(s) up through and including the date of response to this Subpoena.

Place: 150 Government Street
Suite 1001
Mobile, Alabama 36602

Date and Time:

☐ **Inspection of Premises:** **YOU ARE COMMANDED** to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:

Date and Time:

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: _____

CLERK OF COURT

OR

Signature of Clerk or Deputy Clerk

Attorney's signature

The name, address, e-mail address, and telephone number of the attorney representing (name of party) Defendant,

Marc M. Moszkowski, who issues or requests this subpoena, are:

Mary Allie E. Boller, 150 Government Street, Suite 1001, Mobile, Alabama 36602, allie@bollerlawfirm.com

Notice to the person who issues or requests this subpoena.

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

Federal Rule of Civil Procedure 45 (c), (d), (e), and (g) (Effective 12/1/13)**(c) Place of Compliance.**

(1) For a Trial, Hearing, or Deposition. A subpoena may command a person to attend a trial, hearing, or deposition only as follows:

- (A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or
- (B) within the state where the person resides, is employed, or regularly transacts business in person, if the person
 - (i) is a party or a party's officer; or
 - (ii) is commanded to attend a trial and would not incur substantial expense.

(2) For Other Discovery. A subpoena may command:

- (A) production of documents, electronically stored information, or tangible things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and
- (B) inspection of premises at the premises to be inspected.

(d) Protecting a Person Subject to a Subpoena; Enforcement.

(1) Avoiding Undue Burden or Expense; Sanctions. A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction—which may include lost earnings and reasonable attorney's fees—on a party or attorney who fails to comply.

(2) Command to Produce Materials or Permit Inspection.

(A) *Appearance Not Required.* A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.

(B) *Objections.* A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing, or sampling any or all of the materials or to inspecting the premises—or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:

- (i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.
- (ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

(3) Quashing or Modifying a Subpoena.

(A) *When Required.* On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:

- (i) fails to allow a reasonable time to comply;
- (ii) requires a person to comply beyond the geographical limits specified in Rule 45(c);
- (iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or
- (iv) subjects a person to undue burden.

(B) *When Permitted.* To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:

- (i) disclosing a trade secret or other confidential research, development, or commercial information; or

(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.

(C) *Specifying Conditions as an Alternative.* In the circumstances described in Rule 45(d)(3)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:

- (i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and
- (ii) ensures that the subpoenaed person will be reasonably compensated.

(e) Duties in Responding to a Subpoena.

(1) Producing Documents or Electronically Stored Information. These procedures apply to producing documents or electronically stored information:

(A) *Documents.* A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.

(B) *Form for Producing Electronically Stored Information Not Specified.* If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.

(C) *Electronically Stored Information Produced in Only One Form.* The person responding need not produce the same electronically stored information in more than one form.

(D) *Inaccessible Electronically Stored Information.* The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

(2) Claiming Privilege or Protection.

(A) *Information Withheld.* A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:

- (i) expressly make the claim; and
- (ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.

(B) *Information Produced.* If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

(g) Contempt.

The court for the district where compliance is required—and also, after a motion is transferred, the issuing court—may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

For access to subpoena materials, see Fed. R. Civ. P. 45(a) Committee Note (2013).

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

**PLAINTIFFS' MOTION TO COMPEL RESPONSE TO REQUEST FOR
PRODUCTION AND MOTION FOR SANCTIONS**

Pursuant to Federal Rules of Civil Procedure 34 and 37, Plaintiffs respectfully request that the Court compel the Defendant to fully respond to Plaintiff's Request for Production. Specifically, Plaintiffs propounded Request for Production to Defendant on November 12, 2018.

Request Number 19 requested that Defendant produce: "All documents, including emails, Skype, SMS messages concerning the business of Toke Oil and Gas, S.A. and DeepGulf, Inc., including, but not limited to, all correspondences between you and Bill Lott, Vincente Ximenes, Rodney Lewis, any government official in East Timor, and any official of a Non-Government Organization."

Defendant, while *pro se*, responded that “the documents referred to in paragraph 19 are part of the intellectual property demanded from Marc Moszkowski in Counts 1 and 2 of the Plaintiffs’ complaint and therefore can hardly be requested prior to the outcome of the lawsuit being known.”

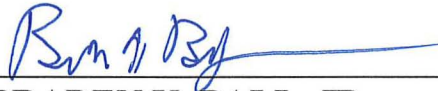
Subsequent to the appearance of counsel for Defendant’s in this case, counsel for Plaintiffs and Defendant agreed that the Defendant could supplement his discovery responses and the court entered an order on April 4, 2019 stating that “Defendant shall supplement his discovery responses in accordance with the Rules on or before May 15, 2019.”

On May 15, 2019, Plaintiffs’ counsel received an email from Defendant’s counsel which is attached hereto as Exhibit “A.” According to the affidavit of Rus Howard being filed simultaneously hereto, the only documents provided in the link were emails and Skype messages in which Mr. Howard was a sender, a recipient or copied on the original message. These emails numbered over 14,000.

Plaintiffs have evidence that there are indeed emails or communications that exists that would comply with the request made in request number 19. Such evidence is described further in Mr. Howard’s affidavit being filed simultaneously herewith.

WHEREFORE, Plaintiffs move that this Court enter an Order compelling that Defendant respond to Request for Production number 19, for sanctions and for such further relief as this Court deems just and proper.

RESPECTFULLY SUBMITTED,



BRADEN K. BALL, JR.

Florida Bar No. 89000

LITVAK BEASLEY WILSON & BALL, LLP

40 Palafox Place, Suite 300

Pensacola, Florida 32502

Telephone: (850) 432-9818

Facsimile: (850) 432-9830

Attorneys for Plaintiffs

Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(B)

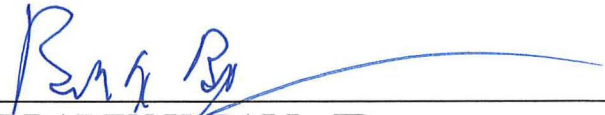
I CERTIFY that I personally communicated with counsel for Defendant regarding the relief sought herein.



BRADEN K. BALL, JR.

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Motion contains 339 words, exclusive of the case style, signature block and certificates of compliance/service.



BRADEN K. BALL, JR.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 11th day of July, 2019, a copy of the foregoing has been furnished to the Defendant's counsel, Mary Allie E. Boller (allie@bollerlawfirm.com) and Thomas R. Boller (tom@bollerlawfirm.com), via the Court's E-filing system.



BRADEN K. BALL, JR.

Braden Ball

From: Mary Allie Boller <allie@bollerlawfirm.com>
Sent: Wednesday, May 15, 2019 2:44 PM
To: Braden Ball
Cc: Thomas Boller; Katie Bahouth
Subject: Supplemental Discovery
Attachments: Detailed description by category of all messages.pdf; DOC560.PDF

Mr. Ball,

Attached please find supplemental documentation in response to Deep Gulf's Requests for Production, originally answered by my client on 13 December 2018.

The select emails attached hereto are submitted as apart of a sum of documents (as itemized in the previously provided 400 page summary, also attached hereto for your convenience), all of which Defendant reserves the right to use in support of his claims or defenses. These documents are available for your review at: [https://deepgulf.net/Message depository](https://deepgulf.net/Message%20depository)

You will find:

1. Software: you need to install the small program in order to view the email file (SysInfoTools-pst-file-viewer) or (setup-outlook-pst-viewer.exe), possibly easier to use, especially if you switch the view to vertical.
2. The message list
3. The Skype messages
4. The RRH emails (RRH are Howard's initials): this is a pst file, 3.7 gigabytes in size, similar to your own if you use Outlook. **DO NOT double-click** on it, it would open in Outlook and probably substitute to your own messages. You need to download the file to your computer in a separate directory, and open it from the software which you installed from 1

Credentials (username/password): hades / sisyphus

Please let me know if you have any questions or concerns.

--

MaryAllie E. Boller
 Attorney at Law
 Associate, Thomas R. Boller, P.C.
 150 Government St., Suite 1001
 Mobile, AL 36602
[251-433-2133](tel:251-433-2133) (work)
[251-433-2135](tel:251-433-2135) (fax)
 Licensed in Alabama and Florida

NOTICE: While this firm does not render tax advice, we nevertheless advise the following pursuant to IRS Circular 230 Disclosure: To comply with certain U.S. Treasury regulations, we inform you that, unless expressly stated otherwise, any U.S. federal tax advice contained in this communication, including attachments, was not intended or written to be used, and cannot be used, by any taxpayer for the purpose of avoiding any penalties that may be imposed on such taxpayer by the Internal Revenue Service. In addition, if any such tax advice is used or referred to by other parties in promoting, marketing or recommending any partnership or other entity, investment plan or arrangement, then (i) the advice should be construed as written in connection with the promotion or marketing by others of the transaction(s) or matter(s) addressed in this communication and (ii) the taxpayer should seek advice based on the taxpayer's particular circumstances from an independent tax advisor. This e-mail message and all attachments transmitted with it may contain legally privileged and confidential information intended solely for the use of the addressee. If the reader of this message is not the

Intended recipient, you are hereby notified that any reading, dissemination, distribution, copying, or other use of this message or its attachments is strictly prohibited. If you have received this message in error, please notify the sender immediately by telephone (251) 433-2133 or by electronic mail, and delete this message and all copies and backups thereof. Thank you.

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC.	*	
TOKE OIL AND GAS S.A,	*	
Plaintiffs,	*	
	*	
vs.	*	CASE NO. 3:18-cv-01466-MCR-MJF
	*	
MARC M. MOSZKOWSKI ,	*	
Defendant.	*	

**DEFENDANT’S MOTION TO COMPEL RESPONSE
TO REQUEST FOR PRODUCTION AND MOTION FOR SANCTIONS**

COMES NOW Defendant, Marc M. Moszkowski, by and through undersigned Counsel, pursuant to Federal Rules of Civil Procedure 34, and 37 and respectfully requests this Honorable Court compel the Plaintiff to fully respond to Defendant’s Request for Production, propounded 30 April 2019.

Request Number 3 requested that Plaintiff produce “Copies of the books and records of DeepGulf, Inc. from 15 September 2005 to the present.” Request Number 4 requested that Plaintiff produce “copies of all federal, state, county, and municipal tax returns of DeepGulf Inc., for 2004 through present.” Request Number 10 requested that Plaintiff produce “all bank statements, savings and loan association statements, credit union

statements, or statements from other financial institutions, including but not limited to Wells Fargo, since 2005 for accounts which either Plaintiff maintains any interest.”

Defendant’s Counsel attempted to resolve the discovery issues by letter to Plaintiffs’ Counsel dated 24 June 2019. Copy of correspondence attached hereto as Exhibit “A”.

On 9 July 2019 Counsel for Defendant confirmed Plaintiffs’ Counsel agreement to produce certain documents. Copy of email to Plaintiffs’ Counsel confirming phone conversation is attached hereto as Exhibit “B”.

On 11 July 2019, Plaintiffs’ imposed unreasonable restrictions on access to said documents. Copy of email from Plaintiffs’ Counsel is attached hereto as Exhibit “C”.

On 12 July 2019, Defendant’s Counsel yet again attempted to resolve the discovery issues by email. Copy of email to Plaintiffs’ Counsel is attached hereto as Exhibit “D”.

To date, Plaintiff has still failed and refused to produce any of the items requested. Depositions in this matter are set for 17 July 2019 and the information is necessary to adequately prepare for presentation of Defendant’s case.

WHEREFORE, Defendant would request this Honorable Court enter an Order compelling that Plaintiff respond to Requests for Production Numbers Three, Four and Ten, or that Defendant be granted whatever further or different relief to which the Court deems appropriate. Memorandum in Support hereof has been contemporaneously filed herewith.

Respectfully submitted this 16th day of July 2019.

s/ Mary Allie E. Boller
MARY ALLIE E. BOLLER
Florida Bar No. 0111906
Thomas R. Boller, P.C.
150 Government Street, Suite 1001
Mobile, Alabama 36602
Telephone: (251) 433-2133
Facsimile: (251) 433-2135
Attorneys for Defendant
allie@bollerlawfirm.com

s/ Thomas R. Boller
THOMAS R. BOLLER
Thomas R. Boller, P.C.
150 Government Street, Suite 1001
Mobile, Alabama 36602
Telephone: (251) 433-2133
Facsimile: (251) 433-2135
Attorneys for Defendant
tom@bollerlawfirm.com

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(B)

I CERTIFY that I personally communicated with the opposing party regarding the relief sought herein.

s/ Mary Allie E. Boller
MARY ALLIE E. BOLLER

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Motion contains 345 words, exclusive of the case style, signature block and certificates of compliance/service.

s/ Mary Allie E. Boller
MARY ALLIE E. BOLLER

CERTIFICATE OF SERVICE

I hereby certify that on this 16th day of July 2019, the foregoing was electronically filed with the Clerk of the Court using the CM/ECF system which will send notification of such filing to all counsel of record.

s/ Mary Allie E. Boller
MARY ALLIE E. BOLLER

Thomas R. Boller, P.C. Attorneys at Law

150 Government Street Suite 1001 Mobile, Alabama 36602
Telephone: (251) 433-2133 * Facsimile: 433-2135 * Cell: 422-6333

Thomas R. Boller **
tom@bollerlawfirm.com

Mary Allie E. Boller ***
allie@bollerlawfirm.com

Katie M. Bahouth
katie@bollerlawfirm.com

June 24, 2019

Advanced Via Email: braden@lawpensacola.com

Braden K. Ball, Jr., Esq.
Litvak Beasley Wilson & Ball, LLP
40 South Palafox Place, Third Floor
Pensacola, Florida 32502

RE: *Deep Gulf, Inc., et al. v. Marc M. Moszkowski*
United States District Court Case No. 3:18-cv-01466-MCR-MJF

Dear Braden,

I have reviewed Plaintiff's Answers to Interrogatories and Requests for Production, received by my office 29 May, and would note the following responses as deficient:

Number 2, wherein Defendant requests Plaintiffs "Produce copies of any and all communications between any board members of DeepGulf, Inc. from 15 September 2005 to the present," is not overbroad because the claims date back to the inception of DeepGulf, and is clearly relevant in a matter wherein claims and counterclaims are based upon actions and/or inactions of board members (which may be evidenced within communications thereof).

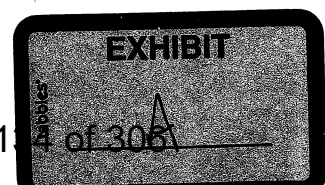
Number 3, wherein Defendant requests Plaintiffs "Produce copies of the books and records of DeepGulf, Inc. from 15 September 2005 to the present," is not overbroad nor irrelevant, as the books and records for the entirety of each of Plaintiffs' corporate existences seem to form the basis for the claims and counterclaims asserted herein. Florida statute 16.02(2)(b) requires a corporation allow a shareholder to inspect and copy accounting records of the corporation. Thus, Defendant, as the largest shareholder of DeepGulf, Inc., is entitled to inspect and copy DeepGulf's accounting books and records.

MAB/knb
Cc: Marc M. Moszkowski
lBall.mos3702

*Admitted in Alabama

†Admitted in Mississippi

‡Admitted in Florida



Deep Gulf, Inc., et al. v. Marc M. Moszkowski

United States District Court Case No. 3:18-cv-01466-MCR-MJF

Number 4, wherein Defendant requests Plaintiffs "Produce copies of all federal, state, county, and municipal tax returns of DeepGulf Inc., for 2004 through present," is not overbroad or irrelevant as both Plaintiffs and Defendants have asserted a claim for accountings, neither of which have been limited to a certain timeframe. Defendant would note that portions of tax returns from prior years have been made available in this discovery process, however, not even portions of the most recent years' tax returns have been made available for review. Florida statute 16.02(2)(d) requires a corporation allow a shareholder to inspect and copy any other books and records of the corporation. Thus, Defendant is entitled to inspect and copy all of DeepGulf's tax returns for the years not provided, specifically 2012-2018.

Number 5, wherein Defendant requests Plaintiffs "Produce any and all W-2s and 1099s produced by or for DeepGulf, Inc. for any agent, servant, employee or independent contractor for 2005 to present," is not overbroad nor irrelevant, as the main question forming the basis for the claims and counterclaims asserted herein is the location of the Plaintiffs' missing funds and how those funds may have been allocated. Defendant strongly believes that an accounting of all monies paid out by DeepGulf for any reason should be produced in order to ensure Plaintiffs did not bring this lawsuit with unclean hands. Defendant would argue he is entitled to inspect and copy these documents as DeepGulf's largest shareholder pursuant to Florida Statute 607.1602(b)-(d).

Number 6, wherein Defendant requests Plaintiffs "Produce and allow inspection of copies of all corporate records, including minutes of meetings of the board of DeepGulf, Inc. (including evidence of members in attendance and the existence of quorum), resolutions, and documents of any kind including but not limited to contracts, titles, evidence of ownership, tax returns, ratifications, undertakings and obligations of any kind," is not overbroad or irrelevant as Florida Statute 607.1602 specifically allows a corporate shareholder to inspect and copy all of the above. Thus, Defendant, as DeepGulf's largest shareholder, is entitled to inspect and copy all documents requested herein.

Number 7, wherein Defendant requests Plaintiffs "Identify the person(s) who maintained DeepGulf, Inc.'s financial books and records of account from 2005 to present," is obviously relevant as this action and counterclaim are founded on the management or mismanagement of funds purportedly belonging to DeepGulf, Inc.

Number 8, wherein Defendant requests Plaintiffs "Identify every person whom either owned an interest in, or was a member of, DeepGulf, Inc. from date of inception to present, and for each such person, indicate: a. the percentage interest owned; and b. the time period(s) during which such person owned said interest," is relevant and Defendant is entitled to the inspect and copy the record of shareholders pursuant to Florida Statute 607.1602(2)(c).

Number 9, wherein Defendant requests Plaintiffs "Identify each person who served as an officer and/or director of DeepGulf, Inc. from 2005 to present, and indicate: a. the period during which each served; b. the title of each; c. the nature of services performed by

Deep Gulf, Inc., et al. v. Marc M. Moszkowski

United States District Court Case No. 3:18-cv-01466-MCR-MJF

each; and d. the amount and nature of payment or other compensation received by each," is clearly relevant as this request is directly related to Plaintiffs' claim and Defendant's counterclaim in that it specifically deals with directors and related salaries. Defendant would also assert that he is entitled to inspect these records pursuant to Florida Statutes 607.1601-1602(2)(c).

Number 10, wherein Defendant requests Plaintiffs "Produce all bank statements, savings and loan association statements, credit union statements, or statements from other financial institutions, including but not limited to Wells Fargo, since 2005 for accounts which either Plaintiff maintains any interest," is not overbroad as the timeframe is necessary to perform a full accounting as has been requested by all parties. This request is also relevant for the above referenced reason, and Defendant, as a shareholder, is entitled to inspect the books and records of the corporation (such as banking records) pursuant to Florida Statute 607.1602(2).

Number 11, wherein Defendant requests Plaintiffs "Produce all annual reports filed in compliance with the requirements of Florida Statute § 607.1622," is relevant and, further, Defendant is legally entitled to inspect at least the most recent annual report per Florida Statute 607.1602(1).

Number 21 requests that Plaintiffs "State whether DeepGulf Inc. ever certified to the Department of Labor, or any other Governmental entity, that Marc M. Moszkowski was receiving a salary. If the answer is in the affirmative, state amount purportedly paid and dates said certifications were made and produce any and all documents evidencing the same." Plaintiffs' response states "See Attached." However, there is no such attachment.

Please cure the foregoing deficiencies by supplementing Plaintiffs' Responses within 10 (ten) days of the date of this letter. This letter has been sent pursuant to any and all applicable rules and customs prerequisite to the filing of a Motion to Compel.

Please also note that Florida Statute 607.1604 gives the Court the power to Order a corporation to produce for inspection and copying any items withheld from a shareholder who is otherwise entitled, at the expense of the corporation upon application of the shareholder. Further, Florida Statute 607.1604(3) states that "[i]f the court orders inspection or copying of the records demanded, it shall also order the corporation to pay the shareholder's costs, including reasonable attorney's fees, reasonably incurred to obtain the order and enforce its rights under this section." Defendant is entitled to inspect and copy the documents requested herein as the largest shareholder of DeepGulf, Inc. As such, in the event these records are not produced willingly by Plaintiffs in a timely manner, Defendant's Motion to Compel will include a request for attorney's fees.

Deep Gulf, Inc., et al. v. Marc M. Moszkowski

United States District Court Case No. 3:18-cv-01466-MCR-MJF

I look forward to hearing from you.

Very Truly Yours,

A handwritten signature in black ink, appearing to read 'Allie Boller', with a stylized flourish at the end.

Mary Allie E. Boller
Attorney at Law



Mary Allie Boller <allie@bollerlawfirm.com>

DeepGulf v. Moszkowski

Mary Allie Boller <allie@bollerlawfirm.com>
To: Braden Ball <braden@lawpensacola.com>
Cc: Thomas Boller <tom@bollerlawfirm.com>
Bcc: m.moszkowski@deepgulf.net

Tue, Jul 9, 2019 at 5:38 PM

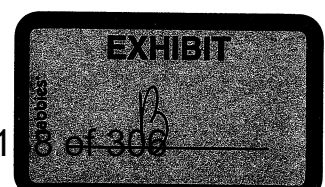
We will have someone available Thursday afternoon. Please let me know what time works best for Ms. Minor.

Just to be clear (as confirmed in our phone conversation regarding discovery disputes), in accordance with Fl. Stat. 607.1602(1)[referencing 607.1601(5)(d)-(e)], and Fl. Stat. 607.1602(2)(a)-(d), the following will be available for inspection and copying:

1. minutes of all shareholders' meeting and records of all action taken by shareholders without a meeting for the past 3 years;
2. written communications to the shareholders generally or all shareholders of a class or series within the past three years [including the financial statements furnished for the past 3 years under s. 607.1620;
3. excerpts from minutes of any meeting of the board of directors, records of any action of a committee of the board of directors while acting on behalf of the corporation, minutes of any meeting of the shareholders, and records of action taken by the shareholders or board of directors without a meeting;
4. accounting records of the corporation;
5. the record of shareholders; and
6. any other books and records.

Thanks.

[Quoted text hidden]





Mary Allie Boller <allie@bollerlawfirm.com>

FW: DG records

Braden Ball <braden@lawpensacola.com>
To: Mary Allie Boller <allie@bollerlawfirm.com>

Thu, Jul 11, 2019 at 10:31 AM

Allie:

Here is the location and some grounds rules imposed by Beth Minor primarily because she is in an H&R Block office and they have to follow many regulations.

Location:

Harbourtown

913 Gulf Breeze Pkwy #34

Gulf Breeze, FL 32561

PROCESS and Conduct

- Beth Minor will have a computer with software so they can look at DeepGulf records.
- Beth Minor has an H&R Block office which has restrictions on what non-employees can do and where they can go in the office.
- Contrary to previous information, that computer actually does have other client information on it. They will not be allowed to connect any device to the computer or digitally copy files. They are not allowed to look at other files on the computer or copy anything electronically.
- The files are digital and they can look at the DG records and print paper copies.
- If they wish to employ her services to instruct them on how to use the software they can engage her to do so at the rate of \$75 per hour.
- Computer will connect to a printer and she has a copier in the office. Cost 50 cents per sheet payable to her Breeze Bookkeeping business.
- They will give assurance that they will pay their bill before leaving the office with any documents. We not burden her with the task of seeking payment from the Defendant at a later date.
- There may arise an issue that is not foreseen. If they contest the procedure or present an issue, the procedure will stop, they will be asked to leave. We will resolve the complaint and resume on another day.
- If Mr. Moszkowski disrupts her place of business, with any objectionable behavior (at sole discretion of DeepGulf) the process will be stopped and they will be asked to leave.

- She will have DeepGulf tax returns for 2013 to 2017, but 2018 has not been filed.
- Saltmarsh does have some returns for prior to 2013. They can make copies at \$50 per return and can be picked up at their office.

- If they object to these procedures or anything they should say so now! If they object, then we will cancel today and reschedule after resolving objections.

- Rus Howard will be there and we will read and video these points of conduct in Beth's office prior to start.

Please note that we have moved. Our new address is in the signature block below

Braden K. Ball, Jr., Esquire

Litvak Beasley Wilson & Ball, LLP
40 South Palafox Place, Third Floor
Pensacola, Florida 32502
Office-850-432-9818
Facsimile-850-432-9830
braden@lawpensacola.com
www.lawpensacola.com

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Mary Allie Boller <allie@bollerlawfirm.com>

FW: DG records

Mary Allie Boller <allie@bollerlawfirm.com>
 To: Braden Ball <braden@lawpensacola.com>
 Cc: Thomas Boller <tom@bollerlawfirm.com>

Fri, Jul 12, 2019 at 3:16 PM

Braden,

In an attempt to resolve this discovery issue prior to filing a motion with the Court, I would like to formally request that Plaintiffs respond to Defendant's Requests for Production Number 3 (requesting books and records), Number 4 (requesting tax returns) and Number 10 (requesting all corporate bank statements) by end of business Monday, July 15- so as to allow Defense Counsel to adequately prepare for depositions set for July 17-18. We would prefer these responses simply be digital copies, uploaded to a zip drive.

I would make this request based upon the fact that this information is relevant and discoverable, rather than pursuant to Fl. Stat. 607 (which allows a shareholder the right to inspect and copy all corporate financial records as a matter of law, and which further notes that a director has not only has the right to inspect and copy corporate records but, also, should that director have to petition a Court to enforce these rights, the Court may not only require the copying costs to fall on the corporation but may also award attorney's fees).

Based upon the email setting out "ground rules" for our agreed upon appointment for inspecting and copying DeepGulf's books and records (wherein Defendant was willing to travel to Pensacola to obtain these responses), it is clear that Plaintiffs can easily access the requested tax returns and accounting records- as they were readily available for our review until unreasonable conditions were imposed in bad faith just hours prior to our set meeting time. Defendants are willing to limit the scope of Request Numbers 3,4 & 10 to the years 2008-2013, so as to reconcile any overbreadth objection you may have.

I look forward to hearing from you.

Thanks,

Allie Boller

[Quoted text hidden]

--

MaryAllie E. Boller

Attorney at Law

Associate, Thomas R. Boller, P.C.

150 Government St., Suite 1001

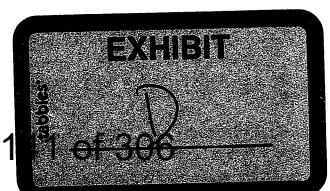
Mobile, AL 36602

251-433-2133 (work)

251-433-2135 (fax)

Licensed in Alabama and Florida

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**UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF INC and TOKE OIL AND
GAS S.A.,

Plaintiffs,

v.

Case No. 3:18-cv-1466-TKW/MJF

MARC M. MOSZKOWSKI,

Defendant.

_____ /

ORDER

This matter is before the court on Plaintiffs’ motion to compel (Doc. 94), Defendant’s motion to compel (Doc. 98), and the Plaintiffs’ response to the Defendant’s motion to compel (Doc. 102).

As to Plaintiffs’ motion to compel (Doc. 94), under the local rules for the Northern District of Florida, “a party who opposes [a] motion must file a memorandum in opposition. Unless otherwise ordered, the deadline for a memorandum opposing a motion . . . is 14 days after service of the motion, without a 3-day extension based on electronic service of the motion.” N.D. Fla. Loc. R. 7.1(E).

Plaintiffs filed their motion on July 11, 2019. (Doc. 94 at 4). More than fourteen days have passed, and Defendant has not filed a response. If Defendant

opposes the motion to compel, he must file a memorandum in opposition **on or before August 2, 2019.**

A failure by a party to respond in opposition to a motion will cause this court to presume that the relevant party does not oppose the motion. *See Stenlund v. Marriott Int’l, Inc.*, 172 F. Supp.3d 874, 887 (D. Md. 2016) (“In failing to respond to [defendant’s] argument, Plaintiff concedes the point.”); *Kissi v. Panzer*, 664 F. Supp.2d 120, 123 (D.D.C. 2009) (“Because the plaintiff’s opposition fails to address the defendants’ arguments, the Court may treat the defendant’s motions as conceded.”). Further, Rule 7.1(H) of the Local Rules for the Northern District of Florida authorizes the court to “grant a motion by default if an opposing party does not file a memorandum as required by this rule.” N.D. Fla. Loc. R. 7.1(H).

Turning to the Defendant’s motion to compel and the Plaintiffs’ response thereto, the undersigned notes that the Plaintiffs responded to the motion to compel stating that they have turned the records over to the Defendant pursuant to an agreement between the parties that would keep these records “confidential.” Based on the Plaintiffs’ response, it appears that the issue has been resolved and the motion is now moot. If not, Defendant can promptly file another motion to compel that states with particularity any outstanding issues.

Accordingly, it is **ORDERED**:

1. If Defendant opposes Plaintiffs' motion to compel (Doc. 94), he must file a response in opposition **on or before August 2, 2019**. Failure to file a response in opposition to Plaintiffs' motion to compel by August 2, 2019, will cause this court to presume that Defendant does not oppose this motion and does not dispute the merits of the motion.
2. Defendant's motion to compel (Doc. 98) is **DENIED** because it appears to be moot.

SO ORDERED this 31st day of July, 2019.

/s/ Michael J. Frank

Michael J. Frank

United States Magistrate Judge

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-TKW-MJF

MARC M. MOSZKOWSKI,

Defendant.

**PLAINTIFFS' MOTION TO COMPEL RESPONSE TO REQUEST FOR
PRODUCTION AND MOTION FOR SANCTIONS**

Pursuant to Federal Rules of Civil Procedure 34 and 37, Plaintiffs respectfully request that the Court compel the Defendant to fully respond to Plaintiffs' Request for Production. Specifically, Plaintiffs propounded Request for Production to Defendant on November 12, 2018.

Request Number 18 requested that Defendant produce: "Copies of all of Toke Oil and Gas, S.A.'s financial, bookkeeping or transaction records from the date that you became involved with Toke Oil and Gas, S.A. to the present date."

Defendant, while *pro se*, responded that "Marc Moszkowski has no knowledge of any clause in the agreement between DeepGulf, Inc. and Toke Oil and

Gas S.A. to acquire a majority interest in Toke Oil and Gas, S.A. that would have required prior Toke Oil and Gas, S.A. information to be communicated to DeepGulf, Inc. The Plaintiffs are hereby requested by Marc Moszkowski to produce supporting evidence that he should comply with the request of paragraph 18.”

Subsequent to the appearance of counsel for Defendant’s in this case, counsel for Plaintiffs and Defendant agreed that the Defendant could supplement his discovery responses and the court entered an order on April 4, 2019 stating that “Defendant shall supplement his discovery responses in accordance with the Rules on or before May 15, 2019.”

On May 15, 2019, Plaintiffs’ counsel received an email from Defendant’s counsel which is attached hereto as Exhibit “A.” According to the affidavit of Rus Howard previously filed [Doc. 96], the only documents provided in the link were emails and Skype messages in which Mr. Howard was a sender, a recipient or copied on the original message. These emails numbered over 14,000.

All of the emails in that production were communications that were between Defendant and Mr. Howard or that Mr. Howard was copied on. Based upon the failure of the Defendant to respond at all to the Request for Production made in Request Number 19 (communication with third parties), Plaintiffs filed “Plaintiffs’ Motion to Compel Response to Request for Production and Motion for Sanctions” [Doc. 94] and “Plaintiffs’ Memorandum in Support [of] Motion to Compel Response

to Request for Production and Motion for Sanctions.” [Doc. 95]. After receiving these Motions, counsel for Defendant sent the email attached as Exhibit “B” on July 12, 2019. The documents which were communications between the Defendant and third parties numbered over 18,000. The documents were not in a .pst format, as were emails that were provided before, and were not searchable, requiring Plaintiffs to click of each email to be able to review them. After relaying this issue to counsel for Defendant, Defendant finally produced documents in a searchable .pst format on July 22, 2019. This was subsequent to Defendant’s deposition which was held on July 17, 2019.

Plaintiffs have not fully searched the over 18,000 emails produced, but it is clear from the emails produced that Defendant has documents that would be responsive to Request number 18 and has intentionally withheld them from Plaintiffs. The most damning email to date is one between Defendant and Rodney Lewis dated January 5, 2018. The email, which is attached hereto as Exhibit “C” states in pertinent part “I doubt they are dumb enough to believe that I could have received \$1,000,000 from toke, but for as long as I don’t send them the documentation they can pretend to think that I received the money, which buys time for Rus...” (emphasis added). Furthermore, the email states, “You could say that I could send them the documentation, but I don’t think it can prove

anything..." (emphasis added). Finally, the email says, "**The documentation consists exclusively of Excel spreadsheets.**" (emphasis added).

After being presented with this evidence, Defendant was able to locate four spreadsheets, which he apparently had on January 5, 2018. See email attached as Exhibit "D".

WHEREFORE, Plaintiffs move that this Court enter an Order compelling that Defendant respond to Request for Production number 18, for sanctions and for such further relief as this Court deems just and proper.

RESPECTFULLY SUBMITTED,



BRADEN K. BALL, JR.

Florida Bar No. 89000

LITVAK BEASLEY WILSON & BALL, LLP

40 Palafox Place, Suite 300

Pensacola, Florida 32502

Telephone: (850) 432-9818

Facsimile: (850) 432-9830

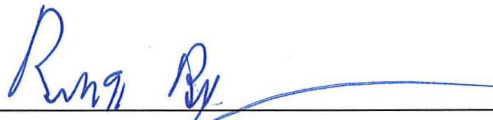
Attorneys for Plaintiffs

Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(B)

I CERTIFY that I personally communicated with counsel for Defendant regarding the relief sought herein.



BRADEN K. BALL, JR.

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Motion contains 673 words, exclusive of the case style, signature block and certificates of compliance/service.



BRADEN K. BALL, JR.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 2nd day of August, 2019, a copy of the foregoing has been furnished to the Defendant's counsel, Mary Allie E. Boller (allie@bollerlawfirm.com) and Thomas R. Boller (tom@bollerlawfirm.com), via the Court's E-filing system.



BRADEN K. BALL, JR.

**Braden Ball**

From: Mary Allie Boller <allie@bollerlawfirm.com>
Sent: Wednesday, May 15, 2019 2:44 PM
To: Braden Ball
Cc: Thomas Boller; Katie Bahouth
Subject: Supplemental Discovery
Attachments: Detailed description by category of all messages.pdf; DOC560.PDF

Mr. Ball,

Attached please find supplemental documentation in response to Deep Gulf's Requests for Production, originally answered by my client on 13 December 2018.

The select emails attached hereto are submitted as apart of a sum of documents (as itemized in the previously provided 400 page summary, also attached hereto for your convenience), all of which Defendant reserves the right to use in support of his claims or defenses. These documents are available for your review at: <https://deepgulf.net/Message depository>

You will find:

1. Software: you need to install the small program in order to view the email file (SysInfoTools-pst-file-viewer) or (setup-outlook-pst-viewer.exe), possibly easier to use, especially if you switch the view to vertical.
2. The message list
3. The Skype messages
4. The RRH emails (RRH are Howard's initials): this is a pst file, 3.7 gigabytes in size, similar to your own if you use Outlook. **DO NOT double-click** on it, it would open in Outlook and probably substitute to your own messages. You need to download the file to your computer in a separate directory, and open it from the software which you installed from 1

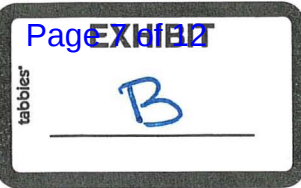
Credentials (username/password): hades / sisyphus

Please let me know if you have any questions or concerns.

--

MaryAllie E. Boller
 Attorney at Law
 Associate, Thomas R. Boller, P.C.
 150 Government St., Suite 1001
 Mobile, AL 36602
[251-433-2133](tel:251-433-2133) (work)
[251-433-2135](tel:251-433-2135) (fax)
 Licensed in Alabama and Florida

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**Braden Ball**

From: Mary Allie Boller <allie@bollerlawfirm.com>
Sent: Friday, July 12, 2019 2:06 PM
To: Braden Ball
Cc: Thomas Boller
Subject: Supplement to RFP No. 19 [DeepGulf, Inc. v. Moszkowski]

Braden,

As noted by my father in email dated 8 July, your request as to RFP No. 19 (which, also dated 8 July, requested additional documentation by 10 July) was intended to be supplemented as soon after 10 July as possible, as Mr. Moszkowski was traveling July 9-10 and would not be able to start compiling the supplemental emails until he arrived to the U.S.

While my client's position remains that all of the communications requested pursuant to RFP No. 19 "concerning the business of Toke Oil and Gas S.A. and DeepGulf Inc." have been produced, he has made available for your review any and all communications in his possession with the following third parties: Bill Lott, Vincente Ximenes, Rodney Lewis, and government officials in East Timor.

Based upon the nature of the communications with any government official in East Timor, and their strict non-disclosure policies (as evidenced by the correspondence sent to you 9 July), we must request absolute confidentiality regarding messages exchanged with those individuals.

All of the above referenced documents may be accessed with the same credentials as provided to you previously at <https://deepgulf.net/Message repository>

Please let me know if there are any issues accessing the documents.

Thank you,

Allie

--

MaryAllie E. Boller
Attorney at Law
Associate, Thomas R. Boller, P.C.
150 Government St., Suite 1001
Mobile, AL 36602
[251-433-2133](tel:251-433-2133) (work)
[251-433-2135](tel:251-433-2135) (fax)
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Braden Ball**EXHIBIT**

tabbies

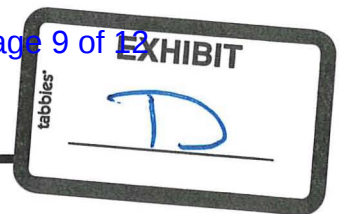
C

Subject: FW: Toke accounts**From:** m.moszkowski@deepgulf.net [mailto:m.moszkowski@deepgulf.net]**Sent:** Friday, January 05, 2018 9:59 AM**To:** RODNEY LEWIS (rod@rodlewis.com.au) <rod@rodlewis.com.au>**Subject:** Toke accounts

I've been working on the Toke accounts again.

1. I don't think that despite their loud demands (which they make as unacceptable as possible) Rus and Tom want me to send them the Toke documents, for a simple reason: I doubt they are dumb enough to believe that I could have received \$1,000,000 from Toke, but for as long as I don't send them the documentation they can pretend they think I received the money, which buys time for Rus, who makes it very difficult for anyone to study the DeepGulf accounts and doesn't seem to be prepared to explain his expenses. You could say that I could send them the documentation, but I don't think it can prove anything, since it can be doctored any way you want and they would not fail to say so. The documentation consists exclusively of Excel spreadsheets.
2. Despite the contractual 10% of EGS' invoices that DeepGulf was to be paid by Toke, I find that I sent DeepGulf between 13.10% and 14.35% of the amounts paid to to EGS, depending on the actual funds received by DeepGulf, which Rus refuses to confirm. That's between \$307,000 and \$428,000 more than the contractual obligation Toke had toward DeepGulf.

M

**Braden Ball**

From: Thomas Boller <tom@bollerlawfirm.com>
Sent: Monday, July 29, 2019 3:28 PM
To: Braden Ball
Subject: Re: Toke accounts

Sorry, I've been in trial preparation for tomorrow;

After reviewing the 5 January email with my client, we both agree that the content is not demonstrative of information being withheld from your client, but merely Mr. Moszkowski's observation at the time that Mr. Howard was (and is) motivated by wrongful intentions. However, out of an abundance of caution, Mr. Moszkowski reviewed the information related to the Toke financial data, and located two files; (1) spreadsheet of funds received 2008-2010, (2) three separate spreadsheets purporting to be Toke expenses for 2008-2010. These files were created by Malou, the secretary for Toke, at Mr. Moszkowski's request, and the data is reflected in the emails sent to Mr. Howard on 26 January 2011 and 25 May 2012.

Given the issue concerning whether the purchase of Toke by DeepGulf was actually completed, and the fact that the period covered by this information precedes any alleged purchase, I believe it is necessary and prudent that your client consent to a confidentiality agreement with the same terms as that agreed to by Mr. Moszkowski as a condition precedent to producing the digital copy of the DeepGulf records.

Also please note that the PST file provided by Mr. Howard contains only emails that had been formerly provided to him in the 18,271 messages. There is no correspondence between the other members of the board, despite numerous requests. Please let me know when we may expect that production.

On Mon, Jul 29, 2019 at 2:00 PM Braden Ball <braden@lawpensacola.com> wrote:

I have not received a response to this email nor to my 2 phone calls of last week (I know that there was a response via email regarding Mr. Lott not voluntarily providing documents at his deposition). I am preparing to file a Motion to Compel and for Sanctions. Let me know if you have time to discuss this Motion prior to my filing it. Thanks.

Please note that we have moved. Our new address is in the signature block below

Braden K. Ball, Jr., Esquire

Litvak Beasley Wilson & Ball, LLP
40 South Palafox Place, Third Floor
Pensacola, Florida 32502
Office-850-432-9818
Facsimile-850-432-9830

braden@lawpensacola.com
www.lawpensacola.com

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From: Braden Ball
Sent: Friday, July 26, 2019 2:34 PM
To: Thomas Boller <tom@bollerlawfirm.com>
Cc: Mary Allie Boller <allie@bollerlawfirm.com>
Subject: FW: Toke accounts

Please have your client provide the Toke documents described in this email ASAP. It seems as if he (not you) has been intentionally hiding documents.

Please note that we have moved. Our new address is in the signature block below

Braden K. Ball, Jr., Esquire
Litvak Beasley Wilson & Ball, LLP
40 South Palafox Place, Third Floor
Pensacola, Florida 32502
Office-850-432-9818
Facsimile-850-432-9830
braden@lawpensacola.com
www.lawpensacola.com

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From: Rus Howard <rus@holdg.com>
Sent: Friday, July 26, 2019 2:25 PM
To: Braden Ball <braden@lawpensacola.com>
Subject: FW: Toke accounts

From: m.moszkowski@deepgulf.net [mailto:m.moszkowski@deepgulf.net]
Sent: Friday, January 05, 2018 9:59 AM
To: RODNEY LEWIS (rod@rodlewis.com.au) <rod@rodlewis.com.au>
Subject: Toke accounts

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M

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--
 Thomas R. Boller
 Attorney at Law
 Thomas R. Boller, P.C.
 150 Government Street, Suite 1001
 Mobile, Alabama 36602
 251-433-2133
 251-433-2135 (Fax)
 *Licensed in Alabama and Mississippi

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**UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF INC and TOKE OIL AND
GAS S.A.,

Plaintiffs,

v.

Case No. 3:18-cv-1466-TKW/MJF

MARC M. MOSZKOWSKI,

Defendant.

_____ /

ORDER

This matter is before the court on Plaintiffs' motion to compel. (Doc. 94). Plaintiffs sought to compel Defendant to produce documents responsive to Plaintiffs' Request 19. Plaintiffs propounded this Request to Defendant on November 12, 2018, while Defendant was proceeding *pro se*. (Doc. 94 at 1). Subsequently, Defendant obtained counsel. On May 15, 2019, Defendant's counsel provided to Plaintiffs' counsel over 14,000 emails that purportedly were responsive to requests for documents. (Doc. 94 at 2). Plaintiffs, however, filed an affidavit indicating that Defendant had not produced all documents responsive to this request. (Doc. 96). In response, Defendant stated that on July 12, 2019, he produced additional records. (Docs. 104 at 7; 106 at ¶ 3). Based on Defendant's response, it appears that the issue has been resolved and the motion to compel is now moot. If

not, Plaintiffs can promptly file another motion to compel that states with particularity any outstanding issues.

Accordingly, it is **ORDERED** that Plaintiffs' motion to compel (Doc. 94) is **DENIED** without prejudice.

SO ORDERED this 7th day of August, 2019.

/s/ Michael J. Frank

Michael J. Frank

United States Magistrate Judge

**UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC., and TOKE OIL AND
GAS, S.A.,

Plaintiffs,

v.

Case No. 3:18-cv-1466-TKW/MJF

MARC M. MOSZKOWSKI,

Defendant.

_____ /

ORDER

This matter is before the court on Plaintiffs' motion to compel, (Doc. 104), and the Defendant's response thereto. Plaintiff sought to compel Defendant to produce documents responsive to Plaintiffs' Request for Production Number 18. Plaintiffs served this request on November 12, 2018, while Defendant was proceeding *pro se*. (Doc. 104 at 1). Subsequently, Defendant obtained counsel. On May 15, 2019, Defendant's counsel provided to Plaintiffs' counsel over 14,000 emails that purportedly were responsive to Plaintiffs' request for documents. (Doc. 104 at 2).

On July 12, 2019, Defendant supplemented his response and provided over 18,000 documents. Initially, these documents were not in a format that was searchable. Plaintiffs' counsel informed Defendant's counsel of this issue, and

Defendant's counsel provided the documents in a searchable format. These documents indicated that Defendant may have withheld documents responsive to Request for Production Number 18. Thus, Plaintiffs requested additional documents responsive to Request 18, and Defendant's counsel provided Plaintiffs with excel spreadsheets that were responsive to this request at issue.

Although Plaintiffs had not fully searched the documents produced, Plaintiffs' counsel filed this motion to compel stating that Plaintiffs believe that there *might be* more documents responsive to Request Number 18. In his response, Defendant states that he has provided the excel spreadsheets referenced above and that all responsive documents.

Based on Defendant's response, it appears that the issue has been resolved and the motion to compel is now moot. If not, Plaintiffs can promptly file another motion to compel that states with particularity any outstanding issues.

Accordingly, it is **ORDERED** that Plaintiffs' motion to compel (Doc. 104) is **DENIED** without prejudice.

SO ORDERED this 26th day of August, 2019.

/s/ Michael J. Frank

Michael J. Frank

United States Magistrate Judge

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC.	*	
TOKE OIL AND GAS S.A,	*	
Plaintiffs,	*	
	*	
vs.	*	CASE NO. 3:18-cv-01466-TKW-MJF
	*	
MARC M. MOSZKOWSKI ,	*	
Defendant.	*	

MEMORANDUM IN SUPPORT OF DEFENDANT’S
MOTION FOR SUMMARY JUDGMENT

COMES NOW, Marc M. Moszkowski (hereinafter “Defendant”) by and through undersigned counsel, and submits this memorandum in support of his Motion for Summary Judgment.

STATEMENT OF UNDISPUTED MATERIAL FACTS

1. In September 2004, Marc Moszkowski and Rustin Howard agreed to form a company together with Rustin Howard to fund it. (Depo. Marc Moszkowski 32:23 and 34:24 (17 July 2019)).
2. DeepGulf, Inc. was founded on 1 December 2004. (Depo. Marc Moszkowski 32:23 and 34:24 (17 July 2019)).
3. On or about 1 August 2005, Plaintiff DeepGulf and Defendant entered into an agreement wherein Defendant agreed to perform certain work

for Plaintiffs in exchange for reasonable compensation ranging from \$120,000.00 per year to \$132,000.00 per year. (See Exhibits “A”- “B”, Exhibit “C” at p. 5, § 2, ¶¶1-2, and Exhibits “G”-“I”, “K”; see also Exhibit “M”).

4. "Noncompetition. Nondisclosure and Developments Agreements" were signed by both Marc Moszkowski and Rustin Howard on 15 September 2005. (Depo. Marc Moszkowski 48:10-16, 49:3-13, and 217:2-5 (17 July 2019)).
5. In early 2008 Toke Oil and Gas S.A. (hereinafter “Toke”) was incorporated in East Timor. Its owners and directors were in equal parts Marc Moszkowski (President Director General), Vicente Ximenes (Vice- President Director General), and Ernesto Gino Favaro (President Director General). (Depo. Marc Moszkowski 76:2-12 (17 July 2019)).
6. On 12 May 2008, a contract was signed by Rustin Howard according to which DeepGulf received from Toke 10% of invoicing to Toke by major subcontractor EGS. (Depo. Rustin Howard 129:10-15 (19 July 2019)).
7. Over the life of the company, Gino Favaro and Vicente Ximenes received together \$959,764.22 net from Toke, while Marc Moszkowski

received \$345,000.00 between January 2010 and November 2011, the latter salary having been granted to Marc Moszkowski by Vicente Ximenes after deduction from Vicente's salaries. (Depo. Marc Moszkowski 142:17-24, 143:6-8, 143:17-22, and 147:15-17 (17 July 2019)).

8. Toke was in charge of all activities, from contract negotiation to the last payment, through the execution of the contracts. (Depo. Marc Moszkowski 84:3-10 and 86:22-25 (17 July 2019)).
9. DeepGulf was not involved in operations, only in fund raising. Rustin Howard was in charge of raising capital for DeepGulf. (Depo. Marc Moszkowski 191:12-14 (17 July 2019)).
10. On 27 October 2010, Vicente Ximenes sold his 1/3 stock in Toke to DeepGulf for \$1. On 13 December 2012, Marc Moszkowski sold his 1/3 stock in Toke to DeepGulf for \$100. On the same day, it was agreed that Vicente Ximenes would sell his last 1/3 of stock in Toke to DeepGulf for \$100,000. However, he never received the amount. (Depo. Marc Moszkowski 114:7-10 (17 July 2019)).
11. During the life of the company, communication between Marc Moszkowski and Rustin Howard was intensive. They exchanged

14,584 emails and attachments, plus 3,687 Skype messages. (Depo. Marc Moszkowski 43:18-22, 66:23-67:1, 80:13-15, 83:2-7, 89:21-22, 99:2-17, 153:17-20 and 101:7-9 (17 July 2019)).

12. Rustin Howard was specifically informed about all salaries paid by Toke to Marc Moszkowski, including but not limited to an email by Defendant dated 6 March 2014 recapitulating all monies personally received by Defendant in France from Toke (*See* email attached hereto as Exhibit “F”). Plaintiffs confirmed receipt of said email, as the same was contained within Plaintiffs own discovery production in July 2019.
13. Marc Moszkowski has not been paid salary since March 2013. (Depo. Marc Moszkowski 199:9-10 (17 July 2019)).

STANDARD

The Court, in reviewing a motion for summary judgment, is guided by the standard set forth in Federal Rule of Civil Procedure 56(c), which states, in relevant part, as follows:

The judgment sought shall be rendered forthwith if the pleadings, depositions, answers to interrogatories and admissions on file, together with the affidavits, if any, show that there is no genuine issue as to any material fact and that the moving party is entitled to judgment as a matter of law.

Fed. R. Civ. P. 56(c).

The moving party bears the burden of meeting this exacting standard. *Celotex Corp. v. Catrett*, 477 U.S. 317, 322-323, 106 S. Ct. 2548, 91 L. Ed. 2d 265 (1986). That is, "[t]he moving party bears 'the initial responsibility of informing the . . . [C]ourt of the basis for its motion, and identifying those portions of the 'pleadings, depositions, answers to interrogatories, and admissions on file, together with the affidavits, if any, which it believes demonstrate the absence of a genuine issue of material fact.'" *U.S. v. Four Parcels of Real Property*, 941 F.2d 1428, 1437 (11th Cir. 1991) (quoting *Celotex*, 477 U.S. at 323). In assessing whether the moving party has satisfied this burden, the Court is required to view the evidence and all factual inferences arising therefrom in the light most favorable to the non-moving party. *Batey v. Stone*, 24 F.3d 1330, 1333 (11th Cir. 1994).

Despite these presumptions in favor of the non-moving party, the Court must be mindful of the purpose of Rule 56 which is to eliminate the needless delay and expense to the parties and to the Court occasioned by an unnecessary trial. *Celotex*, 477 U.S. at 322-323. Consequently, the non-moving party cannot merely rest upon his bare assertions, conclusory allegations, surmises or conjectures. *Id.* As the Supreme Court noted in *Celotex*:

[T]he plain language of Rule 56(c) mandates the entry of summary judgment . . . against the party who fails to make a showing sufficient to establish the existence of an element essential to the party's case, and on which the party will bear the burden of proof at trial. In such a situation, there can be "no genuine issue as to any material fact," since a complete failure of proof concerning an essential element of the non-moving party's case necessarily renders all other facts immaterial.

Id. at 322-323.

Thus, the mere existence of a scintilla of evidence in support of the non-moving party's position is insufficient. There must be evidence on which the jury could reasonably find for the non-movant. *McLean v. GMAC Mortg. Corp.*, 595 F. Supp. 2d 1360, 1363-64 (S.D. Fla. 2009)(citing *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 251, 106 S. Ct. 2505, 91 L. Ed. 2d 202 (1986)).

Summary judgment in favor of the movant is proper if, after adequate time for discovery, the motion's opponent fails to establish the existence of an element essential to his or her case and as to which he or she will bear the burden of proof at trial. *Celotex*, 477 U.S. at 322-23.

ARGUMENT

I. Defendant is Entitled to Summary Judgment as to Count II of Defendant's Counter-Claim, Breach of Contract.

In order to recover for breach of contract, a plaintiff must prove by a preponderance of the evidence: (1) the existence of a valid contract; (2) that

the plaintiff fulfilled its obligations under the contract; (3) a breach by the defendant; and (4) damages. *See Partylite Gifts, Inc. v. MacMillan*, 895 F. Supp. 2d 1213 (M.D. Fla. 2012).

The parties entered into an agreement on or about 1 August 2005 wherein Defendant was to perform work for Plaintiff, DeepGulf, Inc. for a salary of approximately \$120,000.00. (See Offer of Employment, attached hereto as Exhibit "A"; see also Employment Confirmation Letter attached hereto as Exhibit "B" and Letter to Department of Homeland Security¹ attached hereto as Exhibit "C"). Defendant performed all work to which he was obligated under the contract. Plaintiff, DeepGulf, as a contracting party, neglected, refused, and/or failed to do, perform, or furnish, after making and entering into the contract, the consideration in substance and in fact agreed on, as Defendant did not receive a salary between 1 August 2005 through 31 December 2007, nor between 1 April 2013 through present (despite Plaintiffs' certification to the Department of Labor² (see Labor Condition Application, attached hereto as Exhibit "D") that said salary would continue to be paid.)

¹ Page 5, § 2, ¶1-2; Referencing Job offer letter dated 1 August 2005 and Employment agreement dated 1 August 2005 (attached hereto as Exhibit "K").

² Certifying that for the period of employment of 07/04/2011-07/03/2014, Plaintiff, DeepGulf, would pay Defendant a salary of \$103,397.00-\$132,000.00. Defendant did not receive said salary for the years 2013 or 2014. Further, Plaintiff has continued to serve as President for years 2015, 2016, 2017, 2018 and 2019 without pay.

Defendant is still President of DeepGulf, Inc. and still entitled to a salary. However, none has been paid since March 2013. (Depo. Marc Moszkowski 186:7-12 and 199:8-9 (17 July 2019)).

Defendant has suffered substantial monetary damages in the form of lost wages due to Plaintiffs' willful and continuing breach of contract.

There is no genuine issue as to any material fact concerning Defendant's claim under Count II of his Counter-Claim for Breach of Contract. Thus, Summary Judgment is due to be granted in favor of Defendant.

II. Defendant is Entitled to Summary Judgment as to Count III of Defendant's Counter-Claim, Work and Labor Done.

Defendant has served as the President of Plaintiff corporations for over 14 years (1 August 2005 through present). (*See* Exhibit "B"; *see also* Exhibit "C" at p. 5, § 2, ¶2 (noting the existence of an employment agreement) and at p. 8, ¶ 8 (noting the existence of an affidavit executed by Rustin Howard concerning the past performance and intent of the DeepGulf Board to continue to employ Mr. Marc Moszkowski³)).⁴

³ Proposed validity period would have been sometime after the letter dated 15 August 2014.

⁴ Employment agreement attached hereto as Exhibit "K".

In addition to extensive travel and business dealings on behalf of Plaintiffs, and in performance of his duties related to his employment with Plaintiffs, Defendant also conducted numerous surveys, acted as project manager over several underwater pipeline related projects, and negotiated commissions in favor of Plaintiff, DeepGulf. (Depo. Rustin Howard 129:10-15 (19 July 2019)).

Defendant is owed monies for work and labor done between 1 August 2005 through 31 December 2007, and 1 April 2013 through present, at the rate of \$132,000.00 per year.

In the alternative, Defendant is owed, at minimum, the salary Plaintiffs verified to the U.S. Government that they would pay Defendant pursuant to visa applications for the time periods of 1 August 2005 through 31 December 2007, and 1 April 2013 through 10 February 2017. (*See* I-29 Petition attached hereto as Exhibit "G", at p. 5, ¶¶ 8,10, and I-29 Petition attached hereto as Exhibit "I", at p.3, ¶¶ 6,8 and I-797A, Notice of Action (granting DeepGulf, Inc.'s petition for Defendant H-1B visa for the time period of 4 July 2014 through 10 February 2017) attached hereto as Exhibit "L"; *see also*, Letter to

U.S. Citizenship and Immigration Services, attached hereto as Exhibit “H”, at p.1, ¶1⁵ and p.2, ¶3⁶).

There is no dispute as to the fact that Defendant has not received any form of payment from Plaintiffs since March 2013. (Depo. Marc M. Moszkowski 199:8-9 (17 July 2019)). Defendant has established, and Plaintiffs have not denied, that Defendant is owed all unpaid salaries referenced herein. Thus, summary judgment is due to be granted in favor of Defendant as to Count III of Defendant’s Counter-Claim.

III. Defendant is Entitled to Summary Judgment as to Count II of Plaintiffs’ Complaint, Breach of Non-Competition Agreement.

Plaintiffs claim that Defendant breached his non-compete agreement in the form of violating the provisions under “paragraph 1. Non-competition”(Doc. 1, p. 27), “Paragraph 2. Non-solicitation of Customers” (Doc. 1, p. 28), “Paragraph 5 Non-disclosure” (Doc. 1, p. 28), and “Paragraph 8 Further Assurances” (Doc. 1, p. 29).

In order to recover for breach of contract, a plaintiff must prove by a preponderance of the evidence: (1) the existence of a valid contract; (2) that

⁵ Wherein intention of employment is confirmed through 22 April 2014, and annual salary is confirmed at \$132,000.00

⁶ Wherein annual salary of \$132,000.00 is reaffirmed.

the plaintiff fulfilled its obligations under the contract; (3) a breach by the defendant; and (4) damages. *See Partylite Gifts, Inc. v. MacMillan*, 895 F. Supp. 2d 1213 (M.D. Fla. 2012).

Here, Plaintiff cannot show that the contract at issue is valid, nor can they show that they fulfilled their obligations under the contract (wherein consideration for the contract was an offer of employment which included a salary), nor have they actually set forth facts that show a breach by the Defendant, nor have they shown any damages. Thus, Plaintiffs' claim under Count II of the Complaint fails.

Any alleged "threats" made by Defendant to leave the corporation and initiate a new corporation which would compete with Plaintiffs (Doc. 1, p. 28-29) are not components of actionable claims because no such action was ever taken by Defendant and no breach occurred.

Further, the agreement is invalid as it is unenforceable and unacceptable under Florida law. The language set out in each of the provisions of the non-compete agreement contemplated by Plaintiffs' Complaint (Doc. 1, pp.27-29) fail to contain any geographic limitation, making them unacceptable and unenforceable. *See Partylite Gifts, Inc., supra*, at *1227 (noting restrictive covenant with no geographic limitation are unacceptable.) As such, there are

no facts upon which Plaintiffs could base this claim which would allow it to succeed at trial. Thus, Summary Judgment is appropriate.

Additionally, Plaintiffs' breach of contract claim is barred by the statute of limitations. Under Florida law, the statute of limitations for breach is 5 years. *See* § 95.11(2)(b), Fla. Stat. Thus, Plaintiff's claim that Defendant violated the non-compete as related to his interaction or employment with Toke Oil and Gas would have accrued during the time frame upon which Plaintiffs base their conversion and civil theft claims, which ended in 2012 with Toke's last project (Doc. 1, p. 33). As the Complaint in this matter was filed 3 April 2018, Plaintiffs' claim regarding Defendant's alleged breach of a non-compete agreement is barred since the claim accrued prior to 2012, regardless of whether Plaintiffs were aware of the claim at that time or not. A breach of contract claim under Florida law accrues at the time of the breach "regardless of whether the Plaintiff knew it had a claim." *Beck v. Lazard Freres & Co., LLC*, 175 F.3d 913, 914 (11th Cir. 1999)(quoting *Fed. Ins. Co. v. Sw. Fla. Ret. Ctr., Inc.* 707 So. 2d 1119, 1112 (Fla. 1998)).

Defendant's Motion for Summary Judgment is due to be granted as to Count II of Plaintiffs' Complaint based upon the fact that the claim is barred by the statute of limitations, the claim is based upon speculative damages

and possible scenarios which did not occur, and the fact that the aspects of the non-compete agreement complained of are unenforceable under Florida law.

IV. Defendant is Entitled to Summary Judgment as to Counts III-IV of Plaintiffs' Complaint, Civil Theft.

Civil theft is a common law conversion with the criminal intent to steal. *See* 1-27 Florida Torts § 27.07. Florida Statute § 812.014 (2014) states the elements for civil theft as: (1) knowingly, (2) obtained or used, or endeavored to obtain or use, the plaintiff's property, (3) with felonious intent, (4) either temporarily or permanently to (a) deprive plaintiff of its right to or a benefit from the property or (b) appropriate the property to the defendant's own use or to the use of a person not entitled to the property. *See* Florida Statutes section 812.014 (2014); *see also* § 16:12 Civil Theft.

Plaintiffs have not proven, and cannot show proof, that payment of directors' salaries was "knowingly obtaining or using Plaintiff's property." Facts were never set out that show that another corporation's money, paid as directors' salaries, was property unequivocally belonging to Plaintiff DeepGulf.⁷

⁷ At that time, Toke was not a subsidiary of DeepGulf but was a separate entity to which Toke only owed

Additionally, Plaintiffs' claims for Civil Theft under Counts III – IV are barred by the statute of limitations. Under Florida law, a civil action for theft "may be commenced at any time within 5 years after the conduct in violation of a provision of this act terminates or the cause of action accrues." Fla. Stat. § 772.17.

Claims for civil theft must be brought "within five years after the cause of action accrues." § 812.035(10), Fla. Stat. (1985)...[I]n *Bove v. PBW Stock Exchange, Inc.*, 382 So.2d 450 (Fla. 2d D.C.A. 1980). The *Bove* court found that a claim for conversion, which is governed by the same "accrual" standard as that applicable to claims for civil theft, began to run at the time of conversion, as distinguished from the time of discovery by the plaintiff. *Id.*, at 452. The Court finds this interpretation most faithful to the clear statutory language.

Armbrister v. Roland Int'l Corp., 667 F. Supp. 802, 822 (M.D. Fla. 1987).

The actual accrual of Plaintiffs' civil theft claim occurred when directors' salaries were paid, which would have been 2012 or before, as the last project completed by Toke ended in 2012. (Doc. 1, p.31). Thus, more than 5 years have elapsed since the accrual of the alleged civil theft under Counts III – IV of Plaintiffs' Complaint.

the agreed upon amount of commissions. (Depo. Rustin Howard 129:10-15 (19 July 2019)).

Plaintiffs were sent (and confirmed receipt of) emails dated 26 January 2011 and 25 May 2012 reflecting salaries being paid to Defendant by Toke Oil and Gas, S.A. (hereinafter "Toke"). (See emails attached hereto as Exhibit "E"). Plaintiffs were aware that Defendant was a director of Toke, and Plaintiffs became aware Defendant was receiving a salary for his services as President Director of Toke more than 5 years before the institution of the pending lawsuit on 3 April 2018. Further, Defendant discussed extensively with other officers and directors of Plaintiffs on multiple occasions, including but not limited to during a ski vacation in France in 2012, his need for and receipt of income from Toke. (Depo. Bill Lott 136:10-13 (31 July 2019)). Thus, Plaintiffs should be barred from bringing claims for Civil Theft under the applicable the statute of limitations.

Based upon the applicable statute of limitations, and Plaintiffs' failure to establish the ownership aspect of civil theft, entry of summary judgment in favor of the Defendant is appropriate.

Additionally, Plaintiffs' failure to establish the element of ownership under their claim for civil theft means that the same must be true for the "ownership" or "right" elements of Plaintiffs' claim for conversion. "If there was no factual basis to support a claim for conversion, there can be no cause

of action for civil theft." *Heldenmuth v. Groll*, 128 So. 3d 895, 896 (Fla. 4th DCA 2013)(citing *Gasparini v. Pordomingo*, 972 So.2d 1053, 1056 (Fla. 3d DCA 2008)). As such, summary judgment is due to be granted in favor of Defendant as to Plaintiffs' claims under Counts III, IV, V, and VI for Civil Theft and Conversion.

V. Defendant is Entitled to Summary Judgment as to Counts V-VI of Plaintiffs' Complaint, Conversion.

The Restatement of Torts defines conversion as an intentional exercise of dominion and control over a chattel (property or asset) which so seriously interferes with the right of another to control it that the actor may justly be required to pay the other the full value of the chattel. Under Florida case law, conversion is defined as the wrongful control of another person's property, assets or money. *Seymour v. Adams*, 638 So.2d 1044 (Fla. 5th DCA 1994). The essence of the tort of conversion is the exercise of wrongful dominion or control over property, assets or money to the detriment of the rights of the actual owner. *Goodwin v. Alexatos*, 584 So.2d 1007 (Fla.5th DCA 1991)(emphasis added).

Under Florida law, "[a] conversion consists of an act in derogation of the plaintiff's possessory rights, and any wrongful exercise or assumption of authority over another's goods, depriving him of the possession, permanently or for an

indefinite time, is a conversion." *Palm Beach Golf Ctr.-Boca, Inc. v. John G. Sarris, D.D.S., P.A.*, 781 F.3d 1245, 1258-59 (11th Cir. 2015) (quoting *Star Fruit Co. v. Eagle Lake Growers, Inc.*, 160 Fla. 130, 132, 33 So.2d 858, 860 (1948)). "Conversion is an act of dominion wrongfully asserted over another's property inconsistent with his ownership therein." *Id.* (quoting *Warshall v. Price*, 629 So. 2d 903, 904 (Fla. 4th DCA 1993)). *TCC Air Servs., Inc. v. Schlesinger*, No. 05 80543 CIV-Ryskamp, 2006 U.S. Dist. LEXIS 90223, 2006 WL 3694639, at *3(S.D. Fla. Dec. 12, 2006).

Freestream Aircraft USA Ltd. v. Chowdry, No. 16-cv-81232, 2018 U.S. Dist. LEXIS 91100, at *33-34 (S.D. Fla. May 31, 2018).

Plaintiffs allege that conversion occurred when Defendant caused directors' salaries to be paid by Toke, and specifically when \$345,000.00 of said directors' salaries were caused to be paid to himself, as President Director General of Toke. Said payments were made over the span of three projects, the last one having been completed in May 2012. (Doc. 1, p. 31).

Plaintiffs have not, and cannot, demonstrate that the monies which were paid out as "director salaries" was money that belonged to Plaintiffs. Toke was a separate entity at the time these payments for directors' salaries were made, and DeepGulf had only a singular contract wherein it was to receive a 10% commission from said projects. (Depo. Rustin Howard 129: 10-15 (19 July 2019)). DeepGulf never had any other agreement to receive any additional monies from Toke. Nor was DeepGulf entitled to any of Toke's

profits that they paid to their directors. Had that \$1.304 million not been paid toward director salaries, or had that \$345,000.00 of those director salaries not been paid to Defendant, Plaintiffs have not and cannot show that said monies would have been paid to, or somehow belonged to, Plaintiff DeepGulf. As such, the key element of ownership under a claim for conversion is not met, and Plaintiffs' claims under Counts V-VI fail on their face. As noted above, summary judgment is appropriate in instances wherein all elements of a claim are not met.

Plaintiffs cannot establish the existence of the element of ownership to create a genuine issue of material fact concerning conversion or civil theft. Thus, summary judgment is due to be granted in favor of Defendant as to Plaintiffs' claims for civil theft and conversion under Counts III, IV, V, and VI. (*See Freestream Aircraft USA Ltd. v. Chowdry*, No. 16-cv-81232, 2018 U.S. Dist. LEXIS 91100, at *34-35 (S.D. Fla. May 31, 2018)(Holding that [b]ecause the Court does not find that the undisputed material facts establish conversion, the Court cannot find that the undisputed material facts establish civil theft.)

Additionally, Plaintiffs have failed to allege specific damages in light of the fact that no facts have been presented to correlate any entitlement of

DeepGulf to monies paid by Toke (prior to Toke allegedly becoming a subsidiary of DeepGulf) to its directors. “There can be no recovery under Florida law where the evidence is not sufficient to enable the jury to assess damages with a reasonable degree of certainty without leaving the amount awarded to speculation and conjecture.” *Mallari v. W. Auto Supply Co.*, Case No. 86-1229-CIV-T-17, 1988 U.S. Dist. LEXIS 13723, at *1 (M.D. Fla. Oct. 21, 1988). Any loss of business opportunity without proof of DeepGulf’s ability to have obtained said business opportunity, nor any estimation of damages based upon monies which were not ever property of DeepGulf in the first place, are insufficient benchmarks for damages and, thus, Plaintiffs’ pleadings regarding claims for conversion and civil theft are want for damages, leaving Defendant’s Motion for Summary Judgment appropriate and due to be granted.

Further, the statute of limitations for conversion is 4 (four) years from the time of incident or discovery of the wrong. *See* Fla. Sta. § 95.11(3)(h)-(3)(i) (2011). Counts V- VI are clearly barred by the statute of limitations. Plaintiffs were sent an email by Defendant dated 6 March 2014 recapitulating all monies personally received by Defendant in France from Toke (*See* email attached hereto as Exhibit “F”). Plaintiffs confirmed receipt of said email, as

the same was contained within Plaintiffs own discovery production in July 2019. This action was filed 3 April 2018, more than 4 years after the alleged conversion was or should have been discovered, or occurred. Thus, Plaintiffs are barred by the statute of limitations from asserting Conversion.

Based upon Plaintiffs' failure to establish each necessary element of their claim, as well as the statute of limitations bar, Defendant is entitled to judgment as a matter of law and summary judgment is due to be granted in favor of Defendant as to Counts III, IV, V and VI of Plaintiffs' Complaint.

VI. Defendant is Entitled to Summary Judgment as to Count VII of Plaintiffs' Complaint, Fraudulent Misrepresentation.

Plaintiffs assert that Defendant made fraudulent misrepresentations as to a Private Placement Memorandum or "PPM." (Doc. 1, pp. 32-34). First, Plaintiffs' claim under Count VII (Fraudulent Misrepresentation) should fail due to Plaintiffs' primary participation in the creation of⁸, and failure to object to, the PPM. Further, any investments made as a result of the PPM or damages stemming therefrom would only be recoverable by individual investors, not by Plaintiffs. As the only monetary damages even alleged to

⁸ As evidenced in Exhibit "C", pg. 7, Section 3, Number 5(a)(i)

have been suffered due to the PPM were suffered by individual investors and not the Plaintiff corporations themselves, Plaintiffs' claim for fraudulent misrepresentation fails on its face.

Plaintiffs have not, however, presented evidence that they have suffered any injury as a result of acting in reliance on any of these alleged misrepresentations. Plaintiffs allege that they have suffered "monetary, emotional, physical, and other damages as a result" of relying on the alleged misrepresentations....Consequently, Plaintiffs' have not presented evidence that they suffered injury in reliance on Defendants' alleged misrepresentations. Their claim for fraudulent misrepresentation therefore fails as a matter of law.

Echeverria v. BAC Home Loans Servicing, LP, 900 F. Supp. 2d 1299, 1308-09 (M.D. Fla. 2012).

Q. And what damage do you allege was caused as a result of these falsehoods that you say were Mr. Moszkowski's responsibility?

A. The damages would be suffered by any person who invested in the corporation.

Depo. Rustin Howard 46:1-5 (19 July 2019).

A claim for fraudulent misrepresentation requires proof of: (1) a false statement concerning a material fact; (2) the representor's knowledge that the representation is false; (3) an intention that the representation induce another to act on it; and (4) consequent injury by the party acting in reliance

on the representation. *Alcazar Tower, Ltd. Liab. Co.*, No. 12-CIV-23198-MORE, 2013 U.S. Dist. LEXIS 195676, at *10-11 (S.D. Fla. Jan. 11, 2013)(citing *Bhayani v. Treeco. Inc.*, No. 2:09-cv-672-FtM-29DNF, 2011 U.S. Dist. LEXIS 6942, 2011 WL 250434, *4 (M.D. Fla. Jan. 25, 2011)).

Plaintiffs have not alleged any specific damages suffered by the corporation. Plaintiffs' deposition revealed that specific damages to the corporation could not be identified as a result of the PPM. Not only was there a lack of specific numbers as to loss as a result of alleged fraudulent representation, the Plaintiffs have not alleged, nor is there evidence to sustain an allegation of any guarantee concerning returns on investment when money was being solicited by Plaintiffs as a result of the PPM. The loss of funds and/or projects by Plaintiffs was not a product of the PPM nor did the PPM guarantee any future outcomes for Plaintiff corporations or its investors. Even if investors were directly impacted (evidence of which is not established by Plaintiffs), the Plaintiff corporations themselves were not damaged by the representations made within the PPM.

Q. Is it your position that the plaintiffs in this lawsuit have no value now?

A. That the plaintiffs have no value now?

Q. Yeah. How do you calculate the loss that the investors suffered? How do you make that determination?

A. I don't know.

Q. Do you believe that in your skills as a result of your education and experience you have the ability to ascertain what loss any particular investor in the second round had as a result of these falsehoods you say were Mr. Moszkowski's responsibility?

A. I can't say that I do.

Depo. Rustin Howard 57:4-15 (19 July 2019).

Allegations of speculative damages which cannot be quantified in monetary losses suffered directly by the corporation do not suffice as evidence of the injury component to Plaintiffs' claim for fraudulent misrepresentation. *See Echeverria v. BAC Home Loans Servicing, LP*, 900 F. Supp. 2d 1299, 1309 n.9 (M.D. Fla. 2012)(citing Restatement 2d Torts § 549 (damages for fraudulent misrepresentation are limited to pecuniary losses).

Plaintiffs' claim under Count VII for Fraudulent Misrepresentation fails as a matter of law as Plaintiffs have not presented evidence that they have suffered injury as a result of the alleged misrepresentations contained in the PPM (of which Plaintiffs admittedly co-authored.)(*See Exhibit "C"*, p. 7, Section 3, Number 5(a)(i)). Thus, summary judgment is due to be granted

in favor of Defendant as to Plaintiffs' claim under Count VII for Fraudulent Misrepresentation.

VII. Defendant is Entitled to Summary Judgment as to Count VIII of Plaintiffs' Complaint Requesting Declaratory Relief.

There remains no question of material fact as to whether Plaintiffs are not entitled to Declaratory Relief regarding Plaintiff, Toke.

There has been no evidence presented to support the claim that Toke is a wholly owned subsidiary of DeepGulf. (Doc. 1, p. 1). In fact, Plaintiff, DeepGulf, failed to perform its due diligence in even ascertaining whether Toke Oil and Gas existed, or could have existed, as a Florida corporation at the time it filed suit, naming Toke as a Plaintiff.

Q. Did you take any steps to ascertain whether it was still in existence when you prepared and filed this lawsuit?

A. No.

Q. Did you make any effort to verify that Toke had a valid and current business license, Toke the plaintiff in this lawsuit, has a current and valid business license?

A. No.

Depo. Rustin Howard 143:21-144:3 (19 July 2019).

Plaintiffs should be enjoined from bringing any action for Declaratory Relief concerning Toke, and this Court should further bar any claims asserted by Plaintiff, Toke, as its corporate existence has not been, and cannot be verified. Plaintiffs have failed to assert any law or facts which would allow this Court to grant their claim for Declaratory Relief under Count VIII. (Doc. 8, pp. 14-15). There is no genuine issue of material fact as to whether Plaintiff, Toke, has established standing to bring a claim in this (or any) Court of Law. Defendant is entitled to a judgment as a matter of law as to Plaintiffs' Count VIII, and thus, summary judgment is due to be granted.

CONCLUSION

Defendant respectfully requests that this Honorable Court grant his Motion for Summary Judgment in this action. Based upon the available facts and applicable law, there exist no genuine issues of material fact and Defendant is entitled to summary judgment as prayed for as a matter of law.

Respectfully submitted this 15th day of November 2019.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER
Florida Bar No. 0111906
THOMAS R. BOLLER
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CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Response contains 5121 words, exclusive of the case style, signature block and certificates of compliance/service.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

CERTIFICATE OF SERVICE

I hereby certify that on this 15th day of November 2019, the foregoing was electronically filed with the Clerk of the Court using the CM/ECF system which will send notification of such filing to all counsel of record.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER



DeepGulf Inc,
700 South Palafox Place, Suite 200
Pensacola, Florida, 32502

1 August 2005

Dear Marc,

We are delighted to offer you the position of President of DeepGulf, Inc. We look forward to welcoming you to the company and we are excited about the wealth of knowledge and unique experience that you bring with you.

We would like to initially offer you a salary \$120,000 per year including the benefits package as discussed at your interview.

I have attached a copy of the job description for your information.

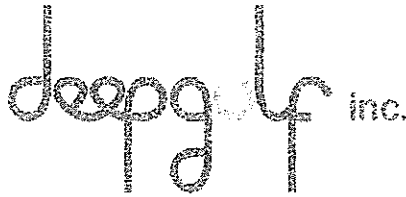
Please contact me at your earliest convenience to arrange a start date.

Sincerely

A handwritten signature in black ink, appearing to read "Rus Howard". The signature is fluid and cursive, with a long horizontal stroke at the end.

Rus Howard
SECRETARY (On behalf of the Board of Directors)





Re: Employment Confirmation Letter

To Whom it may concern:

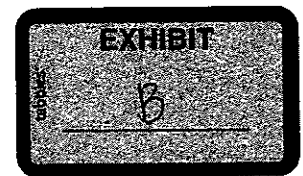
This letter confirms Marc Moszkowski's employment with DeepGulf Inc. Marc serves as president of DeepGulf, with a salary of \$120,000 per year with standard benefits.

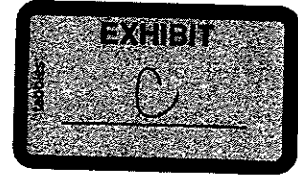
Mr. Moszkowski is responsible for all operations of DeepGulf, including corporate strategy, and oversight of marketing, business development, and engineering.

Sincerely,

A handwritten signature in black ink, appearing to read 'Rus Howard', is written over a horizontal line. The signature is fluid and cursive, with a long, sweeping underline that extends to the right.

Rus Howard
Chairman





August 15, 2014

United States Department of Homeland Security
United States Citizenship and Immigration Services
VSC Premium Processing
ATTN: RFE Response
30 Houghton Street
St. Albans, Vermont 05478

Re: Response to Request for Evidence: I-129/H-1B Petition for a Nonimmigrant Worker filed by DeepGulf, Inc. on behalf of Mr. Marc Moszkowski

Dear Sir/Madam:

We submit this letter to respond to your Request for Evidence ("RFE") in connection with the H-1B petition DeepGulf, Inc. ("DeepGulf" or "the Company") has filed on behalf of Mr. Marc Moszkowski, issued by the Service on June 10, 2014. Specifically the Service would like clarification regarding the following:

- **Specialty Occupation:** The Service has questioned the nature of the job and whether or not it is a specialty occupation.
- **Right to Control:** The Service has requested evidence showing that DeepGulf has the right to control Mr. Maszkowski's employment.
- **Employer-Employee Relationship:** The Service seeks evidence that a valid employer-employee relationship will exist for the requested validity period and that we have maintained an employer-employee relationship during the previous H-1B approval period.

PLEASE NOTE: The following information is confidential and valuable in nature and we request that it not be disclosed to anyone outside USCIS or to any persons at USCIS who do not need to know for the purposes of approving the petition.

Section 1: The Proffered Position of President is a Specialty Occupation

About the Company

The Service has indicated that they would like additional documentation highlighting the nature, scope, and activity of our business. DeepGulf, Inc. is an energy transportation business. It was founded on technology that would enable it to lay ultra-deep, very large pipelines, larger and deeper than any of its

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competitors. While developing this technology, Deep Gulf's customers demanded they expand the scope of their business to include transportation of energy, specifically, compressed natural gas in a marine environment. This energy transportation system was developed by the Deep Gulf team whose core ideas were developed by Mr. Moszkowski. We want USCIS to have an excellent understanding of what our company does in order for you to fully appreciate why Mr. Moszkowski's duties require at least the equivalent of a U.S. Bachelor's degree in Marine Operations and Technology or a related field in order to be the Chief Executive of our company; thus at **Exhibit 1** we are attaching a copy of our power point presentation introducing our company to clients to provide further details.

Mr. Moszkowski will be relieved from Performing Non-Qualifying Functions

The Service incorrectly asserted that we have only 1 employee. In fact, DeepGulf, Inc. has three employee positions, as well as many contractual and professional relationships to accomplish the various daily tasks necessary to operate a business. Please see below for information regarding these employees and contractors:

- Rus Howard, Corporate Secretary and Chief Financial Officer of the Company, is responsible for administrative functions of the company. These functions include controller duties, research into current and future projects, and fundraising. Rus also oversees the corporate books and stock transactions of the company.
- Jennifer Cabbage is employed as an executive assistant who performs day to day office tasks such as answering phones, emails, and filing. She processes the mail and all bills and payments made out of the office. Any incoming revenue is received and deposited by this assistant. She also monitors the financial accounts to ensure all payables and receivables are completed in a timely manner.

NOTE: Mr. Howard and Ms. Cabbage are full time employees, and they take care of 99% of the day to day needs of the company so that Mr. Moszkowski can spend all of his time in the field, using his professional skills and training to lead our company.

- A Certified Professional Accountant, Beth Minor, of Breeze Bookkeeping, is contracted on a monthly basis to handle all bookkeeping and accounting functions, as well as some tax preparation. Beth also processes payroll for our employees. DeepGulf Breeze Bookkeeping payments documents payments for Mr. Minor's activities.
- Saltmarsh, Cleaveland and Gunn performs our US and international income tax preparation, as well as oversight for foreign exchange transactions. Ron Jackson, Managing Partner of Saltmarsh, Cleland and Gunn, is our direct contact within this company. DeepGulf Saltmarsh payments provides documentation that DeepGulf, Inc. has provided compensation for these duties.
- Carolyn Ward, of Clark, Partington, and Hart, acts as the corporate lawyer for DeepGulf, Inc., including handling corporate books, some contracts, and stock transactions.
- Rodney Lewis, of Sydney, Australia, manages all international legal issues, including gas delivery contracts and project contracts. He also has extensive experience and close relationships in the country of Timor. He represented the country of Timor Leste and helped draft some of the founding documents. Mr. Lewis also closely monitors political and energy news in Southeast Asia and offers advice and insights into happenings in the region.
- Bruce Gordon, former lead negotiator for Chevron in Southeast Asia, is our lead negotiator for energy purchase contracts and delivery contracts. Bruce is paid by a success fee.

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- Jason Fisher is the company's financial advisor and is located in Singapore. Mr. Fisher has extensive experience in financing oil and gas projects in Southeast Asia and has worked for several of the largest firms in the world, handling such projects. Mr. Fisher further gives advice on how to structure funding and operational needs of our projects.
- Bill Lott and Tom McMillan, members of the Board of Directors, advise the corporation on oil and gas and offshore construction matters. Bill Lott's company, Lott Ship, is one of the largest ship agents in the Gulf of Mexico, managing all of the on-shore needs of vessels for its many clients in the offshore industry. Tom McMillan has been in the oil and gas industry his entire career, developing many parcels and owning an oil refinery in Southern Alabama. The Board of Director's oversees all of Mr. Moszkowski activities. He reports directly to the board and the board reviews his work on a regular basis. The board establishes policy which Mr. Moszkowski and Mr. Howard must implement to the satisfaction of the board.
- Benton Baugh – Founder and Former CEO of Radoil, Inc. a specialty fabricator of reels and components that are used on offshore vessels and rigs. Mr. Baugh, has over 100 patents including patents for depth compensated actuators. He has helped the company develop its own patent portfolio.

To support the information detailed above, and as further evidence that the beneficiary will be performing specialty occupation work, we are submitting contractual agreements and work orders from each of the companies who will utilize Mr. Moszkowski's services as **Exhibits 2-4**, per the Service's request. This also satisfies your request for a list of engagements with which the beneficiary has been involved. These are detailed below:

- **Exhibit 2:** a copy of the draft Memorandum of Understanding for the C-Gas DGNK Joint Venture between NK and DeepGulf established for the marketing of the Compressed Gas Marine Transportation Systems throughout the world. C-GAS is the Joint Venture formed specifically for the development of integrated gas delivery projects: DeepGulf of Florida, United States, has joined with NK/ENK of the Republic of Korea to form C-GAS, Inc., a company which is intended to become the premier worldwide source for the construction and operation of marine compressed natural gas energy delivery systems. Together DeepGulf and NK/ENK contribute their expertise to C-GAS. DeepGulf designs and builds energy production and transportation systems primarily for use in maritime environments and NK/ENK is the world leading compressed gas containment system manufacturer, building systems and developing new technologies to create more efficient compressed gas systems.
- **Exhibit 3:** Memorandum of Understanding for the DGNK- Fabricators Joint Venture between NK and DeepGulf, for the fabrication of Offshore Marine Packages to be integrated into the Drill Rigs, Oil and Gas platforms, FPSO, and FLNG ships being constructed by DSME, Samsung, Hyundai and other ship builders in Korea. DeepGulf performs overall system design and engineering oversight and NK will market the products and services to their contacts and Samsung, DSME, Hyundai and other shipbuilders.
- **Exhibit 4:** MOU Timor Leste Natural Gas Delivery MM11 Signed X Scanned- (Toke is a wholly owned subsidiary of DeepGulf, Inc.) The Government of Timor Leste has signed a Memorandum of Understanding for the transportation of Natural Gas to its shore from the wellhead in the Timor Sea. The final contract is still under negotiation. Quantities, pricing and duration have been agreed to, and we have tentative agreement on the payment guarantee mechanism.

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Please also see **Exhibit 5** for an organizational chart including specific information such as individuals' names, titles, brief descriptions of job duties and responsibilities, educational attainments, immigration status, and whether they have or will have ownership/interest in the petitioning organization.

Mr. Moszkowski's Job Duties Require a Bachelor's Degree in a Specific Field of Study

Firstly, Mr. Moszkowski is a founder of DeepGulf, Inc., and President of the company. There have been no prior employees who have held the position of President. There is no documentation of other individuals in our establishment who are currently, or were, employed in this position. Please see **Exhibit 6** for the job description that was published internally for this specific position, as evidence to help establish the educational requirements of the proffered position of President. The position, however, is so complex and unique that it can be performed only by an individual with a bachelor's degree in a specific field of study. Furthermore, the knowledge required to perform the job duties is usually associated with the attainment of a baccalaureate or higher degree in a specific field of study.

In the position of President, Mr. Moszkowski is responsible for the management of the company, specifically the field operations for an offshore construction company and he reports directly to the Board of Directors. Below you will find a percentage breakdown of the amount of time Mr. Moszkowski spends on each of the duties:

- 49% Implement the Business Plan by developing the company's proprietary patented technologies (specifically develop and manage the engineering and construction of the largest offshore pipe laying system in the world) and by developing strategic business opportunities enabled by such technologies through effective marketing, promotion, personal contact and interaction with high level government official and multinational corporations.
- 12% Negotiate and close contracts for offshore construction and pipe laying projects as well as preliminary supporting projects including bathymetric surveys, port construction, gas shipping and offshore oil and gas field production.
- 35% Personally oversee field operations while ensuring compliance with U.S. and international maritime laws.
- 4% Report to Board of Directors and interact with shareholders as needed

Your RFE correctly points out it is the job duties, not the title, which determine if the job is a specialty occupation. 84% of Mr. Moszkowski's time is spent overseeing, implementing and developing the engineering and construction of a pipeline through a proprietary system devised by the beneficiary. These duties are not possible to do by one without the intellectual abilities that result from the rigors of a course of study equivalent to a Bachelor's Degree in marine technology and operations. It is next to impossible to imagine a more specialized set of job duties than these.

Furthermore, Mr. Moszkowski is responsible for developing strategic business opportunities enabled by the Company's technologies through effective marketing, promotion, personal contact and interaction with high level government official and multinational corporations. These are duties that entail setting the future direction of our Company and are critical to our continued success. These are duties in-line with those of an Executive as defined in the DOL's Occupational Outlook Handbook ("OOH"). The OOH specifies that most Executives, "...have a bachelor's or master's degree in business administration or

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in an area related to their field of work ... Executives are also expected to have experience in the organization's area of specialty" (Please see **Exhibit 7**). We have conducted a search of management positions in the field of natural gas and have confirmed that the minimum education requirements for these positions is baccalaureate or higher degree, or its equivalent, in a specific field of study entry in the particular position, in addition to a number of years of particular experience in the job duties described (**Exhibit 8**).

In addition, if you return to the last page of **Exhibit 1**, it shows the Beneficiary with the President of East Timor as they both are signing a multi-million dollar contract. Clearly it shows that the executives in our company are constantly meeting with and discussing our proprietary marine operations and technology with high-level politicians and engineers from around the world. It is not possible to have a chief executive of our company who cannot converse in depth about the marine operations and technology that our company provides. We have conducted a search of management positions in the field of natural gas and have confirmed that the minimum education requirements for these positions is baccalaureate or higher degree, or its equivalent, in a specific field of study entry in the particular position, in addition to a number of years of particular experience in the job duties described.

Section 1 Summary

DeepGulf is an energy transportation business that places very large pipelines on the ocean floor. We have presented ample evidence to prove that the position of President is a specialty occupation within our Company. The job duties can only be performed by an individual who possesses a baccalaureate or higher degree in a specific field of study and the majority of the beneficiary's time will be spent on specialty occupation work. The requirements of the position are further corroborated by evidence in the OOH and advertisements for similar executive positions in the natural gas industry.

Section 2: DeepGulf's Right to Control Mr. Moszkowski's Employment

In your RFE, you indicate that the record does not presently establish that DeepGulf has a valid employer-employee relationship. The RFE specifically questions if DeepGulf has the right to hire, fire, pay, supervise, change employee's compensation, or otherwise control the employee because of his position as a Founder and the President of DeepGulf.

We present the following explanations and evidence to establish by a preponderance of evidence that we have a right to control the beneficiary's employment and a valid employer/employee relationship will exist between DeepGulf and the beneficiary throughout the duration of the requested H-1B validity period:

- 1) Job offer letter (**Exhibit 9**) dated 1 August 2005, wherein DeepGulf offers Mr. Marc Moszkowski the position of President of DeepGulf, Inc. and signed by Mr. Howard as the Corporate Secretary and Chairman of the Board and on behalf of the Board of Directors.
- 2) Employment agreement (**Exhibit 10**) between DeepGulf, Inc., and Mr. Marc Moszkowski signed 1 Aug 2005. This agreement defines the Position, the terms and conditions of employment, compensation and benefits, duties, termination, confidentiality, and non-compete.

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- a) Furthermore, DeepGulf retains the Right to hire, fire, pay, supervise, or otherwise control the employee according to the following:
 - i) Marc Moszkowski and Mr. Howard are both founders of DeepGulf, Inc.
 - ii) Marc Moszkowski is the President
 - iii) Marc Moszkowski is the inventor of the technology that is the foundation of the business.
 - iv) Said technology has been contributed to the company in exchange for stock.
 - v) Marc Moszkowski has retained no rights to the technology.
 - vi) All new inventions made by Marc Moszkowski in the field of Oil and Gas and Energy transportation during his tenure as President are the property of DeepGulf.
 - vii) Mr. Howard and Mr. Moszkowski both have substantial beneficial interest in the company through their stock holdings.
- 3) Evidence of the ownership or control of DeepGulf, the petitioning organization:
 - a) Mr. Moszkowski does not control the Board of Directors
 - b) The Board of Directors are elected by the holders of the Class A common shares.
 - c) DG Stock Capital Chart (**Exhibit 11**) shows the stock owned by all DeepGulf Shareholders. No single person holds or controls the vote of the majority of the shares.
 - (1) Marc Moszkowski is the beneficial owner of 47% of the voting shares, however they are held in an irrevocable trust. He does not vote directly, but can provide input to the trustee, who is not required to listen to his input.
 - (2) Rus Howard's beneficial ownership is a close second at 46%.
 - (a) However, almost all of the other shareholders are Mr. Howard's friends, relatives and acquaintances. Marc Moszkowski has little to no influence over them.
 - (3) Mr. Howard's has extensive experience and success in entrepreneurial and high growth companies (i.e. biotech, computer software, payment processing, mobile commerce).
 - (a) He has been a founder and has served as the CEO in several of them and continues to serve on many Boards.
 - (4) Mr. Howard does not want the role as the executive officer in any them, but is happy to take a board position, and support and help with strategic planning, corporate structure, business decisions, corporate governance, and fund raising.
 - (5) Mr. Howard is willing to and has stepped into the Executive Officer position in this or other companies, on a temporary basis if necessary, due to unforeseen circumstances i.e. vacancy due to death, misappropriation of company assets, failure to perform, vote of confidence, etc.
- 4) Supervision and Governance: As President of DeepGulf, Marc Moszkowski is employed at the will of its Board of Directors, which is constituted by Rus Howard, Marc Moszkowski, William Lott, and Thomas McMillan II, who has the right to hire, fire, pay, supervise, change his compensation, or otherwise control the employee (Please see the DG By-laws at **Exhibit 12**). As President, Mr. Moszkowski reports directly to the Board who oversee his work (Please see **Exhibit 13** for Meeting Minutes).
- 5) Performance Reviews: The Board meets on a regular basis and the President gives his report of current activities, projects, financial condition and prospective projects and financial projections. The Board reviews and critiques Mr. Moszkowski. Further the Board sets policy, mandates and objectives (Please refer to **Exhibit 13** for Meeting Minutes). The Board meets

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in executive session without Mr. Moszkowski present to discuss any matters of concern, such as governance, performance, compliance, compensation or ethics etc.

Section 2 Summary

The Company has the right to hire, fire, review, criticize, and change the pay of Mr. Moszkowski despite his role as Founder and as President of the Company. NO single person has the absolute ability to control the company. Further there are no stock plans or agreements or voting agreements or any other agreement that would enable Mr. Moszkowski to regain voting control of the Company's shares or the Board. DeepGulf is a functioning company, doing real work with real revenue providing real services to its customers and clients. Many of those clients are household names. Through it is joint venture it is also providing important energy to third world economies that will enable them to lift themselves out of poverty. DeepGulf also provides profits and a return to all of its shareholders.

Section 3: Maintenance of Initial Employer-Employee Relationship and Intent to Maintain the Relationship in the Future

In the RFE, it was indicated that the petition was filed without sufficient evidence to document that a valid employer-employee relationship was maintained with the beneficiary throughout the H-1B approval period. We present the following explanations and evidence in support of the claim to establish that valid employer employee relationship was maintained with the beneficiary throughout the H-1B approval period:

- 1) Pay stubs dated 6/1/2012, 10/1/2012, 2/1/2013 and 3/1/2013 to provide evidence that the beneficiary received compensation for his performed duties during the period of the previously approved H-1B status (**Exhibit 14**).
- 2) Mr. Moszkowski's 2011 and 2012 W2s (**Exhibit 15**) to provide evidence of the beneficiary's payroll summaries and/or W-2 forms, evidencing wages paid to the beneficiary during the period of previously approved H-1B status.
- 3) Itineraries, lease renewal documents, and photos of the areas the beneficiary utilizes to perform his employment endeavors (**Exhibit 16**). This includes itineraries to provide a complete schedule of services or engagements with the dates and locations of the services, including an actual monthly documentation of the beneficiary's whereabouts and projects for the previous two years of the approved H1-B Visa period, as well as a projected itinerary of where the beneficiary is expected to be for the next 2 years and the projects he will be working on, which covers the requested recaptured extension period of the visa. This also serves to establish that we have had sufficient work premises available to the beneficiary.
- 4) Copies of the beneficiary's 2 or 3 most recently filed federal individual tax returns (**Exhibit 17**) with all required schedules and statements, as appropriate.
- 5) Documentary examples of work product created or produced by the beneficiary for the past H-1B validity period:
 - a. Business plans
 - i. DG PPM Final (**Exhibit 18**) – in includes a business plan. This Private Placement Memorandum (PPM) was composed by Moszkowski (technical

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and operations) and Howard (administrative issues) with the help of legal counsel Ward. The PPM is an offering document used for fundraising in a private business. The core of the PPM is the business plan, which is disclosed to potential investors. In addition to the business plan, included are blue sky disclosures from every state wherein the money is raised as well as other requirements to meet SEC (Securities Exchange Commission) regulation D requirements.

- b. Reports
 - i. TOG Projects 2008 to 2011-02 Public (**Exhibit 19**) — a report provided by Mr. Moszkowski to the Board of Directors and is a summary of the projects completed during the time period of 2008-2011. Some of the pictures and data have been obscured for confidentiality reasons. Marc is the sole author of this report.
 - ii. Geoccean — Mr. Moszkowski provided consultation for Geoccean (**Exhibit 20**)
 - 1. Geoccean Invoice, 30 July 2013
 - 2. DG-GO Inspection Invoice 11
 - c. Presentations
 - i. EDTL Energy Supply System (**Exhibit 21**) — a presentation that summarizes the compressed gas energy transportation system to deliver natural gas from the well head in the Timor Sea to the country of Timor to provide an energy source for the electric generation system. This presentation was prepared primarily by Marc Moszkowski with consultation, review and critique from Rus Howard, Rodney Lewis and Vincente Ximenes.
 - d. Designs/Blueprints
 - i. Patent information for the J-Flex (**Exhibit 22**)
 - ii. DG-Hyundai CNG Carrier initial engineering (**Exhibit 23**) — Marc Moszkowski's invention that was reduced to the initial engineering drawings created by the Hyundai Corporation with the oversight of Marc Moszkowski.
 - 1. engineering oversight evidence of work by Marc and Hyundai (**Exhibit 24**) —evidence of the exchange of technical information used for the creation of the engineering drawings
 - iii. CNG Module DG-NK (**Exhibit 25**) Engineering Drawings of the CNG modules to be used in the C-Gas Marine Vessel. These drawings were produced by collaboratively by Marc Moszkowski and the engineers at NK, and incorporate all the design characteristics invented by Marc Moszkowski.
 - e. Photographs of prototypes (**Exhibit 26**) — J-Flex tower prototype, J-Flex prototype
- 6) Due to the position of President reporting directly to the Board of Directors, there are no written performance reviews. Performance reviews for this position are performed during the scope of Board of Director's meeting where the Board gives feedback and suggestions for improvements.
 - 7) Copy of any employment history records
 - a. Job offer letter (**Exhibit 9**) to document date of hire.
 - b. Employment agreement (**Exhibit 10**) to document the terms of the beneficiary's employment in relation to the petitioning entity.
 - 8) Affidavit of Rustin R. Howard (**Exhibit 27**) concerning the past performance and intent of the DeepGulf Board to employ Mr. Marc Moszkowski during the proposed validity period.

Section 3 Summary

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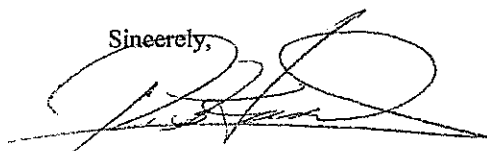
Mr. Moszkowski and DeepGulf have maintained a valid employer-employee relationship since the beneficiary first entered into valid H-1B status under our employ. We have paid and employed him according to the terms defined in our previous petitions on his behalf. We have every intent to continue to employ him according to those terms and by those defined in our most recent petition on his behalf.

Conclusion

We have provided you with sufficient documentation to satisfy your requests. Specifically, we have proven that: (a) the position of President is a specialty occupation. In order to perform the job duties of President, one must possess at minimum a bachelor's degree in a specific field. The duties of the President require this due to their complex nature. The responsibilities of President are also in line with those defined by the "Executive" occupation in the OOH, which specifies that a bachelor's degree is typically required; (b) DeepGulf has the right to control Mr. Moszkowski's employment, despite his position as a Founder and the President of DeepGulf. His employment is subject to review by the Board of Directors who may fire, review, criticize, and change the pay of Mr. Moszkowski at any time; and (c) a valid employer-employee relationship has existed between us and the beneficiary. The relationship was maintained with the beneficiary throughout the approved H-1B approval period, and we intend to maintain the relationship moving forward.

In light of this information, we respectfully request that you approve our H-1B petition on behalf of Mr. Moszkowski. If you have any questions regarding the information presented in this response, please do not hesitate to contact me. Thank you for your continued consideration of this petition.

Sincerely,



Rustin Howard
Chairman

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



Please read and review the filing instructions carefully before completing the ETA Form 9035 or 9035E. A copy of the instructions can be found at <http://www.foreignlaborcert.doleta.gov/>. In accordance with Federal Regulations at 20 CFR 655.730(b), incomplete or obviously inaccurate Labor Condition Applications (LCAs) will not be certified by the Department of Labor. If the employer has received permission from the Administrator of the Office of Foreign Labor Certification to submit this form non-electronically, ALL required fields/items containing an asterisk (*) must be completed as well as any fields/items where a response is conditional as indicated by the section (§) symbol.

A. Employment-Based Nonimmigrant Visa Information

1. Indicate the type of visa classification supported by this application (Write classification symbol): *	H-1B
--	------

B. Temporary Need Information

1. Job Title * PRESIDENT		
2. SOC (ONET/OES) code *	3. SOC (ONET/OES) occupation title *	
11-1011.00	CHIEF EXECUTIVES	
4. Is this a full-time position? *	Period of Intended Employment	
☒ Yes ☐ No	5. Begin Date * (mm/dd/yyyy) 07/04/2011	6. End Date * (mm/dd/yyyy) 07/03/2014
7. Worker positions needed/basis for the visa classification supported by this application		
1 Total Worker Positions Being Requested for Certification *		
Basis for the visa classification supported by this application (indicate the total workers in each applicable category based on the total workers identified above)		
0 a. New employment *	0 d. New concurrent employment *	
1 b. Continuation of previously approved employment * without change with the same employer	0 e. Change in employer *	
0 c. Change in previously approved employment *	0 f. Amended petition *	

C. Employer Information

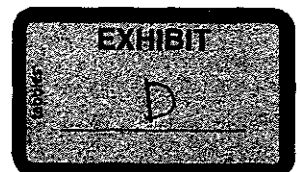
1. Legal business name * DEEPGULF INC.		
2. Trade name/Doing Business As (DBA), if applicable N/A		
3. Address 1 * 17 SOUTH PALAFOX PLACE, SUITE 370		
4. Address 2 N/A		
5. City * PENSACOLA	6. State * FL	7. Postal code * 32502
8. Country * UNITED STATES OF AMERICA		9. Province N/A
10. Telephone number * 8504709388		11. Extension N/A
12. Federal Employer Identification Number (FEIN from IRS) * 202250919		13. NAICS code (must be at least 4-digits) * 213112

ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

Page 1 of 5

Case Number: I-200-11005-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014



OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



D. Employer Point of Contact Information

Important Note: The information contained in this Section must be that of an employee of the employer who is authorized to act on behalf of the employer in labor certification matters. The information in this Section must be different from the agent or attorney information listed in Section E, unless the attorney is an employee of the employer.

1. Contact's last (family) name *	2. First (given) name *	3. Middle name(s) *
TAYLOR	PATRICIA	A.
4. Contact's job title * HR COORDINATOR		
5. Address 1 * 17 SOUTH PALAFOX PLACE		
6. Address 2 SUITE 370		
7. City * PENSACOLA	8. State * FL	9. Postal code * 32502
10. Country * UNITED STATES OF AMERICA		11. Province N/A
12. Telephone number * 8504709388	13. Extension N/A	14. E-Mail address TRISH.TAYLOR@WHITESANDSINVESTMENTS.COM

E. Attorney or Agent Information (If applicable)

1. Is the employer represented by an attorney or agent in the filing of this application? *		☒ Yes ☐ No
If "Yes", complete the remainder of Section E below.		
2. Attorney or Agent's last (family) name §	3. First (given) name §	4. Middle name(s) §
GOLDMAN	JEFFREY	WILLIAM
5. Address 1 § ONE FINANCIAL CTR		
6. Address 2 N/A		
7. City § BOSTON	8. State § MA	9. Postal code § 02111
10. Country § UNITED STATES OF AMERICA		11. Province N/A
12. Telephone number § 6173483025	13. Extension N/A	14. E-Mail address JGOLDMAN@MINTZ.COM
15. Law firm/Business name § MINTZ LEVIN		16. Law firm/Business FEIN § 042718459
17. State Bar number (only if attorney) § 54-8056	18. State of highest court where attorney is in good standing (only if attorney) § MASSACHUSETTS	
19. Name of the highest court where attorney is in good standing (only if attorney) § SUPREME JUDICIAL COURT		

ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

Page 2 of 5

Case Number: I-200-11006-405569

Case Status: CERTIFIED

Period of Employment: 07/04/2011 to 07/03/2014

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



F. Rate of Pay

1. Wage Rate (Required) From: \$ 103397.00 * To: \$ 132000.00	2. Per: (Choose only one) * ☐ Hour ☐ Week ☐ Bi-Weekly ☐ Month ☒ Year
---	---

G. Employment and Prevailing Wage Information

Important Note: It is important for the employer to define the place of intended employment with as much geographic specificity as possible. The place of employment address listed below must be a physical location and cannot be a P.O. Box. The employer may use this section to identify up to three (3) physical locations and corresponding prevailing wages covering each location where work will be performed and the electronic system will accept up to 3 physical locations and prevailing wage information. If the employer has received approval from the Department of Labor to submit this form non-electronically and the work is expected to be performed in more than one location, an attachment must be submitted in order to complete this section.

a. Place of Employment 1

1. Address 1 * 17 SOUTH PALAFOX PLACE	
2. Address 2 SUITE 370	
3. City * PENSACOLA	4. County * SANTA ROSA
5. State/District/Territory * FLORIDA	6. Postal code * 32502
Prevailing Wage Information (corresponding to the place of employment location listed above)	
7. Agency which issued prevailing wage \$ N/A	7a. Prevailing wage tracking number (if applicable) \$ N/A
8. Wage level * ☐ I ☒ II ☐ III ☐ IV ☐ N/A	
9. Prevailing wage * \$ 103397.00	10. Per: (Choose only one) * ☐ Hour ☐ Week ☐ Bi-Weekly ☐ Month ☒ Year
11. Prevailing wage source (Choose only one) * ☒ OES ☐ CBA ☐ DBA ☐ SCA ☐ Other	
11a. Year source published * 2010	11b. If "OES", and SWAN/NPC did not issue prevailing wage OR "Other" in question 11, specify source \$ OFLC ONLINE DATA CENTER

H. Employer Labor Condition Statements

Important Note: In order for your application to be processed, you MUST read Section H of the Labor Condition Application – General Instructions Form ETA 9035CP under the heading "Employer Labor Condition Statements" and agree to all four (4) labor condition statements summarized below:

- (1) **Wages:** Pay nonimmigrants at least the local prevailing wage or the employer's actual wage, whichever is higher, and pay for non-productive time. Offer nonimmigrants benefits on the same basis as offered to U.S. workers.
- (2) **Working Conditions:** Provide working conditions for nonimmigrants which will not adversely affect the working conditions of workers similarly employed.
- (3) **Strike, Lockout, or Work Stoppage:** There is no strike, lockout, or work stoppage in the named occupation at the place of employment.
- (4) **Notice:** Notice to union or to workers has been or will be provided in the named occupation at the place of employment. A copy of this form will be provided to each nonimmigrant worker employed pursuant to the application.

1. I have read and agree to Labor Condition Statements 1, 2, 3, and 4 above and as fully explained in Section H of the Labor Condition Application – General Instructions – Form ETA 9035CP. *	☒ Yes ☐ No
--	---

ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

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Case Number: I-200-11906-405509

Case Status: CERTIFIED

Period of Employment: 07/04/2011 to 07/03/2014

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



I. Additional Employer Labor Condition Statements – H-1B Employers ONLY

Important Note: In order for your H-1B application to be processed, you **MUST** read Section I – Subsection 1 of the Labor Condition Application – General Instructions Form ETA 9035CP under the heading “Additional Employer Labor Condition Statements” and answer the questions below.

a. Subsection 1

1. Is the employer H-1B dependent? §	☐ Yes ☒ No
2. Is the employer a willful violator? §	☐ Yes ☒ No
3. If “Yes” is marked in questions 1.1 and/or 1.2, you must answer “Yes” or “No” regarding whether the employer will use this application <u>ONLY</u> to support H-1B petitions or extensions of status for exempt H-1B nonimmigrants? §	☐ Yes ☐ No ☒ N/A

If you marked “Yes” to questions 1.1 and/or 1.2 and “No” to question 1.3, you **MUST** read Section I – Subsection 2 of the Labor Condition Application – General Instructions Form ETA 9035CP under the heading “Additional Employer Labor Condition Statements” and indicate your agreement to all three (3) additional statements summarized below.

b. Subsection 2

- A. Displacement: Non-displacement of the U.S. workers in the employer's workforce
- B. Secondary Displacement: Non-displacement of U.S. workers in another employer's workforce; and
- C. Recruitment and Hiring: Recruitment of U.S. workers and hiring of U.S. workers applicant(s) who are equally or better qualified than the H-1B nonimmigrant(s).

4. I have read and agree to Additional Employer Labor Condition Statements A, B, and C above and as fully explained in Section I – Subsections 1 and 2 of the Labor Condition Application – General Instructions Form ETA 9035CP. §	☒ Yes ☐ No
---	---

J. Public Disclosure Information

Important Note: You **must** select from the options listed in this Section.

1. Public disclosure information will be kept at: *	☒ Employer's principal place of business ☐ Place of employment
---	--

K. Declaration of Employer

By signing this form, I, on behalf of the employer, attest that the information and labor condition statements provided are true and accurate; that I have read sections H and I of the Labor Condition Application – General Instructions Form ETA 9035CP, and that I agree to comply with the Labor Condition Statements as set forth in the Labor Condition Application – General Instructions Form ETA 9035CP and with the Department of Labor regulations (20 CFR part 655, Subparts H and I). I agree to make this application, supporting documentation, and other records available to officials of the Department of Labor upon request during any investigation under the Immigration and Nationality Act. Making fraudulent representations on this Form can lead to civil or criminal action under 18 U.S.C. 1001, 18 U.S.C. 1546, or other provisions of law.

1. Last (family) name of hiring or designated official *	2. First (given) name of hiring or designated official *	3. Middle initial *
Howard	Rustin	R.
4. Hiring or designated official title *		
Secretary		
5. Signature *		6. Date signed *
		02/03/2011

ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

Page 4 of 5

Case Number: I-200-11006-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



L. LCA Preparer

Important Note: Complete this section if the preparer of this LCA is a person other than the one identified in either Section D (employer point of contact) or E (attorney or agent) of this application.

1. Last (family) name § GOLDMAN	2. First (given) name § JEFFREY	3. Middle initial § W
4. Firm/Business name § MINTZ LEVIN		
5. E-Mail address § JGOLDMAN@MINTZ.COM		

M. U.S. Government Agency Use (ONLY)

By virtue of the signature below, the Department of Labor hereby acknowledges the following:

This certification is valid from 07/04/2011 to 07/03/2014

William L. Carlson
Department of Labor, Office of Foreign Labor Certification

01/13/2011

Determination Date (date signed)

I-200-11006-405569

CERTIFIED

Case number

Case Status

The Department of Labor is not the guarantor of the accuracy, truthfulness, or adequacy of a certified LCA.

N. Signature Notification and Complaints

The signatures and dates signed on this form will not be filed out when electronically submitting to the Department of Labor for processing, but **MUST** be complete when submitting non-electronically. If the application is submitted electronically, any resulting certification **MUST** be signed *immediately upon receipt* from the Department of Labor before it can be submitted to USCIS for further processing.

Complaints alleging misrepresentation of material facts in the LCA and/or failure to comply with the terms of the LCA may be filed using the WH-4 Form with any office of the Wage and Hour Division, Employment Standards Administration, U.S. Department of Labor. A listing of the Wage and Hour Division offices can be obtained at <http://www.dol.gov/esa>. Complaints alleging failure to offer employment to an equally or better qualified U.S. worker, or an employer's misrepresentation regarding such offer(s) of employment, may be filed with the U.S. Department of Justice, Office of the Special Counsel for Immigration-Related Unfair Employment Practices, 950 Pennsylvania Avenue, NW, Washington, DC, 20530. Please note that complaints should be filed with the Office of Special Counsel at the Department of Justice only if the violation is by an employer who is H-1B dependent or a willful violator as defined in 20 CFR 655.710(b) and 655.734(a)(1)(ii).

O. OMB Paperwork Reduction Act (1205-0310)

These reporting instructions have been approved under the Paperwork Reduction Act of 1995. Persons are not required to respond to this collection of information unless it displays a currently valid OMB control number. Obligations to reply are mandatory (Immigration and Nationality Act, Section 212(n) and (t) and 214(c)). Public reporting burden for this collection of information, which is to assist with program management and to meet Congressional and statutory requirements is estimated to average 1 hour per response, including the time to review instructions, search existing data sources, gather and maintain the data needed, and complete and review the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the U.S. Department of Labor, Room C-4312, 200 Constitution Ave. NW, Washington, DC 20210. (Paperwork Reduction Project OMB 1205-0310.) Do NOT send the completed application to this address.

ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

Page 5 of 5

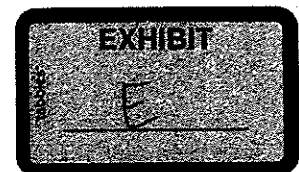
Case Number: I-200-11006-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014

From: Marc Moszkowski <m.moszkowski@tokeoilandgas.com>
Sent: Wednesday, January 26, 2011 8:20 PM
To: 'Rus Howard'
Subject: Emailing: Income Statements TOG 2008 to 2010-Final.xls, Balance Sheets TOG 2008 to 2010-Final.xls
Attachments: Income Statements TOG 2008 to 2010-Final.xls; Balance Sheets TOG 2008 to 2010-Final.xls

Your message is ready to be sent with the following file or link attachments:

Income Statements TOG 2008 to 2010-Final.xls Balance Sheets TOG 2008 to 2010-Final.xls

Note: To protect against computer viruses, e-mail programs may prevent sending or receiving certain types of file attachments. Check your e-mail security settings to determine how attachments are handled.



From: Rus Howard <rus@whitesandinvestments.com>
Sent: Thursday, January 27, 2011 5:42 PM
To: Marc Moszkowski
Subject: RE: Emailing: Income Statements TOG 2008 to 2010-Final.xls, Balance Sheets TOG 2008 to 2010-Final.xls

Received the spreadsheets.

rus

-----Original Message-----

From: Marc Moszkowski [mailto:m.moszkowski@tokeoilandgas.com]
Sent: Wednesday, January 26, 2011 8:20 PM
To: Rus Howard
Subject: Emailing: Income Statements TOG 2008 to 2010-Final.xls, Balance Sheets TOG 2008 to 2010-Final.xls

Your message is ready to be sent with the following file or link attachments:

Income Statements TOG 2008 to 2010-Final.xls Balance Sheets TOG 2008 to 2010-Final.xls

Note: To protect against computer viruses, e-mail programs may prevent sending or receiving certain types of file attachments. Check your e-mail security settings to determine how attachments are handled.

Balance Sheet

TOKE OIL & GAS S.A.
Year 2008
Financial Statements in U.S. Dollars

ASSETS		LIABILITIES	
Current Assets		Current Liabilities	
Cash	\$279.92	Accounts payable	\$0.00
Accounts receivable		Short-term notes	
(less doubtful accounts)		Current portion of long-term notes	
Inventory		Interest payable	
Temporary investment		Taxes payable	\$0.00
Prepaid expenses		Accrued payroll	
Total Current Assets	\$279.92	Total Current Liabilities	\$0.00
Fixed Assets		Long-term Liabilities	
Long-term investments		Mortgage	\$0.00
Land		Other long-term liabilities	
Buildings		Total Long-Term Liabilities	\$0.00
(less accumulated depreciation)		Shareholders' Equity	
Plant and equipment		Capital stock	\$0.00
(less accumulated depreciation)		Retained earnings	\$279.92
Furniture and fixtures		Total Shareholders' Equity	\$279.92
(less accumulated depreciation)			
Total Net Fixed Assets	\$0.00		
TOTAL ASSETS	\$279.92	TOTAL LIABILITIES & EQUITY	\$279.92

Balance Sheet

TOKE OIL & GAS S.A.
 Year 2009
 Financial Statements in U.S. Dollars

ASSETS	
Current Assets	
Cash	\$677.27
Accounts receivable	
(less doubtful accounts)	
Inventory	
Temporary investment	
Prepaid expenses	
Total Current Assets	\$677.27
Fixed Assets	
Long-term investments	
Land	
Buildings	
(less accumulated depreciation)	
Plant and equipment	
(less accumulated depreciation)	
Furniture and fixtures	
(less accumulated depreciation)	
Total Net Fixed Assets	\$0.00
TOTAL ASSETS	\$677.27

LIABILITIES	
Current Liabilities	
Accounts payable	\$0.00
Short-term notes	
Current portion of long-term notes	
Interest payable	
Taxes payable	\$0.00
Accrued payroll	
Total Current Liabilities	\$0.00
Long-term Liabilities	
Mortgage	\$0.00
Other long-term liabilities	
Total Long-Term Liabilities	\$0.00
Shareholders' Equity	
Capital stock	\$0.00
Retained earnings	\$677.27
Total Shareholders' Equity	\$677.27
TOTAL LIABILITIES & EQUITY	\$677.27

Income Statement

TONE OF E-MAILS.

Year 2009

Financial Statements in U.S. Dollars

Revenue

Gross Sales	
Less: Sales Returns and Allowances	
Net Sales	

\$ 2,190,177.42	
	\$2,190,177.42

Estate Goods Sold

Add: Purchase of Goods and Services
Direct Labor
Direct Operating Costs
Indirect Expenses

Subtotal
Less: Miscellaneous
Cost of Goods Sold

\$1,825,484.77	
\$1,825,484.77	
	\$1,825,484.77

Gross Profit (Loss)

\$364,692.65

Expenses

ACCOMMODATION
ACCOUNTING FEES
BANK CHARGES
CASH ADVANCES
COMMUNICATIONS
DIRECTORS SALARIES
EQUIPMENT RENTAL
FUEL
FURNITURE
HARDWARE
MISCELLANEOUS
OFFICE RENTAL
OFFICE SUPPLIES
SHIP STORES
SALARIES
SHIP AGENCY
TRANSPORTATION
TRAVEL
VEHICLE PURCHASE
TAX

[illegible]**Total Expenses**

Net Operating Income

\$397.35

Other income

Gain (Loss) on Sale of Assets
Interest Income
Total Other Income

	\$0.00
--	--------

Net Income (Loss)

\$397.35

Balance Sheet

TOKE OIL & GAS S.A.
 Year 2010
 Financial Statements in U.S. Dollars

ASSETS		LIABILITIES	
Current Assets		Current Liabilities	
Cash	\$4,725.00	Accounts payable	\$28,000.00
Accounts receivable	\$52,000.00	Short-term notes	
(less doubtful accounts)		Current portion of long-term notes	
Inventory		Interest payable	
Temporary investment		Taxes payable	\$0.00
Prepaid expenses		Accrued payroll	
Total Current Assets	\$56,725.00	Total Current Liabilities	\$28,000.00
Fixed Assets		Long-term Liabilities	
Long-term investments		Mortgage	\$0.00
Land		Other long-term liabilities	
Buildings		Total Long-Term Liabilities	\$0.00
(less accumulated depreciation)		Shareholders' Equity	
Plant and equipment		Capital stock	\$0.00
(less accumulated depreciation)		Retained earnings	\$4,752.55
Furniture and fixtures		Total Shareholders' Equity	\$28,725.00
(less accumulated depreciation)			
Total Net Fixed Assets	\$0.00		
TOTAL ASSETS	\$56,725.00	TOTAL LIABILITIES & EQUITY	\$56,725.00

Income Statement

TOKE OIL & GAS S.A.

Year 2010

Financial Statements in U.S. Dollars

Report

Gross Sales	
Less: Sales Returns and Allowances	
Net Sales	

\$ 2,919,364.82	
	\$2,919,364.82

Cost of Goods Sold

Add: Purchase of Goods and Services
Direct Labor
Direct Operating Costs
Indirect Expenses

\$2,068,277.50	
\$2,068,277.50	
	\$2,068,277.50

Subtotal
Less: Miscellaneous
Cost of Goods Sold

Gross Profit (Loss)

\$851,087.32

Expenses

ACCOMMODATION
ACCOUNTING FEES
BANK CHARGES
CASH ADVANCES
COMMUNICATIONS
DIRECTORS SALARIES
EQUIPMENT RENTAL
FUEL
FURNITURE
HARDWARE
MISCELLANEOUS
OFFICE RENTAL
OFFICE SUPPLIES
SHIP STORES
SALARIES
SHIP AGENCY
TRANSPORTATION
TRAVEL
VEHICLE PURCHASE
TAX

\$26,612.50
\$763.58
\$66.00
\$11,868.55
\$6,750.00
\$484,895.00
\$38,520.00
\$115,175.70
\$7,871.00
\$16,038.45
\$26,797.75
\$18,000.00
\$16,789.13
\$24,898.76
\$51,965.62

Total Expenses

\$847,012.04

Net Operating Income

\$4,075.28

Other Income

Gain (Loss) on Sale of Assets
Interest Income
Total Other Income

	\$0.00
--	--------

Net Income (Loss)

\$4,075.28

Income Statement

TOKE OIL & GAS S.A.

Year 2011

Financial Statements in U.S. Dollars

Revenue

Gross Sales
Less: Sales Returns and Allowances
Net Sales

\$ 6,153,867.00	
	\$ 6,153,867.00

Cost of Goods Sold

Add: Purchase of Goods and Services
Direct Labor
Direct Operating Costs
Indirect Expenses

\$4,620,383.31
\$4,620,383.31

Subtotal
Less: Miscellaneous
Cost of Goods Sold

	\$4,620,383.31
--	----------------

Gross Profit (Loss)

\$ 1,533,483.69

Expenses

ACCOMMODATION
ACCOUNTING FEES
BANK CHARGES
CASH ADVANCES
COMMUNICATIONS
DIRECTORS SALARIES
EQUIPMENT RENTAL
FUEL
FURNITURE
HARDWARE
MISCELLANEOUS
OFFICE RENTAL
OFFICE SUPPLIES
SHIP STORES
SALARIES
SHIP AGENCY
TRANSPORTATION
TRAVEL
VEHICLE PURCHASE
TAX

\$128,333.65
\$1,668.34
\$8,341.69
\$30,350.91
\$50,050.12
\$192,000.00
\$168,521.00
\$256,667.30
\$0.00
\$7,685.65
\$45,530.21
\$40,602.17
\$4,466.01
\$46,947.53
\$196,231.00
\$45,191.41
\$56,325.64
\$0.00
\$0.00
\$246,155.00

Total Expenses

\$1,525,067.64

Net Operating Income

\$ 8,416.05

Other Income

Gain (Loss) on Sale of Assets
Interest Income
Total Other Income

\$0.00	
\$0.00	
	\$0.00

Net Income (Loss)

\$ 8,416.05

From: Marc Moszkowski <m.moszkowski@deep-gulf.com>
Sent: Friday, May 25, 2012 10:04 AM
To: 'Rustin Howard' (rus.howard@deep-gulf.com)
Cc: Trish Taylor (t.taylor@deep-gulf.com)
Subject: Emailing: Income Statements TOG 2011.xls, Balance Sheets TOG 2011.xls
Attachments: Income Statements TOG 2011.xls; Balance Sheets TOG 2011.xls

Rus,

Attached are the financial reports for Toke Oil & Gas in 2011. I would like to discuss them with you before they are published.

Best.

Marc

From: Rus Howard <rus.howard@deep-gulf.com>
Sent: Saturday, May 26, 2012 7:22 AM
To: 'Marc Moszkowski'
Subject: RE: Emailing: Income Statements TOG 2011.xls, Balance Sheets TOG 2011.xls

OK Will talk to you when you are back in town. No need to discuss till then, enjoy your weekend.

rus

-----Original Message-----

From: Marc Moszkowski [mailto:m.moszkowski@deep-gulf.com]
Sent: Friday, May 25, 2012 10:04 AM
To: 'Rustin Howard'
Cc: Trish Taylor
Subject: Emailing: Income Statements TOG 2011.xls, Balance Sheets TOG 2011.xls

Rus,

Attached are the financial reports for Toke Oil & Gas in 2011. I would like to discuss them with you before they are published.

Best.

Marc

Balance Sheet

TOKE OIL & GAS S.A.

Year 2011

Financial Statements in U.S. Dollars

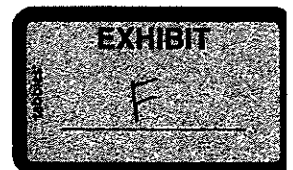
ASSETS		LIABILITIES	
Current Assets		Current Liabilities	
Cash	\$8,785.65	Accounts payable	\$615,002.08
Accounts receivable	\$546,132.83	Short-term notes	
(less doubtful accounts)		Current portion of long-term notes	
Inventory		Interest payable	
Temporary investment		Taxes payable	
Prepaid expenses		Accrued payroll	\$12,753.00
Total Current Assets	\$554,918.48	Total Current Liabilities	\$627,755.08
Fixed Assets		Long-term Liabilities	
Long-term investments		Mortgage	
Land		Other long-term liabilities	
Buildings		Total Long-Term Liabilities	\$0.00
(less accumulated depreciation)			
Plant and equipment	\$110,725.28		
(less accumulated depreciation)	\$25,000.00		
Furniture and fixtures			
(less accumulated depreciation)			
Total Net Fixed Assets	\$85,725.28		
		Shareholders' Equity	
		Capital stock	
		Retained earnings	\$12,888.68
		Total Shareholders' Equity	\$12,888.68
TOTAL ASSETS	\$640,643.76	TOTAL LIABILITIES & EQUITY	\$640,643.76

From: Marc Moszkowski <m.moszkowski@deep-gulf.com>
Sent: Thursday, March 06, 2014 4:58 PM
To: 'Rustin Howard'; Jen Cabbage
Subject: Emailing: releve_00050136739_20110221.pdf, releve_00050136739_20110621.pdf, releve_00050136739_20111122.pdf, releve_00050136739_20120721.pdf, Copy of Recapitulatif crédits exceptionnels.xlsx, releve_00050136739_20100721.pdf
Attachments: Copy of Recapitulatif crédits exceptionnels.xlsx; SG-12 Jan 10.pdf; SG-24 Jun 10.pdf; SG-08 Feb 11.pdf; SG-27 May 11.pdf; SG-21 Nov 11.pdf

Your message is ready to be sent with the following file or link attachments:

releve_00050136739_20110221.pdf
releve_00050136739_20110621.pdf
releve_00050136739_20111122.pdf
releve_00050136739_20120721.pdf
Copy of Recapitulatif crédits exceptionnels.xlsx releve_00050136739_20100721.pdf

Note: To protect against computer viruses, e-mail programs may prevent sending or receiving certain types of file attachments. Check your e-mail security settings to determine how attachments are handled.



2011	21/11/2011	21/11/2011	VIR RECU 321R48005 DE: VICENTE XIMENES VILA VERDE MOTIF: SALARY MONTANT RECU: 50975,00 USD TAUX CHANGE: EUR/USD 1,35570 ORIGINE: 60000,00 USD		44 239,14		21-Nov-11	\$60,000
2011	27/05/2011	27/05/2011	VIR RECU 145R54813 DE: VICENTE XIMENES VILA VERDE MOTIF: PAY TO MARC ACCOUNT MONTANT RECU: 74075,00 USD TAUX CHANGE: EUR/USD 1,41540 ORIGINE: 75000,00 USD		52 970,89		27-May-11	\$75,000
2011	08/02		VIR RECU 035R55931 DE: TOKE OIL AND GAS SA HOTEL DILI SUITE 1 56 RUA DOS MOTIF: PAYMENT OF SERVICES MONTANT RECU: 50000,00 USD TAUX CHANGE: EUR/USD 1,37200	36 443,15	+239 051,39	08/02/11	08-Feb-11	\$50,000
2010	24/06		VIR RECU 173R48601 DE: 1011179780001 TOKE OIL AND GAS SA MOTIF: DIRECTOR FEE MONTANT RECU: 59965,00 USD TAUX CHANGE: EUR/USD 1,23830	48 425,26	+317 648,88	24/06/10	24-Jun-10	\$60,000
2010	12/01		VIR RECU 008R42486 DE: 1011179780001 TOKE OIL AND GAS DILI EAST TIMOR MONTANT RECU: 99965,00 USD TAUX CHANGE: EUR/USD 1,44150	69 347,90	+454 882,40	12/01/10	12-Jan-10	\$100,000

SOCIETE GENERALE
RELEVÉ D'IDENTITÉ BANCAIRE

TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI

DOMICILIATION AGENCE SOCIETE GENERALE

Tél. :

REFERENCES BANCAIRES

Banque Agence Numéro de compte Clé

IDENTIFICATION INTERNATIONALE

IBAN :

BIC-ADRESSE SWIFT : SOGEFRPP

A remettre à tout organisme demandant vos références bancaires



RELEVÉ DE COMPTE

en euros

du 23 12 2009 au 21 01 2010

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

envoi n° 1 page 1/2

Toute l'équipe de votre Agence se joint à moi afin de vous présenter
*** nos MEILLEURS VOEUX pour l'année 2010. ***
Votre Conseiller.

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	SOLDE PRECEDENT		180,83	+1.186,17	
	*** SOLDE AU 31/12/2009 +180,83 ***				
12/01	VIR RECU 008R42486 DE: 1011179780001 TOKE OIL AND GAS DILI EAST TIMOR MONTANT RECU: 99965,00 USD TAUX CHANGE: EUR/USD 1,44150		69 347,90	+454 892,40	12/01/10
12/01	VIREMENT VIRT FAV.50138438 REG DECOUVERT	5 000,00		-32 797,85	12/01/10
12/01	> FRAIS SUR VIR INTL RECU 008R42486 REF 0082091 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 34,67	51,17*		-335,65	12/01/10
15/01	000001 VIR EUROPEEN EMIS AGENCE POUR: ARTHUR MOSZKOWSKI REF: 0139531500006 MOTIF: VIRT RECU MARC MOSZKOWSKI LIB: VIRT FAV.ARTHUR MOSZKOWSKI LIB: ORDRE FAX	4 000,00		-26 238,28	15/01/10
15/01	000001 VIR EUROPEEN EMIS AGENCE POUR: BERGEREAU JACQUELINE REF: 0139531500004 MOTIF: VIRT RECU MARC MOSZKOWSKI LIB: VIRT FAV.JACQUELINE BERGEREAU LIB: ORDRE FAX	6 000,00		-39 357,42	15/01/10
16/01	> FRAIS SUR VIR EUROPEEN EMIS DE 6 000,00 E DU 15/01/2010	3,20*		-20,99	16/01/10
16/01	> FRAIS SUR VIR EUROPEEN EMIS DE 4 000,00 E DU 15/01/2010	3,20*		-20,99	16/01/10
18/01	VIREMENT VIRT FAV.50138438 ORDRE FAX	38 052,00		-249 604,76	18/01/10
20/01	> COTISATION JAZZ	7,80*		-51,16	20/01/10
	TOTAUX DES MOUVEMENTS	53.117,37	69.347,90		

AGENCE : [REDACTED]
 TITULAIRE DU COMPTE
 M. MARC MOSZKOWSKI



RELEVÉ DE COMPTE
 en euros

du 23 12 2009 au 21 01 2010

envoi n° 1 page 2/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	NOUVEAU SOLDE		16.411,36	+107.651,46	

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

(1) Les contre-valeurs en francs ont été calculées sur la base de 1 euro = 6,55957 francs. Les montants d'opérations exprimés en francs n'ont qu'une valeur indicative. Le solde en francs est la contre-valeur du solde en euros après application des règles de conversion et d'arrondis.

Votre code client figurant ci-dessous, complété par votre code secret personnalisable, vous permet d'utiliser l'ensemble des services de Banque à Distance : Internet, Internet Mobile et [REDACTED]

Code Client : M. MARC MOSZKOWSKI [REDACTED]

Si vous ne connaissez pas votre code secret Banque à Distance, contactez votre Conseiller en Agence ou appelez le [REDACTED] touche #.

* Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2009 : 0,34€ TTC/min depuis une ligne fixe France Télécom, en France métropolitaine. Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

En cas d'utilisation de votre découvert autorisé, le taux qui vous sera appliqué pour le calcul des intérêts s'établit à 17,95%

(Taux effectif global 19,66% équivalent au Taux journalier de 0,0492%),
 à compter du 01/01/2010.

Pour tout besoin de trésorerie, consultez votre conseiller de clientèle.

Filigiane LE FIL ROUGE DE VOTRE FIDÉLITÉ

N° d'adhérent JAZZ : 04608277

Votre situation au : 31/12/2009

36303 solde précédent	+	588 points acquis	-	0 points utilisés	-	12584 points annulés	=	24307 * nouveau solde
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*dont 7741 points à utiliser avant le 31/12/2010.

Avec JAZZ, votre fidélité est récompensée !

Pour en savoir plus sur vos points ou les transformer en cadeaux, connectez-vous sur www.particuliers.societegenerale.fr ou contactez le 09 69 36 7000

Internet : @www.societegenerale.fr

☎ Votre banque par téléphone : 3933
 tarif au 01/01/06 : 0,34 € TTC/mn

Perte ou vol de carte : 09 69 39 77 77
 appel non surtaxé

SOCIÉTÉ GÉNÉRALE S.A. AU CAPITAL DE 924 757 831,25 EUR. SIÈGE SOCIAL, 29 BD HAUSSMANN, 75009 PARIS. 552 120 222 R.C.S. PARIS

RA4-39F

SOCIETE GENERALE

RELEVÉ D'IDENTITÉ BANCAIRE

TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI

DOMICILIATION AGENCE SOCIETE GENERALE
[REDACTED]

Tél. : [REDACTED]

REFERENCES BANCAIRES

Banque	Agence	Numéro de compte	Clé
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

IDENTIFICATION INTERNATIONALE
IBAN : [REDACTED]
BIC-ADRESSE SWIFT : SOGEFRPP

A remettre à tout organisme demandant vos références bancaires



RELEVÉ DE COMPTE

en euros

n° [REDACTED]

du 23 06 2010 au 21 07 2010

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

BDB

envoi n° 7 page 1/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	SOLDE PRECEDENT	-463,79		-3.042,26	
24/06	VIR RECU 173R48601 DE: 1011179780001 TOKE OIL AND GAS SA MOTIF: DIRECTOR FEE MONTANT RECU: 59965,00 USD TAUX CHANGE: EUR/USD 1,23830		48 425,26	+317 648,88	24/06/10
24/06	➤ FRAIS SUR VIR INTL RECU 173R48601 REF 1733420 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 24,21 *** SOLDE AU 30/06/2010 +47 920,76 ***	40,71 *		-267,04	24/06/10
02/07	VIREMENT 50138438	40 000,00		-262 382,80	02/07/10
02/07	CARTE X7272 27/05 VINCIPARK NICE	4,80		-31,49	02/07/10
02/07	CARTE X7272 27/05 ORANGE WIFI COMMERCE ELECTRONIQUE	9,90		-64,94	02/07/10
02/07	CARTE X7272 27/05 MAC DONALD GASSIN	10,50		-68,88	02/07/10
02/07	CARTE X7272 27/05 LE SAFARI	54,50		-357,50	02/07/10
02/07	CARTE X7272 28/05 ANCA BORNE PARC	4,00		-26,24	02/07/10
02/07	CARTE X7272 28/05 IVAC	11,25		-73,80	02/07/10
02/07	CARTE X7272 28/05 ESCOT 2705-3005	21,50		-141,03	02/07/10
02/07	CARTE X7272 28/05 TOTAL PUGET THENIER	79,79		-523,39	02/07/10
02/07	CARTE X7272 29/05 A.R.E.A.	20,60		-135,13	02/07/10
02/07	CARTE X7272 03/06 SUPER U	7,99		-52,41	02/07/10
02/07	CARTE X7272 04/06 OSCARO.COM COMMERCE ELECTRONIQUE	15,86		-104,03	02/07/10
02/07	CARTE X7272 04/06 BOUYG TEL COMMERCE ELECTRONIQUE	108,99		-714,93	02/07/10
02/07	CARTE X7272 07/06 REL.ELF DU DORON	65,86		-432,01	02/07/10
02/07	CARTE X7272 14/06 ESCOT 1406-1606	4,90		-32,14	02/07/10
02/07	CARTE X7272 14/06 A.R.E.A.	10,80		-70,84	02/07/10
02/07	CARTE X7272 14/06 MC DONALD'S	11,65		-76,42	02/07/10
02/07	CARTE X7272 16/06 LECLERC	64,32		-421,91	02/07/10
02/07	CARTE X7272 17/06 GEANT CG835	52,10		-341,75	02/07/10
02/07	CARTE X7272 18/06 PASCAL COSTE	20,50		-134,47	02/07/10
02/07	CARTE X7272 21/06 ESCOT 2106-2306	7,20		-47,23	02/07/10
02/07	CARTE X7272 21/06 R.BREGUIERES SUD	58,10		-381,11	02/07/10
17/07	➤ COTISATION JAZZ	8,00 *		-52,48	17/07/10
	TOTAUX DES MOUVEMENTS	40.693,82	48.425,26		

AGENCE : NICE MUSICIENS
TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI



RELEVÉ DE COMPTE
en euros

n° [REDACTED]

du 23 06 2010 au 21 07 2010

BDB

envoi n° 7 page 2/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	NOUVEAU SOLDE		7.267,65	+47.672,66	

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

(1) Les contre-valeurs en francs ont été calculées sur la base de 1 euro = 6,55957 francs. Les montants d'opérations exprimés en francs n'ont qu'une valeur indicative. Le solde en francs est la contre-valeur du solde en euros après application des règles de conversion et d'arrondis.

Votre code client figurant ci-dessous, complété par votre code secret personnalisable, vous permet d'utiliser l'ensemble des services de Banque à Distance : Internet, Internet Mobile et [REDACTED]

Code Client : M. MARC MOSZKOWSKI [REDACTED]

Si vous ne connaissez pas votre code secret Banque à Distance, contactez votre Conseiller en Agence ou appelez le [REDACTED] touche #.

* Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2009 : 0,34€ TTC/min depuis une ligne fixe France Télécom, en France métropolitaine. Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

En cas d'utilisation de votre découvert autorisé, le taux qui vous sera appliqué pour le calcul des intérêts s'établit à 17,60%
(Taux effectif global 19,24% équivalent au Taux journalier de 0,0482%),
à compter du 01/07/2010.
Pour tout besoin de trésorerie, consultez votre conseiller de clientèle.

Filigrane LE FIL ROUGE DE VOTRE FIDÉLITÉ

N° d'adhérent JAZZ : 04608277

Votre situation au : 30/06/2010

29376 solde précédent	+	455 points acquis	-	0 points utilisés	-	0 points annulés	=	29831 * nouveau solde
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*dont 7741 points à utiliser avant le 31/12/2010.

Depuis le 1er juin 2010, Nouveau barème de points Filigrane !
Retrouvez-le et commandez vos cadeaux sur www.particuliers.societegenerale.fr, E
Service Clientèle Filigrane : 09 69 36 7000 appel non surtaxé

Internet : @www.societegenerale.fr



Votre banque par téléphone : 3933

Perte ou vol de carte : 09 69 39 77 77

tarif au 01/01/06 : 0,34 € TTC/min

appel non surtaxé

SOCIÉTÉ GÉNÉRALE S.A. AU CAPITAL DE 927 662 690,00 EUR. SIÈGE SOCIAL : 29 BD HAUSSMANN, 75009 PARIS. 552 120 222 R.C.S. PARIS

RA4-39F

SOCIETE GENERALE

RELEVÉ D'IDENTITÉ BANCAIRE

TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI

DOMICILIATION AGENCE SOCIETE GENERALE
[REDACTED]
Tél. : [REDACTED]

REFERENCES BANCAIRES

Banque	Agence	Numéro de compte	Clé
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

IDENTIFICATION INTERNATIONALE
IBAN : [REDACTED]
BIC-ADRESSE SWIFT : SOGEFRPP

A remettre à tout organisme demandant vos références bancaires



RELEVÉ DE COMPTE

en euros

n° [REDACTED]

du 22 01 2011 au 21 02 2011

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

BDB

envoi n° 2 page 1/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	SOLDE PRECEDENT		432,61	+2.837,74	
25/01	CARTE X5147 RETRAIT DAB 22/01 20H54 CA DES SAVOIE 04842124	40,00		-262,38	25/01/11
26/01	CARTE X5147 RETRAIT DAB 25/01 14H20 CA DES SAVOIE 04842124	40,00		-262,38	26/01/11
	*** SOLDE AU 31/01/2011	+352,61 ***			
01/02	CARTE X5147 31/12 DISSERKOI	69,00		-452,61	01/02/11
01/02	CARTE X5147 02/01 GGE DU GD PONT	0,19		-1,25	01/02/11
01/02	CARTE X5147 02/01 LAGODA	42,06		-275,90	01/02/11
01/02	CARTE X5147 03/01 GGE DU GD PONT	25,02		-164,12	01/02/11
01/02	CARTE X5147 12/01 LA POYA	81,60		-535,26	01/02/11
01/02	CARTE X5147 16/01 SULPICE TELE COMMERCE ELECTRONIQUE	10,80		-70,84	01/02/11
01/02	CARTE X5147 19/01 LAGODA	25,87		-169,70	01/02/11
01/02	CARTE X5147 21/01 EUROSPORT COMMERCE ELECTRONIQUE	4,90		-32,14	01/02/11
01/02	CARTE X5147 22/01 LE CANADA	29,25		-191,87	01/02/11
01/02	CARTE X5147 23/01 CHAL BOUQUETIN	68,30		-448,02	01/02/11
08/02	VIR RECU 035R55931 DE: TOKE OIL AND GAD SA HOTEL DILI SUITE 1 56 RUA DOS MOTIF: PAYMENT OF SERVICES MONTANT RECU: 50000,00 USD TAUX CHANGE: EUR/USD 1,37200		36 443,15	+239 051,39	08/02/11
08/02	➤ FRAIS SUR VIR INTL RECU 035R55931 REF 0358003 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 18,22	34,72 *		-227,75	08/02/11
14/02	VIR RECU 041R49088 DE: MARC MICHEL MOSZKOWSKI 10440 DEERWOOD RD 337 MONTANT RECU: 5400,00 USD TAUX CHANGE: EUR/USD 1,37370		3 930,99	+25 785,60	14/02/11
14/02	VIREMENT VIRT FAV.01395/00050138438 ORDRE FAX	39 000,00		-255 823,23	14/02/11
14/02	➤ FRAIS SUR VIR INTL RECU 041R49088 REF 0415353 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 14,00	30,50 *		-200,07	14/02/11
	TOTAUX DES MOUVEMENTS	39.502,21	40.374,14		

SOCIÉTÉ GÉNÉRALE S.A. AU CAPITAL DE 933 027 038,75 EUR. SIÈGE SOCIAL, 29 BD HAUSSMANN, 75009 PARIS. 552 120 222 R.C.S. PARIS

RA4-39G

AGENCE : NICE MUSICIENS
TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI



RELEVÉ DE COMPTE
en euros

n° [REDACTED]

du 22 01 2011 au 21 02 2011

BDB

envoi n° 2 page 2/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	NOUVEAU SOLDE		1.304,54	+8.557,22	

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

(1) Les contre-valeurs en francs ont été calculées sur la base de 1 euro = 6,55957 francs. Les montants d'opérations exprimés en francs n'ont qu'une valeur indicative. Le solde en francs est la contre-valeur du solde en euros après application des règles de conversion et d'arrondis.

Votre code client figurant ci-dessous, complété par votre code secret personnalisable, vous permet d'utiliser l'ensemble des services de Banque à Distance : Internet, Internet Mobile et [REDACTED]

Code Client : M. MARC MOSZKOWSKI [REDACTED]

Si vous ne connaissez pas votre code secret Banque à Distance, contactez votre Conseiller en Agence ou appelez le [REDACTED] touche #.

* Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2009 : 0,34€ TTC/min depuis une ligne fixe France Télécom, en France métropolitaine. Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

Internet : @www.societegenerale.fr



Votre banque par téléphone : 3933
tarif au 01/01/06 : 0,34 € TTC/mn

Perte ou vol de carte : 09 69 39 77 77
appel non surtaxé

SOCIÉTÉ GÉNÉRALE S.A. AU CAPITAL DE 933 027 038,75 EUR. SIÈGE SOCIAL, 29 BD HAUSSMANN, 75009 PARIS, 552 120 222 R.C.S. PARIS

RA4-39G


**SOCIÉTÉ
GÉNÉRALE**
RELEVÉ DE COMPTE
COMPTE DE PARTICULIER - en euros

n°

VOS CONTACTS

 du 21/05/2011 au 21/06/2011
 envoi n°6 Page 1/2

Votre Banque à Distance, 24 h/24

Code client

M. MARC MOSZKOWSKI

Internet :

Internet mobile :

Téléphone :

Votre agence NICE MUSICIENS

Par messagerie dans votre Espace Client

Téléphone :

Fax :

Votre Conseiller en agence

Téléphone :

BDB

M. MARC MOSZKOWSKI

LE VERDOS

83300 CHATEAUDOUBLE

RELEVÉ DES OPÉRATIONS

Contre-valeur indicative 1 euro = 6.55957 francs

Date	Valeur	Nature de l'opération	Débit	Crédit
SOLDE PRÉCÉDENT AU 20/05/2011			219,72	
23/05/2011	23/05/2011	CARTE X5147 RETRAIT DAB 21/05 11H25 HSBC FRANCE DRAGUIGNAN 771641	20,00	
27/05/2011	27/05/2011	VIR RECU 145R54813 DE: VICENTE XIMENES VILA VERDE MOTIF: PAY TO MARC ACCOUNT MONTANT RECU: 74975,00 USD TAUX CHANGE: EUR/USD 1,41540 ORIGINE: 75000,00 USD		52.970,89
27/05/2011	27/05/2011	> FRAIS SUR VIR INTL RECU 145R54813 REF 1454002 1 COMMISSION DE CHANGE POUR: 26,49	26,49*	
*** SOLDE AU 31/05/2011 + 52.704,68 ***				
01/06/2011	01/06/2011	CARTE X5147 03/05 ESCOT 0205-0405	5,00	
01/06/2011	01/06/2011	CARTE X5147 03/05 A.R.E.A.	11,10	
01/06/2011	01/06/2011	CARTE X5147 03/05 REL.ELF DU DORON	77,70	
01/06/2011	01/06/2011	CARTE X5147 04/05 MC DONALD'S/TRANS	7,80	
01/06/2011	01/06/2011	CARTE X5147 06/05 SPF DL	62,37	
01/06/2011	01/06/2011	CARTE X5147 06/05 CARREFOUR DRAGUI	106,63	
01/06/2011	01/06/2011	CARTE X5147 13/05 CARREFOUR MARKET	35,87	
01/06/2011	01/06/2011	CARTE X5147 16/05 INTERMARCHÉ	63,17	
01/06/2011	01/06/2011	CARTE X5147 19/05 LECLERC STATION	79,60	
01/06/2011	01/06/2011	CARTE X5147 20/05 ESCOT 1905-2205	4,60	
01/06/2011	01/06/2011	CARTE X5147 20/05 MAISON DE LA BOU	19,96	
01/06/2011	01/06/2011	CARTE X5147 20/05 CARREFOUR TRANS	73,03	
01/06/2011	01/06/2011	CARTE X5147 21/05 SPF DL	45,36	
01/06/2011	01/06/2011	CARTE X5147 29/04 Agip Suisse SA 220	30,89	
		30,89 EUR SUISSE		

 1 Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2011 : 0,34 eur TTC/min depuis une ligne fixe France Télécom, en France métropolitaine.
 Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

 Société Générale
 S.A. au capital de 933 027 038,75 Eur

 552 120 222 RCS Paris
 Siège Social
 29, bd Haussmann 75009 Paris

 X
 RM4-01A


RELEVÉ DE COMPTE
COMPTE DE PARTICULIER - en euros

 n° [REDACTED]
 du 21/05/2011 au 21/06/2011
 envoi n°6 Page 2/2

Date	Valeur	Nature de l'opération	Débit	Crédit
01/06/2011	01/06/2011	CARTE X5147 30/04 Restaurant Le Sonalon 70,80 CHF SUISSE 1 EUR=1,2861 CHF	55,05	
04/06/2011	04/06/2011	> FRAIS PAIEMENT HORS ZONE EURO 1 PAIEMENT A 1,00 EUR NT 55,05 EUR A 2,70%	2,49*	
04/06/2011	04/06/2011	> FRAIS PAIEMENT HORS ZONE EURO 1 PAIEMENT A 1,00 EUR NT 30,89 EUR A 2,70%	1,83*	
06/06/2011	06/06/2011	VIREMENT	45.000,00	
18/06/2011	18/06/2011	> COTISATION JAZZ	7,50*	
18/06/2011	18/06/2011	> OPTION TRANQUILLITE	0,50*	
TOTAUX DES MOUVEMENTS			45.736,94	52.970,89

NOUVEAU SOLDE AU 21/06/2011 **+ 7.014,23**

Soit pour information, solde en francs de + 46.010,33 F

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.



LE FIL ROUGE DE VOTRE FIDÉLITÉ

N° d'adhérent JAZZ : 04608277

Votre situation au : 31/05/2011

24964 solde précédent	+	319 points acquis	-	0 points utilisés	-	0 points annulés	=	25283* nouveau solde
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* dont 8839 points à utiliser avant le 31/12/2011

Avec JAZZ, votre fidélité est récompensée !
 Pour en savoir plus sur vos points ou les transformer en cadeaux, connectez-vous
 sur www.particuliers.societegenerale.fr ou contactez le 09 69 36 7000

Department of Homeland Security
U.S. Citizenship and Immigration Services

OMB No. 1615-0009; Expires 10/31/2013

**I-129, Petition for a
Nonimmigrant Worker**

START HERE - Type or print in black ink.

Part 1. Petitioner Information

(If the employer is an individual, complete Number 1; Organizations complete Number 2.) Use the mailing address of the petitioner.

1. Legal Name of Employer:

a. Last Name (Family Name)

b. First Name (Given Name)

c. Full Middle Name

2. Company or Organization:

Name of Company or Organization

DeepGulf, Inc.

3. Mailing Address:

a. C/O: (In Care Of, if any)

Mr. Rus Howard - Chairman

b. Street Number and Name

17 South Palafox Place

c. Suite/Apt. Number

370

d. City

Pensacola

e. State/Province

FL

f. Country

USA

g. Zip/Postal Code

32502

h. Telephone Number (include area code) (Do not leave spaces or type any special characters)

(850) 470-9388

i. E-Mail Address

rus.howard@deep-gulf.com

j. Federal Employer Identification Number

20-2250919

k. Individual Tax Number

N/A

l. Social Security Number

N/A

Receipt

Class: _____

of Workers: _____

Job Code: _____

Validity Dates: _____

From: _____

To: _____

☐ **Classification Approved**

☐ Consulate/POE/PFI Notified At _____

☐ Extension Granted

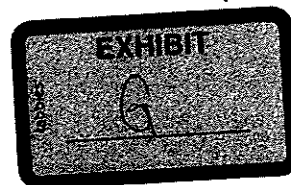
☐ COS/Extension Granted

Partial Approval (explain)

Action Block



Form I-129 (Rev. 11/23/10)N



Part 2. Information About This Petition *(See instructions for fee information.)*1. Requested Nonimmigrant Classification *(Write classification symbol):* H-1B2. Basis for Classification *(Check one):*

- ☐ a. New employment.
- ☒ b. Continuation of previously approved employment without change with the same employer.
- ☐ c. Change in previously approved employment.
- ☐ d. New concurrent employment.
- ☐ e. Change of employer.
- ☐ f. Amended petition.

3. Provide the most recent petition/application receipt number for the beneficiary. If none exists, indicate "N/A."

EAC-08-157-536784. Requested Action *(Check one):*

- ☐ a. Notify the office in Part 4 so each beneficiary can obtain a visa or be admitted. *(NOTE: A petition is not required for an E-1, E-2, H-1B1 Chile/Singapore, or TN visa.)*
- ☐ b. Change each beneficiary's status and extend their stay since he, she, or they are all now in the U.S. in another status *(see instructions for limitations)*. This is available only where you check "New Employment" in Item 2, above.
- ☒ c. Extend the stay of each beneficiary since he, she, or they now hold this status.
- ☐ d. Amend the stay of each beneficiary since he, she, or they now hold this status.
- ☐ e. Extend the status of a nonimmigrant classification based on a Free Trade Agreement. *(See Free Trade Supplement for TN and H1B1 to Form I-129.)*
- ☐ f. Change status to a nonimmigrant classification based on a Free Trade Agreement. *(See Free Trade Supplement for TN and H1B1 to Form I-129.)*

5. Total number of workers in petition *(See instructions relating to when more than one worker can be included.):* 1

Form I-129 (Rev. 11/23/10)N Page 2

Part 3. Beneficiary Information: Information about the beneficiary/beneficiaries you are filing for. *Complete the blocks below. Use the continuation sheet to name each beneficiary included in this petition.*

1. If an Entertainment Group, Give the Group Name

N/A

a. Family Name (Last Name)

Moszkowski

b. Given Name (First Name)

Marc

c. Full Middle Name

Michel

d. All Other Names Used (include aliases, maiden name and names from all previous marriages)

None

e. Date of Birth (mm/dd/yyyy)

06/25/1954

f. Gender

☒ Male

☐ Female

g. U.S. Social Security Number (if any)

629-72-7315

h. A-Number (if any)

A: N/A

i. Country of Birth

The Netherlands

j. Province of Birth

Drenthe

k. Country of Citizenship

France

2. If in the United States, complete the following:

a. Date of Last Arrival (mm/dd/yyyy)

05/02/2011

b. I-94 Number (Arrival/Departure Document)

507611812 25

c. Current Nonimmigrant Status

H-1B

d. Date Status Expires (mm/dd/yyyy) or D/S

08/11/2011

e. Student & Exchange Visitor Information System (SEVIS) Number (if any)

N/A

f. Employment Authorization Document (EAD) Number (if any)

N/A

g. Passport Number

08CT98641

h. Date Passport Issued (mm/dd/yyyy)

10/14/2008

i. Date Passport Expires (mm/dd/yyyy)

03/06/2015

j. Current U.S. Address (if applicable)

427 E. Zaragoza St., Pensacola, FL 32502

Part 4. Processing Information

1. If the beneficiary or beneficiaries named in Part 3 is/are outside the United States or a requested extension of stay or change of status cannot be granted, state the U.S. consulate or inspection facility you want notified if this petition is approved.

a. Type of Office (Check one): ☒ Consulate ☐ Pre-flight inspection ☐ Port of Entry

b. Office Address (City)

Paris

c. U.S. State or Foreign Country

France

d. Beneficiary's Foreign Address

Le Verdos, Chateaudouble, 83300, France



Form I-129 (Rev. 11/23/10)N Page 3

Part 4. Processing Information (Continued)

2. Does each person in this petition have a valid passport?

☐ Not required to have passport☐ No - Go to Page 7, Part 9 and write your explanation☒ Yes

3. Are you filing any other petitions with this one?

☒ No☐ Yes - How many?

4. Are applications for replacement/initial I-94s being filed with this petition?

☒ No☐ Yes - How many?

5. Are applications by dependents being filed with this petition?

☒ No☐ Yes - How many?

6. Is any beneficiary in this petition in removal proceedings?

☒ No☐ Yes - explain on Page 7, Part 9

7. Have you ever filed an immigrant petition for any beneficiary in this petition?

☒ No☐ Yes - explain on Page 7, Part 9

8. If you indicated you were filing a new petition in Part 2 within the past 7 years, has any beneficiary in this petition:

a. Ever been given the classification you are now requesting? N/A

☐ No☐ Yes - explain on Page 7, Part 9

b. Ever been denied the classification you are now requesting? N/A

☐ No☐ Yes - explain on Page 7, Part 9

9. Have you ever previously filed a petition for this beneficiary?

☐ No☒ Yes - explain on Page 7, Part 9

10. If you are filing for an entertainment group, has any beneficiary in this petition not been with the group for at least 1 year? N/A

☐ No☐ Yes - explain on Page 7, Part 9

11a. Has any beneficiary in this petition ever been a J-1 exchange visitor or J-2 dependent of a J-1 exchange visitor? N/A

☐ No☐ Yes

11b. If yes to 11a, provide the dates the beneficiary maintained status as a J-1 exchange visitor or J-2 dependent. Also, provide evidence of this status by attaching a copy of either a DS-2019, Certificate of Eligibility for Exchange Visitor status, a Form IAP-66, or a copy of the passport that includes the J visa stamp.

N/A

Part 5. Basic Information About the Proposed Employment and Employer (Attach the supplement relating to the classification you are requesting.)

1. Job Title

President

2. LCA or ETA Case Number

I-200-11006-405569

3. Address where the beneficiary(es) will work if different from address in Part 1. (Street number and name, city/town, state, zip code)

Same as above.

4. Is an itinerary included with the petition? ☒ No ☐ Yes5. Will the beneficiary work off-site? ☒ No ☐ Yes

Form I-129 (Rev. 11/23/10)N Page 4

Part 5. Basic Information About the Proposed Employment and Employer *(Attach the supplement relating to the classification you are requesting.) (Continued)*

6. Will the beneficiary(ies) work exclusively in the CNMI? ☒ No ☐ Yes

7. Is this a full-time position?

☐ No

☒ Yes

If "No," Hours per week:

8. Wages per week or per year:

\$132,000.00 / per year

9. Other Compensation *(Explain)*

None

10. Dates of intended employment *(mm/dd/yyyy)*:

From: 08/01/2011

To: 07/03/2014

11. Type of Business

Offshore pipelaying company

12. Year Established

2005

13. Current Number of Employees in the U.S.

6

14. Gross Annual Income

See attached.

15. Net Annual Income

See attached.

Part 6. Certification Regarding the Release of Controlled Technology or Technical Data to Foreign Persons in the United States

(For H-1B, H-1B1 Chile/Singapore, L-1, and O-1A petitions only. This section of the form is not required for all other classifications. See Page 3 of the Instructions before completing this section.)

Check Box 1 or Box 2 as appropriate:

With respect to the technology or technical data the petitioner will release or otherwise provide access to the beneficiary, the petitioner certifies that it has reviewed the Export Administration Regulations (EAR) and the International Traffic in Arms Regulations (ITAR) and has determined that:

- ☒ 1. A license is not required from either U.S. Department of Commerce or the U.S. Department of State to release such technology or technical data to the foreign person; or
- ☐ 2. A license is required from the U.S. Department of Commerce and/or the U.S. Department of State to release such technology or technical data to the beneficiary and the petitioner will prevent access to the controlled technology or technical data by the beneficiary until and unless the petitioner has received the required license or other authorization to release it to the beneficiary.



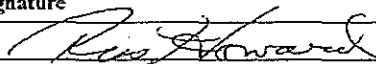
Form I-129 (Rev. 11/23/10)N Page 5

Part 7. Signature *Read the information on penalties in the instructions before completing this section.*

I certify, under penalty of perjury that this petition and the evidence submitted with it are true and correct to the best of my knowledge. I authorize the release of any information from my records, or from the petitioning organization's records that U.S. Citizenship and Immigration Services needs to determine eligibility for the benefit being sought. I recognize the authority of USCIS to conduct audits of this petition using publicly available open source information. I also recognize that supporting evidence submitted may be verified by USCIS through any means determined appropriate by USCIS, including but not limited to, on-site compliance reviews.

If filing this petition on behalf of an organization, I certify that I am authorized to do so by the organization.

Signature

 Chairman

Daytime Phone Number (Area/Country Code)

(850) 470-9388

Print Name

Rus Howard

Date (mm/dd/yyyy)

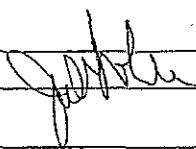
02/03/2011

NOTE: If you do not completely fill out this form and the required supplement, or fail to submit required documents listed in the instructions, the person(s) filed for may not be found eligible for the requested benefit and this petition may be denied.

Part 8. Signature of Person Preparing Form, If Other Than Above

I declare that I prepared this petition at the request of the above person and I certify that it is true and correct to the best of my knowledge.

Signature



Daytime Phone Number (Area/Country Code)

(617) 348-3025

Print Name

Jeffrey W. Goldman

Date (mm/dd/yyyy)

2-8-11

Firm Name and Address

Mintz Levin Cohn Ferris Glovsky & Popeo PC
One Financial Center, 45th Floor Boston, MA 02111

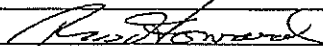


Form I-129 (Rev. 11/23/10)N Page 6

Part 9. Explanation Page

Part 4. Processing Information (Continued). 9. Yes. The Petitioner filed an H-1B on behalf of the Beneficiary on May 13, 2008 under EAC-08-157-53678, which was approved on June 16, 2008 and valid for H-1B status from 08/02/2008 to 08/01/2011. Prior to this, the Petitioner filed an initial H-1B on behalf of the Beneficiary on August 22, 2005 under SRC-05-232-52893, which was approved on September 8, 2005 and valid for H-1B status from 09/08/2005 to 08/01/2008.

Signature

 Chairman

Date (mm/dd/yyyy)

02/03/2011

Print Name

Rus Howard



Form I-129 (Rev. 11/23/10)N Page 7

OMB No.1615-0009; Expires 10/31/2013

Department of Homeland Security
U.S. Citizenship and Immigration Services**H Classification**
Supplement to Form I-129

1. Name of the petitioner

DeepGulf, Inc.

2. Name of the beneficiary or if this petition includes multiple beneficiaries, the total number of beneficiaries

Marc Michel Moszkowski

3. List each beneficiary's prior periods of stay in H or L classification in the United States for the last 6 years (beneficiaries requesting H-2A or H-2B classification need only list the last 3 years). Be sure to only list those periods in which each beneficiary was actually in the United States in an H or L classification. Do not include periods in which the beneficiary was in a dependent status, for example, H-4 or L-2 status.

NOTE: Submit photocopies of Forms I-94, I-797, and/or other USCIS issued documents noting these periods of stay in the H or L classification. If more space is needed, attach an additional sheet.

Subject's Name	Period of Stay (mm/dd/yyyy)	
	From	To
Marc Moszkowski	2005	Present except
		dates in
		attached chart

4. Classification sought (Check one):

☒ a. H-1B Specialty Occupation☐ e. H-2A Agricultural worker☐ b. H-1B2 Exceptional services relating to a cooperative research and development project administered by the U.S. Department of Defense (DOD)☐ f. H-2B Non-agricultural worker☐ c. H-1B3 Fashion model of national or international acclaim☐ g. H-3 Trainee☐ d. H-1C Registered Nurse☐ h. H-3 Special education exchange visitor program

5. Are you filing this petition on behalf of an alien subject to the Guam-CNMI cap exemption under Public Law 110-229?

☒ No☐ Yes**Section 1. Complete This Section If Filing for H-1B Classification**

1. Describe the proposed duties

As President, the Beneficiary will manage the company and negotiate and secure contracts for offshore pipelaying projects using his knowledge of economics, accounting the marine pipelaying industry and computer programming. See Petitioner's Support Letter attached.

2. Beneficiary's present occupation and summary of prior work experience

The Beneficiary is currently investigating business opportunities for DeepGulf, Inc. he began his career in 1982 in the offshore oil and gas construction industry as marine operation manager with ETPM (now Stolt Offshore). He later served as a field engineer and project manager. In 1981, he earned a Bachelor's degree from the National Marine Academy in France. See Petitioner's Support Letter attached.

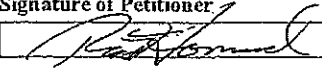


Form I-129 Supplement H (Rev. 11/23/10)N Page 11

Section 1. Complete This Section If Filing for H-1B Classification (Continued)**Statement for H-1B specialty occupations only:**

By filing this petition, I agree to, and will abide by, the terms of the labor condition application (LCA) for the duration of the beneficiary's authorized period of stay for H-1B employment. I certify that I will maintain a valid employer-employee relationship with the beneficiary at all times. If the beneficiary is assigned to a position in a new location I will obtain and post an LCA for that site prior to reassignment.

I further understand that I cannot charge the beneficiary the ACWIA fee, and that any other required reimbursement will be considered an offset against wages and benefits paid relative to the LCA.

Signature of Petitioner	Print or Type Name	Date (mm/dd/yyyy)
	Rus Howard, Chairman	02/03/2011

Statement for H-1B specialty occupations and U.S. Department of Defense projects:

As an authorized official of the employer, I certify that the employer will be liable for the reasonable costs of return transportation of the alien abroad if the beneficiary is dismissed from employment by the employer before the end of the period of authorized stay.

Signature of Authorized Official of Employer	Print or Type Name	Date (mm/dd/yyyy)
	Rus Howard, Chairman	02/03/2011

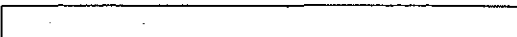
Statement for H-1B U.S. Department of Defense projects only:

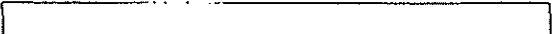
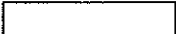
I certify that the beneficiary will be working on a cooperative research and development project or a co-production project under a reciprocal government-to-government agreement administered by the U.S. Department of Defense.

Signature of DOD Project Manager	Print or Type Name	Date (mm/dd/yyyy)
		

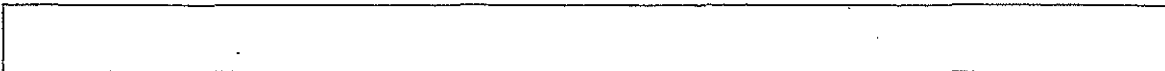
Section 2. Complete This Section If Filing For H-1C Classification

I certify under penalty of perjury, under the laws of the United States of America, that this attachment and the evidence submitted with it is true and correct. If filing this petition on behalf of an organization or entity, I certify that I am empowered to do so by that organization or entity. I authorize the release of any information from my records, or from the petitioning organization or entity's records, that U.S. Citizenship and Immigration Services may need to determine eligibility for the benefit being sought.

Signature	Print or Type Name
	

Title	Date (mm/dd/yyyy)
	

Firm Name and Address





Form I-129 Supplement H (Rev. 11/23/10)N Page 12

OMB No.1615-0009; Expires 10/31/2013

Department of Homeland Security
U.S. Citizenship and Immigration Services**H-1B Data Collection and
Filing Fee Exemption Supplement**

1. Name of the petitioner

DeepGulf, Inc.

2. Name of the beneficiary

Marc Michel Moszkowski

Part A. General Information**1. Employer Information - (check all items that apply)**

- a. Is the petitioner an H-1B dependent employer? ☒ No ☐ Yes
- b. Has the petitioner ever been found to be a willful violator? ☒ No ☐ Yes
- c. Is the beneficiary an H-1B nonimmigrant exempt from the Dept. of Labor attestation requirements? ☐ No ☒ Yes
1. If yes, is it because the beneficiary's annual rate of pay is equal to at least \$60,000? ☐ No ☒ Yes
2. Or is it because the beneficiary has a master's or higher degree in a specialty related to the employment? ☒ No ☐ Yes
- d. Has the petitioner received TARP funding (provide explanation on Page 7, Part 9 if the petitioner has subsequently repaid all TARP funding)? ☒ No ☐ Yes
- e. Does the petitioner employ 50 or more individuals in the U.S.? ☒ No ☐ Yes
- If yes, are more than 50% of those employees in H-1B or L nonimmigrant status? ☐ No ☐ Yes

2. Beneficiary's Highest Level of Education (Check one box below)

- ☐ a. NO DIPLOMA
- ☐ b. HIGH SCHOOL GRADUATE DIPLOMA or the equivalent (example: GED)
- ☐ c. Some college credit, but less than 1 year
- ☐ d. One or more years of college, no degree
- ☐ e. Associate's degree (for example: AA, AS)
- ☒ f. Bachelor's degree (for example: BA, AB, BS)
- ☐ g. Master's degree (for example: MA, MS, MEng, MEd, MSW, MBA)
- ☐ h. Professional degree (for example: MD, DDS, DVM, LLB, JD)
- ☐ i. Doctorate degree (for example: PhD, EdD)

3. Major/Primary Field of Study

Maritime Operations

4. Rate of Pay Per Year

\$132,000.00 per year

5. DOT Code

0 1 0

6. NAICS Code

5 6 1 1 1 0

Part B. Fee Exemption Determination

In order for USCIS to determine if you must pay the additional \$1,500 or \$750 American Competitiveness and Workforce Improvement Act (ACWIA) fee, answer all of the following questions:

- ☒ No ☐ Yes 1. Are you an institution of higher education as defined in section 101(a) of the Higher Education Act of 1965, 20 U.S.C. 1001(a)?
- ☒ No ☐ Yes 2. Are you a nonprofit organization or entity related to or affiliated with an institution of higher education, as defined in section 101(a) of the Higher Education Act of 1965, 20 U.S.C. 1001(a)?
- ☒ No ☐ Yes 3. Are you a nonprofit research organization or a governmental research organization, as defined in 8 CFR 214.2(h)(19)(iii)(C)?
- ☐ No ☒ Yes 4. Is this the second or subsequent request for an extension of stay that this petitioner has filed for this alien?
- ☒ No ☐ Yes 5. Is this an amended petition that does not contain any request for extensions of stay?

Form I-129 H-1B Data Collection Supplement (Rev. 11/23/10)N Page 17





February 3, 2011

Via Federal Express

U.S. Citizenship and Immigration Services
Vermont Service Center
ATTN: I-129
75 Lower Welden Street
St. Albans, VT 05479-0001

Re: I-129 (H-1B) Petition filed by DeepGulf, Inc. on behalf of Marc M. Moszkowski

Dear Sir or Madam:

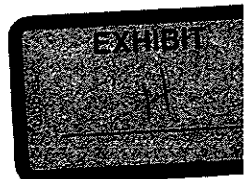
This letter is written to support our H-1B Nonimmigrant Petition to continue to temporarily employ Mr. Marc M. Moszkowski, a national of France, as an H-1B Professional Worker in the Specialty Occupation of President. We will continue to employ Mr. Moszkowski for a period of time up to 2 years and 8 months and pay him at an annual salary rate of \$132,000.

The Petitioner

Founded in 2005, DeepGulf, Inc. builds underwater pipelines and associated facilities in deep and ultra-deep offshore oil and gas production fields, primarily in the Gulf of Mexico. The company intends to become the world's leading deep underwater oil and gas transportation business by leveraging the strategic advantages offered by its exclusive novel technologies. DeepGulf's patented technologies give it several strategic advantages over competitors and will enable it to secure a major market share of the industry. Specifically, the proprietary J-Flex' and Remote Dynamic Positioning technologies will allow the company to install deeper and bigger deep water equipment, infrastructure and pipelines at a fraction of the investment and cost of competitors. **See Exhibit 1, Petitioner's descriptive information. Also see Exhibit 2, Petitioner's financial information.**

The Specialty Occupation

We wish to continue to employ Mr. Moszkowski in the professional position of President. In this role, he will manage the company and negotiate and secure contracts for offshore pipelaying projects using his knowledge of economics, accounting, the marine pipelaying industry and computer programming. He will implement the company's business plan by improving the company's market share and will be responsible for ensuring that the company complies with U.S. maritime laws. Mr. Moszkowski will also promote the company's proprietary patented technologies in order to leverage the company's strategic advantages into a bigger market share in the industry.



This position is professional in nature and requires at a minimum a Bachelor's degree or the equivalent in Engineering, Maritime Operations, Business, Economics or a related field. This is clearly a specialty occupation because it is standard practice in the industry to hire individuals for this position with a degree, or its equivalent, in this area.

The Beneficiary

Mr. Moszkowski is well qualified for the offered position. In 1981 he earned a degree from the National Merchant Marine Academy in France. This degree has been professionally evaluated and is equivalent to a Bachelor of Science degree in Maritime Operations and Technology from a regionally accredited U.S. university. In addition, Mr. Moszkowski also has experience in the Engineering field. Mr. Moszkowski has extensive management and engineering experience with substantial projects completed in offshore gas and oil. His ability to bring projects to completion within the schedule and budget will enable him to lead the company to success. See Exhibit 3, copies of Beneficiary's educational credentials.

Terms of Employment

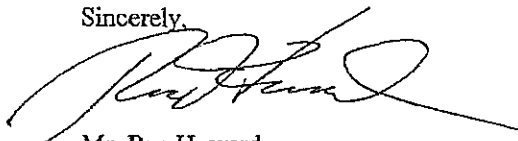
Please note that we have obtained from the U.S. Department of Labor a certified Labor Condition Application in connection with this H-1B petition, and we will abide by the terms of that application for the duration of Mr. Moszkowski's employment by us in H-1B status. See Exhibit 4, signed certified Labor Condition Application Form 9035. As noted, Mr. Moszkowski will be paid an annualized salary of \$132,000.00. This is an at-will employment relationship.

Conclusion

Mr. Moszkowski is currently in the U.S. in H-1B status valid to August 1, 2011. Mr. Moszkowski is seeking to extend his H-1B visa status to April 22, 2014 upon approval of this petition. See Exhibit 5, copies of Beneficiary's biographic page in current Passport, H-1B and B1/B2 visas, Form I-94, Forms I-797, and payslip.

In light of the foregoing, we respectfully request that you approve our H-1B petition on behalf of Mr. Marc M. Moszkowski. Thank you for your consideration of our petition.

Sincerely,



Mr. Rus Howard
Chairman

Department of Homeland Security
U.S. Citizenship and Immigration Services

OMB No. 1615-0009
**I-129, Petition for a
Nonimmigrant Worker**

START HERE - Please type or print in black ink.

For USCIS Use Only..

Part 1. Information about the employer filing this petition. *If the employer is an individual, complete Number 1. Organizations should complete Number 2.*

1. Family Name (Last Name)		Given Name (First Name)	
Full Middle Name		Telephone No. w/Area Code	
2. Company or Organization		Telephone No. w/Area Code	
DeepGulf, Inc.		(850) 377-1856	
Mailing Address: (Street Number and Name)		Suite #	
700 South Palafox Pier		160	
C/O: (In Care Of)			
City		State/Province	
Pensacola		FL	
Country		Zip/Postal Code	
USA		32502	
E-Mail Address (If Any)			
Federal Employer Identification #		U.S. Social Security #	
20-2250919			
		Individual Tax #	

Part 2. Information about this petition. *(See instructions for fee information.)*

1. Requested Nonimmigrant Classification. <i>(Write classification symbol):</i>	
H-1B	
2. Basis for Classification <i>(Check one):</i>	
a. ☒ New employment (including new employer filing H-1B extension). b. ☐ Continuation of previously approved employment without change with the same employer. c. ☐ Change in previously approved employment. d. ☐ New concurrent employment. e. ☐ Change of employer. f. ☐ Amended petition.	
3. If you checked Box 2b, 2c, 2d, 2e, or 2f, give the petition receipt number.	
n/a	
4. Prior Petition. If the beneficiary is in the U.S. as a nonimmigrant and is applying to change and/or extend his or her status, give the prior petition or application receipt #:	
n/a	
5. Requested Action <i>(Check one):</i>	
a. ☒ Notify the office in Part 4 so the person(s) can obtain a visa or be admitted. <i>(NOTE: a petition is not required for an E-1, E-2 or R visa).</i> b. ☐ Change the person(s)' status and extend their stay since the person(s) are all now in the U.S. in another status <i>(see instructions for limitations)</i> . This is available only where you check "New Employment" in Item 2, above. c. ☐ Extend the stay of the person(s) since they now hold this status. d. ☐ Amend the stay of the person(s) since they now hold this status. e. ☐ Extend the status of a nonimmigrant classification based on a Free Trade Agreement. <i>(See Free Trade Supplement for TN and H1B1 to Form I-129).</i> f. ☐ Change status to a nonimmigrant classification based on a Free Trade Agreement. <i>(See Free Trade Supplement for TN and H1B1 to Form I-129).</i>	
6. Total number of workers in petition <i>(See instructions relating to when more than one worker can be included):</i>	
one	

Returned	Receipt
Date	
Date	
Resubmitted	
Date	
Date	
Reloc Sent	
Date	
Date	
Reloc Rec'd	
Date	
Date	
☐ Petitioner Interviewed on	
☐ Beneficiary Interviewed on	

Class: _____
of Workers: _____
Priority Number: _____
Validity Dates: _____
From: _____
To: _____

☐ Classification Approved
☐ Consulate/POE/PFI Notified
At _____
☐ Extension Granted
☐ COS/Extension Granted

Partial Approval (explain)

Action Block

**To Be Completed by
Attorney or Representative, if any.**
☒ Fill in box if G-28 is attached to represent the applicant.

ATTY State License #
54-8056

Form I-129 (Rev. 03/17/05)N (Prior paper editions may be used until 04/30/05. Certain E-filers may use prior electronic editions until 05/01/05.)

EXHIBIT 72

Part 3. Information about the person(s) you are filing for. Complete the blocks below. Use the continuation sheet to name each person included in this petition.**1. If an Entertainment Group, Give the Group Name**

n/a		
Family Name (Last Name)	Given Name (First Name)	Full Middle Name
MOSZKOWSKI	Marc	Michel
All Other Names Used (include maiden name and names from all previous marriages)		
none		
Date of Birth (mm/dd/yyyy)	U.S. Social Security # (if any)	A # (if any)
06/25/1954	629-72-7315	none
Country of Birth	Province of Birth	Country of Citizenship
The Netherlands	Drenthe	France

2. If in the United States, Complete the Following:

Date of Last Arrival (mm/dd/yyyy)	I-94 # (Arrival/Departure Document)	Current Nonimmigrant Status	
06/16/2005	76331606111	B2	
Date Status Expires (mm/dd/yyyy)	Passport Number	Date Passport Issued (mm/dd/yyyy)	Date Passport Expires (mm/dd/yyyy)
12/15/2005	04FK57470	03/07/2005	03/06/2015
Current U.S. Address			
10220 Memorial Drive, 19, Houston, TX 77024, USA			

Part 4. Processing Information.**1. If the person named in Part 3 is outside the United States or a requested extension of stay or change of status cannot be granted, give the U.S. consulate or inspection facility you want notified if this petition is approved.**

Type of Office (Check one): ☒ Consulate ☐ Pre-flight inspection ☐ Port of Entry

Office Address (City) U.S. State or Foreign Country

Paris	France
-------	--------

Person's Foreign Address

Le Verdos, Chateaudouble, 83300, France

2. Does each person in this petition have a valid passport?

☐ Not required to have passport ☐ No - explain on separate paper ☒ Yes

3. Are you filing any other petitions with this one? ☒ No ☐ Yes - How many?
4. Are applications for replacement/initial I-94s being filed with this petition? ☒ No ☐ Yes - How many?
5. Are applications by dependents being filed with this petition? ☒ No ☐ Yes - How many?
6. Is any person in this petition in removal proceedings? ☒ No ☐ Yes - explain on separate paper

Part 4. Processing Information. (Continued)

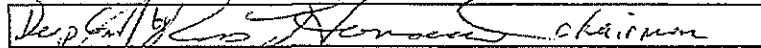
7. Have you ever filed an immigrant petition for any person in this petition? ☒ No ☐ Yes - explain on separate paper
8. If you indicated you were filing a new petition in Part 2, within the past seven years has any person in this petition:
- a. Ever been given the classification you are now requesting? ☐ No ☒ Yes - explain on separate paper
- b. Ever been denied the classification you are now requesting? ☒ No ☐ Yes - explain on separate paper
9. Have you ever previously filed a petition for this person? ☒ No ☐ Yes - explain on separate paper
10. If you are filing for an entertainment group, has any person in this petition not been with the group for at least one year? n/a ☐ No ☐ Yes - explain on separate paper

Part 5. Basic information about the proposed employment and employer. Attach the supplement relating to the classification you are requesting.

1. Job Title
President
2. Nontechnical Job Description
Manage corporation specializing in offshore pipelaying
3. LCA Case Number
I-05189-1883137
4. NAICS Code
561110
5. Address where the person(s) will work if different from address in Part 1. (Street number and name, city/town, state, zip code)
Same as Part 1 plus 10220 Memorial Drive, 19, Houston, TX 77024, USA
6. Is this a full-time position?
☐ No - Hours per week:
☒ Yes - Wages per week or per year: \$120,000 / year
7. Other Compensation (Explain)
Standard Benefits Package
8. Dates of intended employment (mm/dd/yyyy):
From: 08/01/2005 To: 08/01/2008
9. Type of Petitioner - Check one:
☐ U.S. citizen or permanent resident ☒ Organization ☐ Other - explain on separate paper
10. Type of Business
Offshore pipelaying company
11. Year Established
2005
12. Current Number of Employees
2
13. Gross Annual Income
see attached
14. Net Annual Income
see attached

Part 6. Signature. *Read the information on penalties in the instructions before completing this section.*

I certify, under penalty of perjury under the laws of the United States of America, that this petition and the evidence submitted with it is all true and correct. If filing this on behalf of an organization, I certify that I am empowered to do so by that organization. If this petition is to extend a prior petition, I certify that the proposed employment is under the same terms and conditions as stated in the prior approved petition. I authorize the release of any information from my records, or from the petitioning organization's records that the U.S. Citizenship and Immigration Services needs to determine eligibility for the benefit being sought.

Signature

Daytime Phone Number (Area/Country Code)

(850) 377-1856

Print Name

Rus Howard, Chairman

Date (mm/dd/yyyy)

7/20/05

NOTE: If you do not completely fill out this form and the required supplement, or fail to submit required documents listed in the instructions, the person(s) filed for may not be found eligible for the requested benefit and this petition may be denied.

Part 7. Signature of person preparing form, if other than above.

I declare that I prepared this petition at the request of the above person and it is based on all information of which I have any knowledge.

Signature

Daytime Phone Number (Area/Country Code)

(617) 348-3025

Print Name

Jeffrey Goldman

Date (mm/dd/yyyy)**Firm Name and Address**

Mintz Levin Cohn Ferris Glosky & Popeo PC, One Financial Center, Boston, MA 02111

April 6, 2014

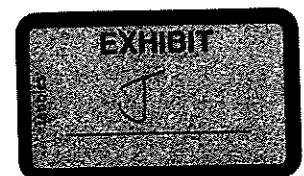
USCIS
Attn: AOS
2501 S. State Hwy, 121 Business
Suite 400
Lewisville, TX 75067

**RE: FORM I-140 IMMIGRANT PETITION FOR ALIEN WORKER
(EB-1 MULTINATIONAL EXECUTIVE)**
Petitioner: DeepGulf, Inc.
Beneficiary: Marc MOSZKOWSKI
Executive Position: President

Dear Sir/Madam:

This letter is submitted in support of the enclosed I-140 Immigrant Petition on behalf of Mr. Marc Moszkowski, a citizen of the Netherlands. We wish to employ Mr. Moszkowski on an indefinite basis as our Company's President, the Executive position he assumed in valid H-1B status on October 4, 2005. **See Exhibit 1, copies of Beneficiary's visa stamp and I-94 information.** Immediately prior to his U.S. transfer, and continuing to the present, Mr. Moszkowski has been employed concurrently as the President of Toke Oil and Gas, SA ("Toke Oil"), DeepGulf Inc.'s wholly-owned subsidiary located in Timor-Leste (East Timor) in Southeast Asia.

At this time, DeepGulf Inc. seeks to continue Mr. Moszkowski's executive employment. In the United States, he will continue to serve as our most senior executive with respect to conceiving large-scale energy transportation and engineering projects involving the Company's proprietary technologies (of which Mr. Moszkowski is himself the inventor), the negotiation of major contracts, and the exercise of independent decision-making authority in financial, administrative and regulatory matters. While he will continue to be the individual chiefly responsible for financial oversight of the company globally, his presence in the U.S. has become increasingly important as DeepGulf seeks new sources of investment capital and responds to requests for proposals for a number of complex energy transportation projects. Reporting to the Company's Board of Directors, Mr. Moszkowski will be compensated at a base annual salary of \$132,000.00, plus standard benefits and other equity-based consideration appropriate to the senior executive of a successful energy technology company.



**DESCRIPTION OF THE PETITIONER AND THE FOREIGN EMPLOYER
AND THEIR QUALIFYING "SUBSIDIARY" RELATIONSHIP**

Founded in 2005, DeepGulf, Inc. is in the business of building energy transportation systems incorporating marine compressed gas technology, and underwater pipelines and associated facilities in deep and ultra-deep offshore oil and gas production fields, increasingly in the Gulf of Mexico. DeepGulf's proprietary J-Flex 3600 marine pipelay system, with its 3,000-ton tensioning capacity and Remote Dynamic Positioning technologies, enables the company to install deeper and larger deep-water equipment, infrastructure and pipelines at a fraction of the investment and overall cost of its competitors. DeepGulf's proprietary marine compressed gas transportation system enables the company to access stranded gas and deliver it to proximate niche markets at favorable prices. Its principal customers are in Southeast Asia, Indonesia, Timor. In carrying out these activities, DeepGulf has entered into joint venture partnerships with NK and Posco, two major technology manufacturing companies in South Korea.

DeepGulf currently employs 3 workers in the United States and, together with our affiliates in the U.S. and abroad, a total of approximately 120 employees worldwide. Descriptive information regarding DeepGulf products will provide you with an insight into the spirit of innovation that has fuelled the Company's success. **See Exhibit 2, descriptive and financial information on Petitioner and the Foreign Employer, including DeepGulf Inc.'s most recent federal income tax returns.**

Toke Oil and Gas SA, a corporation formed under the laws of Timor Leste, is a wholly-owned subsidiary of the Petitioner, DeepGulf, Inc. We attach as **Exhibit 3** an Officer's Certificate incorporation documents, share certificates and the stock ledger which verify the qualifying corporate relationship between the petitioner, DeepGulf Inc., and Toke Oil and Gas SA, Mr. Moszkowski's employer abroad, necessary for a multinational executive transfer.

THE BENEFICIARY'S EXECUTIVE POSITION ABROAD

As noted above, since October 2005 and continuing to the present, Mr. Moszkowski has served as the President of both Toke Oil and Gas, SA and DeepGulf, Inc. In this capacity, for more than 8 years, Mr. Moszkowski has served as the chief executive officer of both companies.

Mr. Moszkowski is charged by the Board of Directors with the responsibility of finding and creating new opportunities for Toke Oil and Gas. He devotes his maritime engineering expertise to the process of analyzing and assessing a prospective client's problems, how they can be solved, determining what engineering needs to be performed and what inventions need to be created to complete such an imagined potential project ("imagineering"). He consults with the executives and professional technical staff of prospective clients to assess the potential value and the likelihood that the client will want to complete such project. If the client determines it is an attractive venture,

Mr. Moszkowski is responsible for overseeing the creation of business plans defining the project, i.e., specify engineering, operations, logistics and scope of the project. If the client decides to move forward, Mr. Moszkowski then oversees the final overall design and creation of the engineering drawings, and the sourcing of subcontractors where necessary. He oversees legal compliance, and he negotiates contracts for both clients and subcontractors. Finally, he exercises executive oversight of the work being performed and the preparation of deliverables including any final report. Since 2005, Mr. Moszkowski has spent more than 60% of his time traveling internationally.

We offer the following breakdown illustrating the percentage of time spent accomplishing each specific duty.

Determine and formulate policies, and provide overall direction of DeepGulf and Toke Gas and Oil, within guidelines set up by the board of directors. Plan and direct high-value energy projects at the highest level of management, with the help of subordinate executives and staff managers	20%
Be responsible for long-ranging planning and business strategy for DeepGulf and Toke, with advice and consent from the board	10%
Imagineering – use maritime engineering expertise to analyze and assess prospective clients’ construction needs and potential long-range solutions; evaluate what engineering needs to be done and what inventions need to be created to complete potential projects in a way that maximizes operational efficiency and return on investment	10%
Confer on a weekly basis with members of the Board and report project progress, from inception to completion	5%
Meet with executives of clients and potential subcontractors, potential investors, permitting agencies, government officials and representatives of NGOs on project logistics	10%
Define the project, specify engineering, operations, logistics and scope of the project. Oversee the final overall design and creation of the engineering drawings, and sourcing of subcontractors where necessary	10%
Direct human resources activities, including the approval of human resource plans and engagement of sub-contractors, selection of directors or other high-level staff	5%
Direct legal preparation and permitting for projects and oversee regulatory compliance	10%
Negotiate or approve contracts or agreements with clients, suppliers, distributors, federal or state agencies, or other organizational entities	5%

Oversee the execution of construction and engineering for projects, including overall management of budgets	15%
Total:	100%

These duties, which Mr. Moszkowski has been performing continuously for more than 8 years clearly establish that he meets all four of the criteria identifying employment in an executive capacity as set forth in 8 U.S.C. §1101(a)(44)(B). He (1) directs the overall management of the organization; (2) establishes its long-range goals and policies; (3) exercises wide latitude in discretionary decision making; and (4) receives only general supervision and direction only from the Company's Board of Directors.

A letter from Mr. Vicente Ximenes, Managing Director of Toke Gas and Oil verifying Mr. Moszkowski's qualifying executive employment abroad is attached to this letter as **Exhibit 4**.

THE BENEFICIARY'S U.S. EXECUTIVE POSITION

Upon approval of our immigrant petition on his behalf, we wish to continue Mr. Moszkowski's executive employment as President of Deep Gulf. In this capacity, he will continue to serve as the face of the corporation and the primary liaison to government officials, the media and shareholders. He will be responsible for directing and coordinating all aspects of Company operations, and for providing leadership and in the administrative, business planning, accounting and budgeting efforts of the Company. More particularly, Mr. Moszkowski will continue to report to the Board of Directors and will continue to perform the following duties:

Responsibilities and Duties

1. Provide overall leadership to the company giving clear direction;
2. Develop a corporate strategy using top-level decision making, subject to advise and consent of the Board of Directors;
3. Play leading role in shaping organizational values and implement new strategies where required;
4. Execute the Company's business plan to ensure the future growth of the business;
5. In conjunction with the Board of Directors, conduct a periodic review and revision of the business plan, including mission, strategic goals and tactics;

6. Be responsible for financial viability of the company including overall Profit and Loss;
7. Develop policy and procedures in keeping with the mission of the Company;
8. Set performance criteria for all upper management and complete performance evaluations for all upper management;
9. Report to shareholders and investors at least annually and provide updates when he deems necessary. Make himself available to communicate with shareholders to understand, address their concerns;
10. Exercise ultimate responsibility for accurate reporting of company activities, including financial reports and audits;
11. Represent the company by communicating with national and international press and media on company progress and developments;
12. Work with Governments, administrations and companies in a range of overseas countries in order to advance specific projects; and
13. Finalize funding, technical and management arrangements leading to exclusive agreements with Governments to build energy transportation systems from existing and proven resources. This will include overseeing the building of associated ports, roads and structures.

The President reports in person to the Board of Directors on a quarterly basis, and more frequently in writing and telephonically. The President also reports to shareholders annually at shareholder meetings and periodically as needed, transmitting any necessary communications from shareholders to the Board. All upper-level managers will report directly to the President. In the performance of these duties, Mr. Moszkowski will continue to meet all four of the criteria establishing employment in an executive capacity, as set forth in 8 U.S.C. §1101(a)(44)(B). See Exhibit 5, Petitioner's Organization Chart illustrating the Beneficiary's senior executive position.

THE BENEFICIARY'S QUALIFICATIONS AND PROFESSIONAL BACKGROUND

Mr. Moszkowski is extremely well-qualified for the offered position. In 1981, he earned a Diploma of Higher Studies of the Merchant Marine from the National Merchant Marine Academy in Nice, France. This degree has been evaluated by a professional credential evaluation service as the equivalent of a Bachelor of Science degree in Maritime Operations and Technology from a regionally accredited U.S. university. Since his graduation, Mr. Moszkowski has gained significant engineering experience leading substantial projects in offshore gas and oil development. See Exhibit 6, Beneficiary's credential evaluation and professional resume. In addition, Mr. Moszkowski is the author and inventor on a series of U.S. patents for the construction and operation of deep water pipelines. See Exhibit 7. This maritime engineering expertise is the essence of Mr. Moszkowski's leadership role in our Company.

CONCLUSION

Upon approval of our immigrant petition on his behalf, we wish to continue Mr. Moszkowski's employment as the Company's President. In this capacity, he will continue to perform the same executive-level decision-making duties, primarily in the U.S., but also in the creation of major energy transportation systems and pipeline projects in Southeast Asia.

If you have any questions or require additional information, please contact me or our counsel for this matter, Mr. Jeffrey W. Goldman at (978) 219-5055.

Sincerely yours,

DEEPGULF, INC.

By: _____
Rustin Howard
Corporate Secretary

Employment Agreement

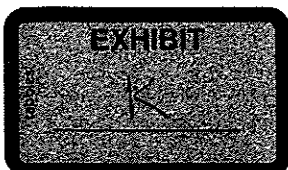
This Employment Agreement is entered into as of the date of the last signature affixed hereto, by and between Deep Gulf, a Florida Incorporation ("Deep Gulf, Inc." or "the Employer"), and Marc Moszowski ("Employee").

In consideration of the mutual promises and covenants set forth herein, and other good and valuable consideration, the sufficiency of which is hereby acknowledged, Deep Gulf, Inc. and Employee hereby agree as follows:

1. **Position of Employment.** The Company will employ the Employee in the position of President of Deep Gulf, Inc., and, in that position, Employee will report to the Board of Directors of Deep Gulf, Inc. Deep Gulf, Inc. retains the right to change Employee's title, duties, and reporting relationships as may be determined to be in the best interests of the Company; provided, however, that any such change in Employee's duties shall be consistent with Employee's training, experience, and qualifications.

The terms and conditions of the Employee's employment shall, to the extent not addressed or described in this Employment Agreement, be governed by Deep Gulf, Inc.'s Policies and Procedures Manual and existing practices. In the event of a conflict between this Employment Agreement and the Policies and Procedures Manual or existing practices, the terms of this Agreement shall govern.

2. **Term of Employment.** Employee's employment with Deep Gulf, Inc. shall begin on 1 August, 2005, and shall continue for a period of three (3) years, after which time continued employment shall be on an "at will" basis, unless:
 1. Employee's employment is terminated by either party in accordance with the terms of Section 5 of this Employment Agreement; or
 2. Such term of employment is extended or shortened by a subsequent agreement duly executed by each of the parties to this Employment Agreement, in which case such employment shall be subject to the terms and conditions contained in the subsequent written agreement.
3. **Compensation and Benefits.**
 1. **Base Salary.** Employee shall be paid a base salary of \$10,000 monthly, which is \$120,000 annually ("Base Salary"), subject to applicable federal, state, and local withholding. Such Base Salary is to be paid to Employee in the same manner and on the same payroll schedule in which all Deep Gulf, Inc. employees receive payment. Any increases in Employee's Base Salary for years beyond the first year of Employee's employment shall be in the sole discretion of Deep Gulf, Inc. management, and nothing herein shall be deemed to require any such increase.



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2. Incentive and Deferred Compensation. Employee shall be eligible to participate in all incentive and deferred compensation programs available to other executives or officers of Deep Gulf, Inc., such participation to be in the same form, under the same terms, and to the same extent that such programs are made available to other such executives or officers. Nothing in this Employment Agreement shall be deemed to require the payment of bonuses, awards, or incentive compensation to Employee if such payment would not otherwise be required under the terms of Deep Gulf, Inc.'s incentive compensation programs.
3. Employee Benefits. Employee shall be eligible to participate in all employee benefit plans, policies, programs, or perquisites in which other Deep Gulf, Inc. executive or officers participate, including the Deep Gulf, Inc. Stock Option program. The terms and conditions of Employee's participation in Deep Gulf, Inc.'s employee benefit plans, policies, programs, or perquisites shall be governed by the terms of each such plan, policy, or program.
4. Duties and Performance. The Employee acknowledges and agrees that he is being offered a position of employment by the Company with the understanding that the Employee possesses a unique set of skills, abilities, and experiences which will benefit the Company, and he agrees that his continued employment with the Company, whether during the term of this Employment Agreement or thereafter, is contingent upon his successful performance of his duties in his position as noted above, or in such other position to which he may be assigned.
 1. General Duties.
 1. Employee shall render to the very best of Employee's ability, on behalf of the Company, services to and on behalf of the Company, and shall undertake diligently all duties assigned to him by the Company.
 2. Employee shall devote his full time, energy and skill to the performance of the services in which the Company is engaged, at such time and place as the Company may direct. Employee shall not undertake, either as an owner, director, shareholder, employee or otherwise, the performance of services for compensation (actual or expected) for any other entity without the express written consent of the Board of Directors.
 3. Employee shall faithfully and industriously assume and perform with skill, care, diligence and attention all responsibilities and duties connected with his employment on behalf of the Company.
 4. Employee shall have no authority to enter into any contracts binding upon the Company, or to deliberately create any obligations on the part of the Company, except as may be specifically authorized by the Board of Directors of DeepGulf, Inc.
 2. Specific Duties. [See job description appended as attachment to the agreement].

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5. Termination of Employment. Employee's employment with the Company may be terminated, prior to the expiration of the term of this Employment Agreement, in accordance with any of the following provisions:

1. Termination by Employee. The Employee may terminate his employment at any time during the course of this agreement by giving 4 (four) months' notice in writing to the Board of Directors of Deep Gulf, Inc. During the notice period, Employee must fulfill all his duties and responsibilities set forth above and use his best efforts to train and support his replacement, if any. Failure to comply with this requirement may result in Termination for Cause described below, but otherwise Employee's salary and benefits will remain unchanged during the notification period.
2. Termination by the Company without Cause. Deep Gulf, Inc. may terminate Employee's employment at any time during the course of this agreement by giving 6 (six) months' notice in writing to the Employee. During the notice period, Employee must fulfill all of Employee's duties and responsibilities set forth above and use Employee's best efforts to train and support Employee's replacement, if any. Failure of Employee to comply with this requirement may result in Termination for Cause described below, but otherwise Employee's salary and benefits will remain unchanged during the notification period. Deep Gulf, Inc., may, in its sole discretion, give Employee severance pay in the amount of the remaining notice period in lieu of actual employment, and nothing herein shall require Company to maintain employee in active employment for the duration of the notice period.
3. Termination by the Company for Cause. The Company may, at any time and without notice, terminate the Employee for "cause". Termination by the Company of the Employee for "cause" shall include but not be limited to termination based on any of the following grounds: (a) failure to perform the duties of the Employee's position in a satisfactory manner; (b) fraud, misappropriation, embezzlement or acts of similar dishonesty; (c) conviction of a felony involving moral turpitude; (d) illegal use of drugs or excessive use of alcohol in the workplace; (e) intentional and willful misconduct that may subject the Company to criminal or civil liability; (f) breach of the Employee's duty of loyalty, including the diversion or usurpation of corporate opportunities properly belonging to the Company; (g) willful disregard of Company policies and procedures; (h) breach of any of the material terms of this Agreement; and (i) insubordination or deliberate refusal to follow the instructions or policies of the Board of Directors of Deep Gulf, Inc.
4. Termination By Death or Disability. The Employee's employment and rights to compensation under this Employment Agreement shall terminate if the Employee is unable to perform the duties of his position due to death or disability lasting more than 90 days, and the Employee's heirs, beneficiaries, successors, or assigns shall not be entitled to any of the compensation or benefits to which Employee is entitled under this Agreement, except: (a) to the extent specifically provided in this Employment Agreement (b) to the extent required by law; or (c) to the extent that such benefit plans

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or policies under which Employee is covered provide a benefit to the Employee's heirs, beneficiaries, successors, or assigns.

6. Confidentiality. Employee agrees that at all times during Employee's employment and following the conclusion of Employee's employment, whether voluntary or involuntary, Employee will hold in strictest confidence and not disclose Confidential Information (as defined below) to anyone who is not also an employee of the Company or to any employee of the Company who does not also have access to such Confidential Information, without express written authorization of the Board of Directors of the Company. "Confidential Information" shall mean any trade secrets or Company proprietary information, including but not limited to manufacturing techniques, processes, formulas, customer lists, inventions, experimental developments, research projects, operating methods, cost, pricing, financial data, business plans and proposals, data and information the Company receives in confidence from any other party, or any other secret or confidential matters of the Company. Additionally, Employee will not use any Confidential Information for Employee's own benefit or to the detriment of the Company during Employee's employment or thereafter. Employee also certifies that employment with the Company does not and will not breach any agreement or duty that Employee has to anyone concerning confidential information belonging to others.
7. Noncompetition. To the fullest extent permitted by applicable law, the terms of the Noncompetition Agreement executed by the Employee are incorporated by reference into this Employment Agreement and are made a part hereto as if they appeared in this Employment Agreement itself.
8. Expenses. The Company shall pay or reimburse Employee for any expenses reasonably incurred by him in furtherance of his duties hereunder, including expenses for entertainment, travel, meals and hotel accommodations, upon submission by him of vouchers or receipts maintained and provided to the Company in compliance with such rules and policies relating thereto as the Company may from time to time adopt.
9. General Provisions.
 1. Notices. All notices and other communications required or permitted by this Agreement to be delivered by Deep Gulf, Inc. or Employee to the other party shall be delivered in writing to the address shown below, either personally, by facsimile transmission or by registered, certified or express mail, return receipt requested, postage prepaid, to the address for such party specified below or to such other address as the party may from time to time advise the other party, and shall be deemed given and received as of actual personal delivery, on the first business day after the date of delivery shown on any such facsimile transmission or upon the date of actual receipt shown on any return receipt if registered, certified or express mail is used, as the case may be.

Deep Gulf, Inc:
Deep Gulf, Inc., Inc.
17 S Palafox Place Suite 370

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Pensacola, FL 32502
[Attention: Board of Directors]

Employee:

Marc Moszkowski
425C East Zaragoza Ave
Pensacola, FL 32502

2. Amendments and Termination; Entire Agreement. This Agreement may not be amended or terminated except by a writing executed by all of the parties hereto. This Agreement constitutes the entire agreement of Deep Gulf, Inc. and Employee relating to the subject matter hereof and supersedes all prior oral and written understandings and agreements relating to such subject matter.
3. Successors and Assigns. The rights and obligations of the parties hereunder are not assignable to another person without prior written consent; provided, however, that Deep Gulf, Inc., without obtaining Employee's consent, may assign its rights and obligations hereunder to a wholly-owned subsidiary and provided further that any post-employment restrictions shall be assignable by Deep Gulf, Inc. to any entity which purchases all or substantially all of the Company's assets.
4. Severability; Provisions Subject to Applicable Law. All provisions of this Agreement shall be applicable only to the extent that they do not violate any applicable law, and are intended to be limited to the extent necessary so that they will not render this Agreement invalid, illegal or unenforceable under any applicable law. If any provision of this Agreement or any application thereof shall be held to be invalid, illegal or unenforceable, the validity, legality and enforceability of other provisions of this Agreement or of any other application of such provision shall in no way be affected thereby.
5. Waiver of Rights. No waiver by Deep Gulf, Inc. or Employee of a right or remedy hereunder shall be deemed to be a waiver of any other right or remedy or of any subsequent right or remedy of the same kind.
6. Definitions; Headings; and Number. A term defined in any part of this Employment Agreement shall have the defined meaning wherever such term is used herein. The headings contained in this Agreement are for reference purposes only and shall not affect in any manner the meaning or interpretation of this Employment Agreement. Where appropriate to the context of this Agreement, use of the singular shall be deemed also to refer to the plural, and use of the plural to the singular.
7. Counterparts. This Agreement may be executed in separate counterparts, each of which shall be deemed an original but both of which taken together shall constitute but one and the same instrument.
8. Governing Laws and Forum. This Agreement shall be governed by, construed, and enforced in accordance with the laws of the State of Florida. The parties hereto further

Empl Agr 1 Aug 2005

agree that any action brought to enforce any right or obligation under this Agreement shall be subject to the exclusive jurisdiction of the courts of the State of Florida.

IN WITNESS WHEREOF, Deep Gulf, Inc. and Employee have executed and delivered this Agreement as of the date written below.

Deep Gulf, Inc., Inc.

Marc Moszkowski

By: Rustin Howard, Chairman DeepGulf, Inc.

Date: _____

Date: _____

Empl Agr 1 Aug 2005

Department of Homeland Security
U.S. Citizenship and Immigration Services

I-797A, Notice of Action



RECEIPT NUMBER EAC-14-171-52995		CASE TYPE I129 PETITION FOR A NONIMMIGRANT WORKER
RECEIPT DATE May 30, 2014	PRIORITY DATE	PETITIONER DEEPGULF INC
NOTICE DATE September 15, 2014	PAGE 1 of 2	BENEFICIARY A096 377 710 MOSZKOWSKI, MARC M.
JEFFREY W GOLDMAN LAW OFFICES OF JEFF GOLDMAN LLP 125 WASHINGTON ST STE 204 SALEM MA 01970		Notice Type: Approval Notice Class: H1B Valid from 07/04/2014 to 02/10/2017 Consulate:

The above petition and extension of stay have been approved. The status of the named foreign worker(s) in this classification is valid as indicated above. The foreign worker(s) can work for the petitioner, but only as detailed in the petition and for the period authorized. Changes in employment or training may require you to file a new Form I-129 petition. Since this employment or training authorization stems from the filing of this petition, separate employment or training authorization documentation is not required. Please contact the IRS with any questions about tax withholding.

The petitioner should keep the upper portion of this notice. The lower portion should be given to the worker. He or she should keep the right part with his or her Form I-94, Arrival-Departure Record. The I-94 portion should be given to the U.S. Customs and Border Patrol when he or she leaves the United States. The left part is for his or her records. A person granted an extension of stay who leaves the U.S. must normally obtain a new visa before returning. The left part can be used in applying for the new visa. If a visa is not required, he or she should present it, along with any other required documentation, when applying for reentry in this new classification at a port of entry or pre-flight inspection station. The petitioner may also file Form I-824, Application for Action on an Approved Application or Petition, to request that we notify a consulate, port of entry, or pre-flight inspection office of this approval.

The approval of this visa petition does not in itself grant any immigration status and does not guarantee that the alien beneficiary will subsequently be found to be eligible for a visa, for admission to the United States, or for an extension, change, or adjustment of status.

THIS FORM IS NOT A VISA NOR MAY IT BE USED IN PLACE OF A VISA.

The Small Business Regulatory Enforcement and Fairness Act established the Office of the National Ombudsman (ONO)

Please see the additional information on the back. You will be notified separately about any other cases you filed.
U.S. CITIZENSHIP & IMMIGRATION SVCS

VERMONT SERVICE CENTER
75 LOWER WELDEN STREET
SAINT ALBANS VT 05479-0001
Customer Service Telephone: (800) 375-5283
Form I797A (Rev. 10/31/05)N



PLEASE TEAR OFF FORM I-94 PRINTED BELOW, AND STAPLE TO ORIGINAL I-94 IF AVAILABLE

Detach This Half for Personal Records

Receipt# EAC-14-171-52995
I-94# 311615380 30
NAME MOSZKOWSKI, MARC M.
CLASS H1B

VALID FROM 07/04/2014 UNTIL 02/10/2017

PETITIONER: DEEPGULF INC
17 S PALAFOX PL STE 370
PENSACOLA FL 32502

311615380 30

Receipt Number EAC-14-171-52995
United States Citizenship and Immigration
Services

I-94

Departure Record Petitioner: DEEPGULF INC

14. Family Name
MOSZKOWSKI

15. First (Given) Name
MARC

17. Country of Citizenship
FRANCE

16. Date of Birth
06/25/1954

EXHIBIT

Department of Homeland Security
U.S. Citizenship and Immigration Services

I-797A, Notice of Action



RECEIPT NUMBER EAC-14-171-52995		CASE TYPE I129 PETITION FOR A NONIMMIGRANT WORKER
RECEIPT DATE May 30, 2014	PRIORITY DATE	PETITIONER DEEPGULF INC
NOTICE DATE September 15, 2014	PAGE 2 of 2	BENEFICIARY A096 377 710 MOSZKOWSKI, MARC M.

(continued)
at the Small Business Administration. The ONO assists small businesses with issues related to federal regulations. If you are a small business with a comment or complaint about regulatory enforcement, you may contact the ONO at www.ombudsman.sba.gov or phone 202-205-2417 or fax 202-481-5719.

NOTICE: Although this application/petition has been approved, USCIS and the U.S. Department of Homeland Security reserve the right to verify the information submitted in this application, petition and/or supporting documentation to ensure conformity with applicable laws, rules, regulations, and other authorities. Methods used for verifying information may include, but are not limited to, the review of public information and records, contact by correspondence, the internet, or telephone, and site inspections of businesses and residences. Information obtained during the course of verification will be used to determine whether revocation, rescission, and/or removal proceedings are appropriate. Applicants, petitioners, and representatives of record will be provided an opportunity to address derogatory information before any formal proceeding is initiated.

Please see the additional information on the back. You will be notified separately about any other cases you filed.

U.S. CITIZENSHIP & IMMIGRATION SVCS

VERMONT SERVICE CENTER

75 LOWER WELDEN STREET

SAINT ALBANS VT 05479-0001

Customer Service Telephone: (800) 375-5283

Form I797A (Rev. 10/31/05)N



PLEASE TEAR OFF FORM I-94 PRINTED BELOW, AND STAPLE TO ORIGINAL I-94 IF AVAILABLE

Detach This Half for Personal Records

VOID	VOID	VOID
Receipt#	VOID	VOID
I-94#	VOID	VOID
NAME	VOID	VOID
CLASS	VOID	VOID
VOID	VOID	VOID
VOID	VOID	VOID
PETITIONER:	VOID	VOID
VOID	VOID	VOID
VOID	VOID	VOID

VOID	VOID	VOID
Receipt Number	VOID	VOID
United States Citizenship and Immigration Services	VOID	VOID
I-94	VOID	VOID
Departure Record	VOID	VOID
14. Family Name	VOID	VOID
15. First (Given) Name	VOID	VOID
16. Date of Birth	VOID	VOID
17. Country of Citizenship	VOID	VOID

MINTZ LEVIN
MINTZ LEVIN COHN FERRIS GLOVSKY AND POPEO

One Financial Center
Boston, MA 02111
617-542-6000
617-542-2241 fax
www.mintz.com

Jeffrey W. Goldman | 617 348 3025 | jgoldman@mintz.com

August 12, 2005

EV3921604630S

VIA FEDERAL EXPRESS
U.S. Citizenship & Immigration Services
Texas Service Center
P.O. Box 852211
Mesquite, TX 75185-2211

Re: Form I-129, H-1B Petition for Nonimmigrant Worker - NOT SUBJECT TO CAP
Petitioner: DeepGulf, Inc.
Beneficiary: Mr. Marc MOSZKOWSKI

PLEASE NOTIFY THE CONSULATE IN PARIS, FRANCE

Dear Sir or Madam:

In connection with the above-captioned matter, enclosed please find the following forms and documentation submitted in support of the Petitioner's request to sponsor Mr. Moszkowski for H-1B employment until August 1, 2008:

- Attorney Representation Form G-28 with attached checks to cover the government filing fees (\$185, \$500, and \$750);
- Form I-129, Petition for a Nonimmigrant Worker;
- H Classification Supplement to Form I-129;
- H-1B Data Collection and Filing Fee Exemption Supplement;
- Form ETA 9035E, Certified Labor Condition Application (ETA Case # I-05189-1883137);
- Petitioner Letter of Support;
- Petitioner Information including business plan and PowerPoint presentation;
- Personal Guarantee of Rus Howard, Chairman of DeepGulf, Inc., attesting that he will use personal assets including the equity in his home to assure the Citizenship and Immigration Service that the H-1B prevailing wage will be paid. Also attached are tax returns and Settlement Statements from the real estate/residences owned by Mr. Howard;
- Copy of the Beneficiary's educational credentials and professional evaluation;

BOSTON | WASHINGTON | RESTON | NEW YORK | STAMFORD | LOS ANGELES | LONDON



MINTZ, LEVIN, COHN, FERRIS, GLOVSKY AND POPEO, P.C.

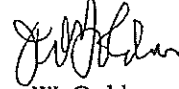
August 12, 2005

Page 2

- Copies of the Beneficiary's Form I-94, Form I-797 Approval Notice for prior H-1B status (SRC-00-069-52123), passport identity page and visa pages.

Please contact me at (617) 348-3025 if you have any questions or require additional information. Thank you in advance for your time and attention to this matter.

Very truly yours,



Jeffrey W. Goldman

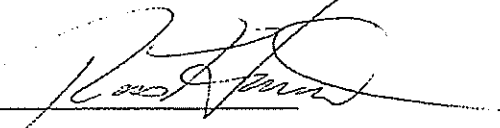
JWG/kwf

Enclosures

Attestation

I, Rus Howard, attest to the following:

1. I am a U.S. Citizen;
2. My company, DeepGulf, Inc., is a startup company with plenty of business to pay the prevailing wage salary of \$120,000 in support of H-1B authorized employment for Mr. Marc Moszkowski;
3. In the event the company does not meet financial expectations, I will use personal assets, including the equity in my home, to guarantee payment of the prevailing wage. Please see the attached personal financial paperwork.

Signature: 

Date: 7-20-05

TRA 1655054v1

Form 1040		Department of the Treasury — Internal Revenue Service		U.S. Individual Income Tax Return 2004		(99) IRS Use Only — Do not write or staple in this space.	
For the year Jan 1 - Dec 31, 2004, or other tax year beginning , 2004, ending , 20		OMB No. 1545-0074					
Label (See instructions.)	Your first name	MI	Last name	Your social security number			
	RUSTIN R HOWARD			529-90-3650			
	If a joint return, spouse's first name	MI	Last name	Spouse's social security number			
Use the IRS label. Otherwise, please print or type.	Home address (number and street). If you have a P.O. box, see instructions.			Apartment no.		▲ Important! ▲ You must enter your social security number(s) above.	
	431 C East Zarragossa Street						
Presidential Election Campaign (See instructions.)	City, town or post office. If you have a foreign address, see instructions.			State		Zip code	
	Pensacola, FL 32502						
Note: Checking 'Yes' will not change your tax or reduce your refund. Do you, or your spouse if filing a joint return, want \$3 to go to this fund? You: ☐ Yes ☒ No Spouse: ☐ Yes ☐ No							
Filing Status	1 ☐ Single	4 ☐ Head of household (with qualifying person). (See instructions.) If the qualifying person is a child but not your dependent, enter this child's name here.					
	2 ☐ Married filing jointly (even if only one had income)						
	3 ☒ Married filing separately. Enter spouse's SSN above & full name here. ▶ MAUREEN W HOWARD	5 ☐ Qualifying widow(er) with dependent child (see instructions)					
Check only one box.							
Exemptions	6a ☒ Yourself. If someone can claim you as a dependent, do not check box 6a						Boxes checked on 6a and 6b 1
	b ☐ Spouse						
If more than four dependents, see instructions.	c Dependents:		(2) Dependent's social security number	(3) Dependent's relationship to you	(4) ☒ 1 qualifying child for child tax credit (see instrs)	No. of children on 6c who:	
	(1) First name	Last name				☐ lived with you ☐ did not live with you due to divorce or separation (see instrs) ☐ Dependents on 6c not entered above ☐ Add numbers on lines above	
d Total number of exemptions claimed						1	
Income	7 Wages, salaries, tips, etc. Attach Form(s) W-2						7 5,078.
	8a Taxable interest. Attach Schedule B if required						8a 132.
	b Tax-exempt interest. Do not include on line 8a. 8b						
	9a Ordinary dividends. Attach Schedule B if required						9a
	b Qualified divs (see instrs) 9b						
	10 Taxable refunds, credits, or offsets of state and local income taxes (see instructions)						10
	11 Alimony received						11
	12 Business income or (loss). Attach Schedule C or C-EZ						12
	13 Capital gain or (loss). Att Sch D if reqd. If not reqd, ck here. ☐						13 495.
	14 Other gains or (losses). Attach Form 4797						14
	15a IRA distributions 15a 3,000.						b Taxable amount (see instrs) 15b 0.
	16a Pensions and annuities 16a						b Taxable amount (see instrs) 16b
	17 Rental real estate, royalties, partnerships, S corporations, trusts, etc. Attach Schedule E						17
	18 Farm income or (loss). Attach Schedule F						18
	19 Unemployment compensation						19
20a Social security benefits 20a						b Taxable amount (see instrs) 20b	
21 Other income See Statement 1						21 1,003.	
22 Add the amounts in the far right column for lines 7 through 21. This is your total income.						22 6,708.	
Adjusted Gross Income	23 Educator expenses (see instructions) 23						
	24 Certain business expenses of reservists, performing artists, and fee-basis government officials. Attach Form 2106 or 2106-EZ						24
	25 IRA deduction (see instructions)						25
	26 Student loan interest deduction (see instructions)						26
	27 Tuition and fees deduction (see instructions)						27
	28 Health savings account deduction. Attach Form 8889						28
	29 Moving expenses. Attach Form 3903						29
	30 One-half of self-employment tax. Attach Schedule SE						30
	31 Self-employed health insurance deduction (see instrs)						31
	32 Self-employed SEP, SIMPLE, and qualified plans						32
	33 Penalty on early withdrawal of savings						33
	34a Alimony paid b Recipient's SSN 34a						
35 Add lines 23 through 34a						35 0.	
36 Subtract line 35 from line 22. This is your adjusted gross income.						36 6,708.	

BAA For Disclosure, Privacy Act and Paperwork Reduction Act Notice, see instructions.

FDIA0112L 11/10/04

Form 1040 (2004)

Form 1040 (2004) RUSTIN R HOWARD		529-90-3650 Page 2	
Tax and Credits	37 Amount from line 36 (adjusted gross income).....	37	6,708.
Standard Deduction for - • People who checked any box on line 38a or 38b or who can be claimed as a dependent, see instructions. • All others: Single or Married filing separately, \$4,850 Married filing jointly or Qualifying widow(er), \$9,700 Head of household, \$7,150	38a Check ☐ You were born before January 2, 1940, ☐ Blind. Total boxes checked ▶ 38a		
	☐ Spouse was born before January 2, 1940, ☐ Blind. checked ▶ 38a		
	b If your spouse itemizes on a separate return, or you were a dual-status alien, see instructions and check here..... ▶ 38b ☐		
	39 Itemized deductions (from Schedule A) or your standard deduction (see left margin).....	39	5,227.
	40 Subtract line 39 from line 37.....	40	1,481.
	41 If line 37 is \$107,025 or less, multiply \$3,100 by the total number of exemptions claimed on line 6d. If line 37 is over \$107,025, see the worksheet in the instructions.....	41	3,100.
	42 Taxable income. Subtract line 41 from line 40. If line 41 is more than line 40, enter -0-.....	42	0.
	43 Tax (see instrs) Check if any tax is from: a ☐ Form(s) 8814 b ☐ Form 4972.....	43	0.
	44 Alternative minimum tax (see instructions). Attach Form 6251.....	44	0.
	45 Add lines 43 and 44..... ▶	45	0.
46 Foreign tax credit. Attach Form 1116 if required.....	46		
47 Credit for child and dependent care expenses. Attach Form 2441.....	47		
48 Credit for the elderly or the disabled. Attach Schedule R.....	48		
49 Education credits. Attach Form 8863.....	49		
50 Retirement savings contributions credit. Attach Form 8880.....	50		
51 Child tax credit (see instructions).....	51		
52 Adoption credit. Attach Form 8839.....	52		
53 Credits from: a ☐ Form 8396 b ☐ Form 8859.....	53		
54 Other credits. Check applicable box(es): a ☐ Form 3800 b ☐ Form 8801 c ☐ Specify.....	54		
55 Add lines 46 through 54. These are your total credits.....	55		
56 Subtract line 55 from line 45. If line 55 is more than line 45, enter -0-..... ▶	56	0.	
Other Taxes	57 Self-employment tax. Attach Schedule SE.....	57	
58 Social security and Medicare tax on tip income not reported to employer. Attach Form 4137.....	58		
59 Additional tax on IRAs, other qualified retirement plans, etc. Attach Form 5329 if required.....	59	100.	
60 Advance earned income credit payments from Form(s) W-2.....	60		
61 Household employment taxes. Attach Schedule H.....	61		
62 Add lines 56-61. This is your total tax..... See Statement 2.....	62	250.	
Payments	63 Federal income tax withheld from Forms W-2 and 1099.....	63	
If you have a qualifying child, attach Schedule EIC.	64 2004 estimated tax payments and amount applied from 2003 return.....	64	
	65a Earned income credit (EIC).....	65a	
	b Nontaxable combat pay election..... ▶ 65b		
	66 Excess social security and tier 1 RRTA tax withheld (see instructions).....	66	
67 Additional child tax credit. Attach Form 8812.....	67		
68 Amount paid with request for extension to file (see instructions).....	68		
69 Other pmts from: a ☐ Form 2439 b ☐ Form 4136 c ☐ Form 8885.....	69		
70 Add lines 63, 64, 65a, and 66 through 69. These are your total payments..... ▶	70	0.	
Refund	71 If line 70 is more than line 62, subtract line 62 from line 70. This is the amount you overpaid.....	71	
Direct deposit? See instructions and fill in 72b, 72c, and 72d.	72a Amount of line 71 you want refunded to you..... ▶	72a	
	▶ b Routing number..... ▶ c Type: ☐ Checking ☐ Savings		
	▶ d Account number.....		
73 Amount of line 71 you want applied to your 2005 estimated tax..... ▶	73		
Amount You Owe	74 Amount you owe. Subtract line 70 from line 62. For details on how to pay, see instructions..... ▶	74	250.
75 Estimated tax penalty (see instructions).....	75		
Third Party Designee	Do you want to allow another person to discuss this return with the IRS (see instructions)? ☒ Yes. Complete the following. ☐ No		
Designee's name ▶ Preparer	Phone no. ▶	Personal identification number (PIN) ▶	
Sign Here	Under penalties of perjury, I declare that I have examined this return and accompanying schedules and statements, and to the best of my knowledge and belief, they are true, correct, and complete. Declaration of preparer (other than taxpayer) is based on all information of which preparer has any knowledge.		
Joint return? See instructions. ▶	Your signature	Date	Your occupation
Keep a copy for your records. ▶	Spouse's signature. If a joint return, both must sign.	Date	Spouse's occupation
Paid Preparer's Use Only	Preparer's signature ▶ Thomas R. Hatfield	Date 3/30/05	Preparer's SSN or PTIN 133-38-5768
	Firm's name (or yours if self-employed) ▶ Tom Hatfield, CPA	Check if self-employed ☒	
	Address, and ZIP code ▶ P.O. Box 1107	EIN 133-38-5768	
	Dryden, NY 13053	Phone no. (607) 835-6300,	

FDIA0112L 11/10/04

Form 1040 (2004)

Revised on Dec 03, 2004 (2-15-39)

US Department of Housing and Urban Development

OMB No. 2502-0263

A.

SETTLEMENT STATEMENT

B. Type of Loan:

☐ FHA ☒ FmHA ☐ Conv. Unins.
☒ VA ☐ Conv. Ins.
6. File Number
01344-1046907. Loan Number:
78903242

8. Mortgage Ins. Case #:

C. NOTE: This form is furnished to give you a statement of actual settlement costs. Amounts paid to and by the settlement agent are shown. Items marked "00" were paid outside the closing; they are shown here for information purposes and are not included in the totals.

D. NAME AND ADDRESS OF BORROWER:

R. R. HOWARD 8 Calle Hermosa Pensacola Beach, FL 32561

E. NAME AND ADDRESS OF SELLER:

DONNA LEE 9423 S. Hollybrook Dr., #201 Pensacola Pines, FL 33025

F. NAME AND ADDRESS OF LENDER:

WHITNEY NATIONAL BANK 410 Labarre Road Jefferson, LA 70121

G. PROPERTY LOCATION:

431-B East Zaragoza Street Pensacola, FL 32501

H. SETTLEMENT AGENT:

Emmanuel Sheppard & Condon (850) 433-6581 Contact: Janet Rogers

PLACE OF SETTLEMENT:

30 S. Spring Street Pensacola, FL 32501

I. SETTLEMENT DATE:

12/03/2004

DISBURSEMENT DATE:

12/03/2004

J. SUMMARY OF BORROWER(S) TRANSACTION

100. GROSS AMOUNT DUE FROM BORROWER :

101. Contract sales price 360,000.00

102. Personal Property

103. Settlement charges to borrower (line 1400) 12,613.69

104.

105.

Adjustments for items paid by Seller in advance

106. City/town taxes

107. County taxes 12/03/2004 to 12/31/2004 194.92

108. Assessments

109.

110.

111.

112.

120. Gross Amount Due From Borrower 372,808.61

200. AMOUNTS PAID BY OR IN BEHALF OF BORROWER :

201. Deposit or earnest money 10,000.00

202. Principal amount of new loan(s) 292,000.00

203. Existing loan(s) taken subject to

204.

205.

206.

207.

208.

209.

Adjustments for items unpaid by Seller in advance

210. City/town taxes

211. County taxes

212. Assessments

213.

214.

215.

216.

217.

218.

219.

220. Total Paid By/For Borrower 302,000.00

300. CASH AT SETTLEMENT FROM/TO BORROWER :

301. Gross Amount due from borrower (line 120) 372,808.61

302. Less amounts paid by/for borrower (line 220) 302,000.00

303. Cash [X]From []To Borrower 70,808.61

K. SUMMARY OF SELLER(S) TRANSACTION

400. GROSS AMOUNT DUE TO SELLER :

401. Contract sales price 360,000.00

402. Personal Property

403.

404.

405.

Adjustments for items paid by Seller in advance

406. City/town taxes

407. County taxes 12/03/2004 to 12/31/2004 194.92

408. Assessments

409.

410.

411.

412.

420. Gross Amount Due Seller 360,194.92

500. REDUCTIONS IN AMOUNT DUE TO SELLER :

501. Excess deposit (see instructions)

502. Settlement charges to seller (line 1400) 16,718.50

503. Existing loan(s) taken subject to

504. Payoff Mortgage to Wachovia Mortgage Corp. thru 298,960.33

505. Payoff

506. 2004 Taxes 2,460.08

507.

508.

509.

Adjustments for items unpaid by Seller in advance

510. City/town taxes

511. County taxes

512. Assessments

513.

514.

515.

516.

517.

518.

519.

520. Total Reduction Amount Due Seller 318,138.91

600. CASH AT SETTLEMENT TO/FROM SELLER :

601. Gross amount due to seller (line 420) 360,194.92

602. Less reductions in amt. due seller (line 520) 318,138.91

603. Cash [X]To []From Seller 42,056.01

SETTLEMENT CHARGES		Paid from Borrower's Funds at Settlement	Paid from Seller's Funds at Settlement
Total Sales/Broker's Commission based on price			
Listing Realtor Commission To: Tanner Realty			
Selling Realtor Commission			
Commission paid at Settlement			46,000.00
ITEMS PAYABLE IN CONNECTION WITH LOAN			
Loan Origination Fee			
Loan Discount			
Appraisal Fee			
Credit Report			
Lender's Inspection Fee			
Mortgage Insurance Application Fee			
ITEMS REQUIRED BY LENDER TO BE PAID IN ADVANCE			
Interest from			
Mortgage Insurance Premium for			
Hazard Insurance Premium for			
1. RESERVES DEPOSITED WITH LENDER			
1. Hazard insurance			
2. Mortgage insurance			
3. City property taxes			
4. County property taxes			
5. Annual assessments			
6.			
7.			
8. Aggregate Accounting Adjustment			
2. TITLE CHARGES			
1. Settlement or closing fee To: Emmanuel, Sheppard & Condon		250.00	
2. Abstract or title search To: American Pioneer Title Insurance Company		110.00	
3. Title examination To: Emmanuel, Sheppard & Condon		25.00	
4. Title insurance binder			
5. Document preparation To: Emmanuel, Sheppard & Condon		200.00	
6. Notary Fees			
7. Attorney's Fees To: Clark, Partington, Han			350.00
Includes above item numbers: I			
8. Title Insurance To: American Pioneer Title Insurance Company & ES&C		6,398.25	
Includes above item numbers: J			
9. Lender's coverage @			
1. Owner's coverage 1,529,226.28 @ 6,398.25			
2.			
3. Overnight Courier & Handling Fees To: ES&C GL 600.10 Acct.			40.00
3. GOVERNMENT RECORDING AND TRANSFER CHARGES			
1. Recording fees			
2. City/county tax/stamps:			
3. State tax/stamps: Deed \$10,705.10 Mortgage \$0.00 To: Clerk of the Court			10,705.10
4. Recording Releases To: ES&C GL 600.10 Acct.			12.00
5. Record Assignment of Lease To: Clerk of the Court		10.50	
6. Record Power of Attorney To: Clerk of the Court			6.00
4. ADDITIONAL SETTLEMENT CHARGES			
1. Survey			
2. Pest inspection To: Superior Termite & Pest Management			75.00
3. SRIA Lease (3/4/04-3/3/05) To: Santa Rosa Island Authority		1,293.82	
4. Home Warranty To: American Home Shield			550.00
5. Home Inspection To: David Walker Home Inspection Service		300.00	
6. A/C Inspection To: M.D. Air Conditioning		55.00	
1. Total Settlement Charges (enter on lines 103, Section J and 502, Section K)		8,642.57	57,238.10

I, the undersigned, have carefully reviewed the HUD-1 Settlement Statement and to the best of my knowledge and belief, it is a true and accurate statement of all receipts and disbursements made on my part or by me in this transaction. I further certify that I have received a copy of HUD-1 Settlement Statement.

BORROWER(S): John B. Howard **SELLER(S):** John R. Glas

JOHN B. HOWARD **JOHN R. GLAS**

UD-1 Settlement Statement which I have prepared is a true and accurate account of this transaction. I have caused or will cause the funds to be disbursed in accordance with this statement.

Emmanuel, Sheppard & Condon 4/21/04

Date

Taxes have been prorated based on taxes for the year. Any re-proration will be handled between the buyer and seller. All utility bills (water, sewer, electric, cable and mortgage fees) have been paid or will be paid upon receipt of final bills.

It is a crime to knowingly make false statements to the United States on this or any other similar form. Penalties upon conviction can include a fine or imprisonment. For more, see Title 18 U.S. Code Section 1001 and Section 1010.

Revised Feb 26, 2004 (15-1)

US Department of Housing and Urban Development
SETTLEMENT STATEMENT

GSAH No. 2162-0265

Type of Loan			
1 FHA 2 [] FmHA 3 [] Conv Unins		6 File Number:	7 Loan Number:
1 VA 3 [] Conv Ins		00451-098512	8 Mortgage Ins Case #
NOTE: This form is furnished to give you a statement of actual settlement costs. Amounts paid to and by the settlement agent are shown. Items marked "N/A" were paid outside the closing. They are shown here for information only and are not included in the totals.			
NAME AND ADDRESS OF BORROWER:			
RUSTIN R. HOWARD 2101 Scenic Highway, Apt. #D-101 Pensacola, FL 32503			
NAME AND ADDRESS OF SELLER:			
JOHN R. GLAS 1001 Old Metairie Drive Metairie, LA 70001			
NAME AND ADDRESS OF LENDER:			
PROPERTY LOCATION:			
3 Calle Hermosa Pensacola Beach, FL 32561			
SETTLEMENT AGENT:		PLACE OF SETTLEMENT:	
Emmanuel, Sheppard & Condon (850) 433-6581 Contact: Janet Rogers		30 S. Spring Street Pensacola, FL 32501	
SETTLEMENT DATE:		DISBURSEMENT DATE:	
02/27/2004		02/27/2004	
SUMMARY OF BORROWER(S) TRANSACTION		K. SUMMARY OF SELLER(S) TRANSACTION	
0. GROSS AMOUNT DUE FROM BORROWER :		400. GROSS AMOUNT DUE TO SELLER :	
1. Contract sales price	1,529,226.28	401. Contract sales price	1,529,226.28
2. Personal Property		402. Personal Property	
3. Settlement charges to borrower (line 1400)	8,642.57	403.	
4.		404.	
5.		405.	
Adjustments for items paid by Seller in advance		Adjustments for items paid by Seller in advance	
6. City/town taxes		406. City/town taxes	
7. County taxes		407. County taxes	
8. Assessments		408. Assessments	
9. SRIA Lease @ \$1293.82/yr 02/27/2004 to 03/03/20	21.21	409. SRIA Lease @ \$1293.82/yr 02/27/2004 to 03/03/20	21.21
10.		410.	
11.		411.	
12.		412.	
0. Gross Amount Due From Borrower	1,537,890.06	420. Gross Amount Due Seller	1,529,247.49
0. AMOUNTS PAID BY OR IN BEHALF OF BORROWER :		500. REDUCTIONS IN AMOUNT DUE TO SELLER :	
1. Deposit or earnest money	35,250.00	501. Excess deposit (see instructions)	
2. Principal amount of new loan(s)		502. Settlement charges to seller (line 1400)	57,738.10
3. Existing loan(s) taken subject to		503. Existing loan(s) taken subject to	
4.		504. Payoff Mortgage to AmSouth Bank	229,632.17
5.		505. Payoff Mortgage to Bank of America	92,051.82
6.		506.	
7.		507.	
8.		508.	
9.		509.	
Adjustments for items unpaid by Seller in advance		Adjustments for items unpaid by Seller in advance	
10. City/town taxes		510. City/town taxes	
11. County taxes		511. County taxes	
12. Assessments		512. Assessments	
13. MSBU/Fire Assmt 01/01/2004 to 02/27/2004	64.40	513. MSBU/Fire Assmt 01/01/2004 to 02/27/2004	64.40
14.		514.	
15.		515.	
16.		516.	
17.		517.	
18.		518.	
19.		519.	
0. Total Paid By/For Borrower	35,314.40	520. Total Reduction Amount Due Seller	379,476.49
0. CASH AT SETTLEMENT FROM/TO BORROWER :		600. CASH AT SETTLEMENT TO/FROM SELLER :	
1. Gross Amount due from borrower (line 120)	1,537,890.06	601. Gross amount due to seller (line 420)	1,529,247.49
2. Less amounts paid by/for borrower (line 220)	35,314.40	602. Less reductions in amt. due seller (line 520)	379,476.49
3. Cash [X]From []To Borrower	1,502,575.66	603. Cash [X]To []From Seller	1,149,771.00

SETTLEMENT CHARGES		
700. Total Sales/Broker's Commission based on price		
701. Listing Realtor Commission To: Tanner Realty	Paid from Borrower's Funds at Settlement	Paid from Seller's Funds at Settlement
702. Selling Realtor Commission		
703. Commission paid at Settlement		13,689.00
800. ITEMS PAYABLE IN CONNECTION WITH LOAN		
801. Loan Origination Fee		
802. Loan Discount		
803. Appraisal Fee To: WHITNEY NATIONAL BANK	450.00	
804. Credit Report To: EQUIFAX	18.00	
805. Lender's Inspection Fee		
806. Mortgage Insurance Application Fee		
807. Underwriting fee To: WHITNEY NATIONAL BANK	200.00	
808. Document Preparation Fee To: WHITNEY NATIONAL BANK	100.00	
809. Flood Certification Fee To: GEOTRAC	10.00	
810. Tax Service Fee To: WHITNEY NATIONAL BANK	71.00	
900. ITEMS REQUIRED BY LENDER TO BE PAID IN ADVANCE		
901. Interest from 12/03/2004 to 01/01/2005 @ 51/day To: WHITNEY NATIONAL BANK	1,479.00	
902. Mortgage Insurance Premium for:		
903. Hazard Insurance Premium for (Windstorm) To: Underwood-Anderson	1,913.00	
904. Hazard Insurance Premium To: Underwood-Anderson	947.00	
000. RESERVES DEPOSITED WITH LENDER		
001. Hazard insurance 3 months @ 159.42 per month To: WHITNEY NATIONAL BANK	478.26	
002. Mortgage insurance		
003. City property taxes		
004. County property taxes 4 months @ 211.35 per month To: WHITNEY NATIONAL BANK	845.40	
005. Annual assessments		
006.		
007.		
008. Aggregate Accounting Adjustment To: WHITNEY NATIONAL BANK	-211.42	
100. TITLE CHARGES		
101. Settlement or closing fee To: Emmanuel, Sheppard & Condon	250.00	
102. Abstract or title search To: Attorneys Title Insurance Fund	85.00	
103. Title examination To: Emmanuel, Sheppard & Condon	25.00	
104. Title insurance binder		
105. Document preparation To: Emmanuel, Sheppard & Condon	200.00	
106. Notary Fees		
107. Attorney's Fees		
(Includes above item numbers:)		
108. Title Insurance To: Attorneys Title Insurance Fund & ES&C	1,900.00	
(Includes above item numbers:)		
09. Lender's coverage 292,000.00 @ 25.00		
10. Owner's coverage 360,000.00 @ 1,875.00		
11. Alta Form 8.1 FF9 To: Attorneys Title Insurance Fund & ES&C	215.00	
12.		
13. Overnight Courier & Handling Fees To: ES&C GL 600 10 Acct	20.00	20.00
00. GOVERNMENT RECORDING AND TRANSFER CHARGES		
01. Recording fees: Deed \$10.00 Mortgage \$0.00 To: Clerk of the Court	10.00	
02. City/county tax/stamps: Mortgage \$584.00 To: Clerk of the Court	584.00	
03. State tax/stamps: Deed \$2,520.00 Mortgage \$1,022.00 To: Clerk of the Court	1,022.00	2,520.00
04. Recording Releases To: ES&C GL 600 10 Acct		20.00
05. Record Power of Attorney (Buyer) To: Clerk of the Court	10.00	
06. Record Power of Attorney (Seller) To: Clerk of the Court		18.50
00. ADDITIONAL SETTLEMENT CHARGES		
01. Survey To: Lands End Surveying, Inc.		385.00
02. Pest inspection To: Superior Termite & Pest Management		75.00
03. Termite Treatment To: Superior Termite & Pest Management	917.00	
04. Home Inspection To: C. A. Capital Corp. \$300 POC by Buyer to C. A. Capital Corp.		
05. Payoff #70701017752 To: CBCS/Cornell University	65.00	
06. Payoff \$359 \$188 \$144 & \$84 To: CBCS/Medical	775.00	
07. Payoff #1401600100000 To: Verizon Wireless	235.45	
0. Total Settlement Charges (enter on lines 103, Section J and 502, Section K)	12,613.69	16,718.50

I have carefully reviewed the HUD-1 Settlement Statement and to the best of my knowledge and belief, it is a true and accurate statement of all receipts and disbursements made on my part or by me in this transaction. I further certify that I have received a copy of HUD-1 Settlement Statement.

BUYER(S):

R. Howard
I, HOWARD By: *Madgreen W. Howard*

SELLER(S):

Donna Lee
DONNA LEE By: *Kathleen I. Tanner*

HUD-1 Settlement Statement which I have prepared is a true and accurate account of this transaction. I have caused or will cause the funds to be disbursed in accordance with this statement.

Emmanuel, Sheppard & Condon
Date: *12/03/04*

* Taxes have been prorated based on taxes for the year. Any re-proration will be handled between the buyer and seller. All utility bills (water, sewer, electric, cable and phone fees) have been paid or will be paid upon receipt of final bills.
WARNING: It is a crime to knowingly make false statements to the United States on this or any other similar form. Penalties upon conviction can include a fine or imprisonment. For more see Title 18 U.S. Code Section 1001 and Section 1010.

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

vs.

CASE NO.: 3:18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

The deposition of MARC M. MOSZKOWSKI, taken by the attorney for the Plaintiffs, commencing at approximately 9:25 a.m., on the 17th day of July, 2019, at 220 West Garden Street, Suite 603, Pensacola, Florida, before Connie L. Morse, Court Reporter and Notary Public at Large in and for the State of Florida.

1 I survived for more than two years on \$100 a month, and I
2 lost 55 pounds in the process.

3 Q I understand Ms. Tanner is a real estate
4 agent; is that correct?

5 A She is.

6 Q Does she do any real estate work for you?

7 A I have a question. Why do you ask me who she
8 was when you know perfectly well who she is?

9 Q I'm not here to answer your questions today.

10 A All right.

11 Q I'm here to find out what you know about the
12 case.

13 A Yes. She had worked for me on a real estate
14 deal in the spring of 2003.

15 Q And tell me how she -- I guess I want to
16 understand how Kathy introduced you and Rus to each other
17 and why that happened.

18 A You would need to ask her.

19 Q Well, did she tell you something, hey, I've
20 got a gentleman that can maybe provide some funding for some
21 of your projects? Was it something like that, or what
22 happened?

23 A Yeah. She said she knew a gentleman who was a
24 multi-millionaire who would be willing to invest in
25 projects, so talk to him.

1 A I don't think so. I could be wrong. Maybe a
2 thousand dollars or two.

3 Q Any substantial money?

4 A No.

5 Q Did Mr. Howard contribute money at that time;
6 do you know?

7 A I think he contributed \$5,000.

8 Q Did you all go out and hire a law firm to file
9 for the corporation?

10 A I didn't.

11 Q Did Mr. Howard?

12 A I believe he did.

13 Q Okay. Do you know the law firm he hired?

14 A I remember the name of one of the lawyers, but
15 I don't know if it was then or after. I don't know. But
16 the name was Chad McDaniel or McDaniels.

17 Q The company Deep obviously wasn't formed?

18 A No, because Deep, it's such a common name that
19 it was not available, so I proposed DeepGulf.

20 Q And that company was formed; is that correct?

21 A Yeah.

22 Q The shareholders at the time of formation were
23 whom?

24 A Were Rus Howard, who contributed \$5,000, as I
25 remember; and me, who contributed all the know-how.

1 subject to this agreement in 2005?

2 A In 2005 I hadn't read it.

3 Q That's not my question. Do you have any
4 reason to believe that you weren't subject to terms of this
5 agreement other than your argument that maybe you hadn't
6 read it in 2005 when you signed it?

7 A Give me an example.

8 Q Well, there are paragraphs related to
9 noncompetition, nonsolicitation of customers, those sorts of
10 things. Do you believe that you are subject to those
11 provisions?

12 A Perhaps.

13 Q Why do you say perhaps?

14 A Well, for one thing, you know, during all that
15 time Mr. Howard was not raising money for the company, so I
16 had to continue to work, and my work before I founded the
17 company was to work as a consultant and work in the oil and
18 gas business. The other thing is Mr. Howard knew 100
19 percent of everything I was doing. So I expected Mr. Howard
20 to tell me if I did anything that was incorrect. He never
21 told me that I did anything that was incorrect with regard
22 to those contracts.

23 On the other hand, he profited from those
24 contracts because I used the proceeds of those contracts to
25 support the company, to pay for my upkeep, to pay for the

1 binding.

2 THE WITNESS: You know, to this day -- and I'm
3 not a totally ignorant person. I have some
4 education. I understand English. To this day I
5 don't understand everything in this agreement. It's
6 so constricting that basically what it says is that
7 I'm an indentured servant even if I don't receive a
8 salary and I was sent back to where I came from.

9 So, basically, I don't understand this, but I
10 don't think I willfully did anything to go against
11 this agreement. And I also believe that if I had
12 done anything against this agreement, I would have
13 counted on Mr. Howard to tell me, hey, Marc, you
14 cannot do that because of the agreement. And, yeah,
15 I'm not an attorney, and this agreement is very
16 complex.

17 Q (By Mr. Ball) Are you still an officer of
18 DeepGulf, Inc. today?

19 A Yeah, it's been confirmed by Mr. Howard.

20 Q If you'll read paragraph 1 of this agreement
21 for me as well. Just read it to yourself.

22 A Yeah, I'm familiar with this agreement.

23 Q How do you understand -- what do you
24 understand that paragraph to mean?

25 A I understand that I should not accept

1 employment with any business or entity that is in
2 competition with the products or services being conceived,
3 designed, created, et cetera. But I also understand that
4 starting in 2008, I became the general manager of a company
5 that was not necessarily in competition and that I did not
6 make a secret of it and that Mr. Howard was fully aware of
7 that, and he never told me anything. You know, he's the
8 secretary of the company. He was the one I would trust to
9 tell me if anything was an issue. He never said anything.
10 And that was 11 years ago. Now, I'm not sure that Toke Oil
11 and Gas was in competition with DeepGulf. That is in
12 competition? No, I don't think it was in competition, but,
13 of course, it can be argued.

14 Q So you see that it could be argued either way;
15 is that correct?

16 A Yeah. I think the whole document is very --
17 what's the word -- ambiguous, and at the same time it's
18 extremely onerous.

19 Q But you signed it anyway?

20 A Oh, yeah, I signed whatever Mr. Howard was
21 giving me to sign, especially on the -- when was that?
22 Maybe September. Maybe I had been traveling. I can tell
23 you exactly where I was on the 15th of September, 2005.

24 Q That's okay. I don't need to know that.

25 A I had probably been, possibly been traveling

1 Inc.

2 Q So then what happened next? So there was this
3 e-mail exchange and a telephone conversation, although it
4 may not have been that you had the telephone conversation,
5 but there were these exchanges of contact information or
6 whatever. Then at some point you decided to go over to East
7 Timor to examine the opportunity; is that correct?

8 A So I think that was September 10th. The phone
9 conversation was inconsequential. What was of importance
10 were the number of e-mails that were exchanged, and then the
11 man floated the idea of my coming to Timor to give a
12 presentation.

13 Q Mr. Mitaxa?

14 A Mitaxa, yeah. And it took quite a while. And
15 on October 26, 2007, I decided to travel, and I bought
16 airline tickets with my own money. I didn't receive a
17 salary at the time.

18 Q Were you in contact with Mr. Howard or other
19 members of the board of directors saying, hey, I'm heading
20 over to East Timor October 26 or something like that? Did
21 you all have -- were you informing the other members of the
22 board of directors of this?

23 A I was inundating Mr. Howard with information.
24 I had been trying for years to involve Mr. Howard as much as
25 possible. He knew everything. I called him from Timor. I

1 directors said, oh, we need a president director general.

2 Do you want to be the president director general?

3 Q And how did you respond?

4 A Well, it took me about ten seconds of internal
5 conversation with myself to say, yes, of course, because if
6 I'm the president director general of Toke Oil and Gas, I
7 will be able to control the money in Toke -- well, at the
8 time it was Toke Petroleum. And I would be able to maximize
9 the revenue for DeepGulf. We would not be dependent on
10 someone else. I would make sure that the projects were well
11 managed, and I would make sure to send as much money as
12 possible to DeepGulf, Inc.

13 Q So I still don't understand. Why didn't you
14 just use Toke Petroleum?

15 A Because it would take too long to replace the
16 president director with another one, plus I was a foreigner.
17 It would take too long. And we had -- so I would think this
18 was like late February, early March 2008. So it would -- I
19 believe. So it would take too long. So their lawyer
20 decided, okay, what we need is a new company. We'll keep
21 Toke Petroleum the way it is, but we need a new company, and
22 let's call it Toke Oil and Gas. So that's the reason why
23 they had another Toke.

24 Q I'm going to show you a document. It's
25 entitled Toke Oil and Gas, S.A. Unanimous Shareholder

1 the island. It was an extremely dangerous place to be.

2 Q Okay. So did you tell the board of directors
3 of DeepGulf at that time that you felt that there were
4 reasons that it could not own the interest in Toke Oil and
5 Gas, S.A.?

6 A Yeah, and I was saying it.

7 MR. BOLLER: Can we clarify? When you make
8 reference to the board of directors, can you
9 identify whether that is still just Mr. Howard and
10 Mr. Moszkowski?

11 MR. BALL: I'm asking if he talked to anyone
12 on the board of directors at that time.

13 THE WITNESS: Yeah. I was talking with Mr.
14 Howard virtually every single day and sometimes
15 several times every single day. So I was saying
16 East Timor was in a state of civil war, and East
17 Timor was a brand new government. And, of course,
18 the job that Toke Petroleum was supposed to do,
19 which was the survey of the Timor Sea, for which I
20 had finally found someone who was willing to do it,
21 a company in Hong Kong.

22 So the client was the government of East
23 Timor. The contractor was Toke Oil and Gas. And we
24 had no choice by Toke Oil and Gas. Toke Oil and Gas
25 invited us to come to Timor, not to take the

1 A Yeah.

2 Q Did you relay those concerns specifically
3 about the contractual liability and whatnot to Mr. Howard or
4 anyone else that may have been on the board of directors at
5 that time?

6 A Nonstop. I had no secret from Mr. Howard.
7 You see, we've said --

8 Q Let me ask you another question. Did you have
9 those conversations by e-mail or by telephone or by Skype
10 message? How were those?

11 A Mostly by telephone or by voice when I was
12 here, mostly vocal.

13 Q Do you recall any e-mails that would have
14 relayed that way?

15 A Typically it's not the thing you want to put
16 in an e-mail.

17 Q Okay.

18 A Because, you know, it's very sensitive. And I
19 would also tell Bill Lott, who I think by that time some
20 money had been raised, and by that time I think he was
21 already a director. So my big concern was how can we put --
22 even if it had been legal, but it was not legal, it was not
23 legal for us to have DeepGulf between the subcontractor and
24 the government. But even if it had been legal, it would
25 have been reckless, and you know that because I put it in my

1 defenses I don't know how many times because the government
2 fails, and then EGS takes us to court to Singapore.

3 Now, by having Toke Oil and Gas here, what we
4 do is that we funnel as much money as possible to DeepGulf.
5 And if the government fails, well, then EGS takes Toke Oil
6 and Gas to court and me personally instead of taking the
7 company. So by putting my name here, I was protecting the
8 company. I was not trying to take anything from the
9 company. I was going on the frontline to get exposed to
10 hazard.

11 Q I understand your point.

12 MR. BOLLER: Can I make a point here? If the
13 deponent is going to ask questions of counsel, I
14 want counsel under oath because he's asked you a
15 series of questions.

16 MR. BALL: Counsel is not going to go under
17 oath or answer.

18 MR. BOLLER: That was a poor attempt at
19 levity.

20 THE WITNESS: Did I ask questions?

21 MR. BOLLER: Did you ask questions?

22 Q (By Mr. Ball) Let me move on to another
23 question for you, Mr. Moszkowski.

24 A And by the way --

25 Q Let me --

1 talking about an ultra deepwater survey.

2 Q Okay.

3 A The pipeline was way in the future.

4 Q Okay. But for the bureaucratic issues you
5 talked about and your concerns about liability and your
6 concerns about the state of affairs in East Timor, could
7 DeepGulf, Inc. have performed the survey that you're
8 discussing?

9 A No way.

10 Q Or found somebody to perform that survey?

11 A Okay. You mean could DeepGulf, Inc. have been
12 here?

13 Q Yes, sir.

14 A Well, first of all, the people who invited us,
15 Toke, they didn't invite us to go to Timor to steal the
16 business from them. They were business people. They
17 invited us to subcontract for them so that they would make a
18 lot of money like any business, you know. Americans don't
19 have a monopoly on greed. So we never had this opportunity.
20 You mean that all of a sudden these people, very nicely,
21 there they go into oblivion so that we can replace them?
22 No. Toke Oil and Gas was here, and you could not move it.
23 It would have been reckless anyhow to try to remove them.
24 There was no opportunity for DeepGulf here to replace Toke
25 Oil and Gas. It was not the deal.

1 answer to this e-mail to this day.

2 Q (By Mr. Ball) Are you familiar with that
3 e-mail? Is that an e-mail that you sent to Mr. Howard?

4 A Yes, sir.

5 Q And in that e-mail you claim that you had to
6 rewrite all the accounting and financials at the end of 2010
7 after finding that Gino Favaro never kept the books for
8 Toke; is that right?

9 A Yeah.

10 Q Just a minute ago you said you weren't really
11 familiar with the financials while you were working with
12 Toke?

13 A No, I said that I was keeping an accounting of
14 everything on the project.

15 Q A financial accounting?

16 A Okay. Look at the date, 2012. That was after
17 the project. During the project I was not doing the
18 accounting.

19 Q After the fact you said you had to rewrite all
20 the accounting and financials for Toke?

21 A I did, and I sent the statements to Mr.
22 Howard.

23 Q How did you do that? How did you rewrite the
24 financials for Toke?

25 A I analyzed the -- I was in Timor. I analyzed

1 A I know I related it to Bill Lott. This I know
2 for sure. And for me it was a matter of course that,
3 obviously, Rus Howard could not have ignored that I had some
4 revenue since my tax exposure was 160 percent of my DeepGulf
5 salary. And he knew everything about it.

6 Q Let me ask you this.

7 A Intimately.

8 Q How did he know that?

9 A Because we were talking all the time because
10 he came to my estate in France, because in 2006 I tried to
11 borrow 50 percent of my tax exposure because there was a
12 deal at the time with the government that if I paid 50
13 percent before my aunt died then it would be okay. We
14 discussed it for a long time, then he decided not to give me
15 a loan, which was perfectly okay. Then he arranged this
16 fraudulent loan between his friend Mr. Rumsey and me for the
17 last installment. He knew everything about my tax payments.

18 Q Did you ever show Mr. Howard your tax return
19 for those time periods?

20 A He established them.

21 Q I'm asking you the question. Did you ever
22 show Mr. Howard your tax returns for that time period?

23 A Mr. Howard established my tax returns during
24 that period.

25 Q When you say established, what do you mean?

1 conversations with Bill Lott and other than perhaps this
2 inference that you're trying to make about Mr. Howard knew
3 about my taxes, and therefore, he knew about the payments
4 from Toke, were there any direct conversations of, hey, Mr.
5 Howard, I'm receiving -- I've received \$345,000 from Toke
6 Oil and Gas?

7 A I don't remember. What I remember, that I
8 sent all the information by e-mail in 2011 and 2012 with the
9 detail of the director salaries, and he acknowledged it.

10 Q You sent that in financial statements; is that
11 correct?

12 A Yeah.

13 Q You didn't send it in a form of a narrative
14 from you saying that I am receiving these monies or
15 something like that in an e-mail or some kind of other
16 communication; is that correct?

17 A I don't think I should have. Now, Mr. Howard
18 was free to ask me any question he wanted, which he didn't
19 because he didn't care.

20 Q But you've answered my question. I
21 understand. Now, tell me about your relationship with Mr.
22 Howard over time.

23 A He was one of my two or three best friends.
24 We went flying a lot. I trusted him with my life.

25 Q That was in the 2004, '5, '6 time period?

1 never purchased.

2 Q Tell me about that, the shares of the original
3 shareholder. Which original shareholder?

4 A Vicente Ximenes and myself.

5 Q Are you saying your shares were never
6 transferred properly?

7 A They were never paid to me, but it was not a
8 lot. It was only \$100. But I don't remember Mr. Howard
9 giving me \$100. But more importantly, the payment to
10 Vicente Ximenes was never made.

11 Q How much was Vicente's payment?

12 A He was supposed to receive \$100,001.

13 Q He received some of that, correct?

14 A No, he received none of that.

15 Q Has he complained to you about that?

16 A No.

17 Q Is that a problem?

18 A No.

19 MR. BOLLER: Again, question.

20 THE WITNESS: Sorry.

21 MR. BOLLER: Pause, answer.

22 THE WITNESS: Okay.

23 Q (By Mr. Ball) And there was an assignment, a
24 document that assigned Vicente's shares to DeepGulf; is that
25 correct?

1 Q When you were paid by Toke Oil and Gas, how
2 was your salary or payment determined?

3 A It depended on the availability of funds.

4 Q Was it voted upon by the board of directors?
5 How was that determined?

6 A There was no board of directors.

7 Q Sure there was.

8 A Okay. There was East Timor. You ever been in
9 that kind of country? And plus, at the time it was only
10 Vicente Ximenes and me. I never received money while Gino
11 Favaro was in the company. And the way he would approve
12 that, he was the one signing the checks, signing the wire
13 transfers.

14 Q Would you make a request of Vicente and say, I
15 need some payment, or how did that occur? How did you get
16 paid?

17 A I told Vicente, okay, I need to pay my taxes.
18 At first I told Vicente, I'm in a quandary. I received less
19 from DeepGulf than my taxes. One day he said, why don't you
20 take some of the money that I'm taking? I'm going to give
21 you that money.

22 Q Did Vicente reduce the amount that he was
23 taking?

24 A Yeah.

25 Q So Vicente was receiving more than \$110,000 at

1 one point?

2 A Yeah.

3 Q Did he reduce what he was taking by \$110,000 a
4 year so that you could take it and pay taxes?

5 A \$110,000, that was what I received from
6 DeepGulf. If I had not received any money from Toke, it
7 would have gone to Vicente, not to anybody else. And he
8 would have spent it.

9 Q Did you ever relay that to the board of
10 directors at DeepGulf, that Vicente reduced his payment and
11 you received more?

12 A No. By the way, I relayed it in my defenses
13 like a dozen times.

14 Q But prior to the litigation, did you ever
15 relay it to anybody at DeepGulf?

16 A No, because to me, obviously, Mr. Howard, they
17 didn't pay any attention to this because despite the
18 financial statement that I sent him, despite our talking
19 about those financial statements, he never asked me a
20 question about director salaries. So, obviously, to me he
21 didn't give a damn. By the way, as long as money was
22 flowing in, he did give a damn.

23 Q Again, I want to make sure that we are clear
24 on this. The only document that you sent to Mr. Howard that
25 may have indicated that salaries were being paid or

1 me and they call it the board, Mr. Howard. Not the board.
2 I don't have a problem with the board. I have a problem
3 with Mr. Howard. So if they sought to uncover the detail,
4 if they really had sought to uncover the details, they would
5 have uncovered the details, whatever details I have, but not
6 by accusing me of being a thief before uncovering the
7 details.

8 Q Did the board do anything else to seek the
9 details?

10 A Yeah, through insulting me and calling me a
11 thief.

12 Q But other than that, prelitigation, pre --

13 A No.

14 Q -- these problems arising?

15 A No. Predispute, never. You see, Mr. Howard
16 received the financial documents in 2011, 2012. He never
17 asked a question. Evidently he didn't care.

18 Q I'm trying to make sure we don't go over
19 ground we've already covered, so it will take me a second.

20 Allegation 64, are you there, Mr. Moszkowski?

21 A Say it again. Am I here?

22 Q Allegation No. 64, are you on that page?

23 A Yeah.

24 Q Can you review that statement, please?

25 A DeepGulf began to seek additional funding for

1 brains of the operation, I guess, with regard to the
2 technological matters in East Timor. I mean, you're the
3 only one that really knew what was going on there, correct?

4 A If you're trying to flatter me --

5 Q Is it working?

6 A No, you succeed.

7 Q Okay.

8 A I love it.

9 Q But you're the only one who knew about those
10 matters?

11 A Yeah.

12 Q You're the only one that knew about any
13 activities going on in East Timor; is that correct?

14 A Yes, sir.

15 Q No one else in DeepGulf, as far as you knew,
16 knew about that stuff?

17 A Except what I told him. And you may have
18 noticed I'm talkative. I don't retain information. I talk
19 too much. So how I could have hidden stuff from Mr. Howard
20 for 15 years is beyond my understanding.

21 Q Paragraph 71 says, Moszkowski prohibited Rus
22 Howard from contacting clients and any individual in East
23 Timor to obtain or confirm information. And you deny that.
24 Is that correct?

25 A Yes.

1 A No. The contract was in the visa.

2 Q Count III, work and labor done. One sentence
3 makes up this complaint.

4 A Okay.

5 Q Have you had a chance to read paragraph 7?

6 A I worked for the plaintiff for several years
7 without any compensation from 2013 until now or whenever
8 some of my credentials were removed unilaterally by Mr.
9 Howard. And during that period I returned an income to the
10 company. So I worked as a consultant, had all of my revenue
11 as a consultant credited to the company and still did not
12 receive a salary. I believe that the company owes me money
13 for that -- salary for that money that I returned to the
14 company.

15 Q So what revenues were received by DeepGulf
16 subsequent to 2012 because I know that's when the East
17 Timor --

18 A I think it was about -- I think it was
19 \$100,000 exactly.

20 Q Total?

21 A I think. There was a total received from that
22 French contractor of \$125,000. So let's say it was -- yeah,
23 it was a little over \$100,000.

24 Q That French contractor, what is that?

25 A That was the French client that I consulted

1 you?

2 A That's what any other company would do.

3 Q I think I understand your position.

4 A The question is not that I was denied a green
5 card. It's that after 20 years I still don't have a green
6 card, and I will never have one.

7 Q Count V of your counterclaim is entitled fraud
8 based upon promise to pay. I'll let you read through the
9 series of allegations under that count, and then you tell me
10 what the basis for -- what the factual basis for your count
11 is, count V.

12 A That Mr. Howard promised on several occasions
13 that he would raise funds, millions of dollars, which would
14 have made those projects possible, and he never did. As a
15 consequence, there was no money in the company, and as a
16 consequence, I was -- you know, in March 2013 he stopped
17 paying me any money.

18 Q DeepGulf stopped paying you money, correct?

19 A He was DeepGulf at the time. He was the only
20 one with power on the bank account.

21 Q But your money came from DeepGulf, correct?
22 They were written on DeepGulf checks?

23 A Okay. The checks were written by Mr. Howard.

24 Q My question is, your checks came from
25 DeepGulf, correct?

1 texting conversation.

2 A What is this? This doesn't make much sense to
3 me.

4 Q This is something we received from you in
5 response to some of our questions.

6 A This?

7 Q Okay. We provided it to you. I'm sorry.

8 A Yeah, because this date is September 28, 2012.
9 I received my last salary in March 2013. So why would he
10 send me that six months prior?

11 Q Let me ask you this: Did you ever agree in a
12 conversation with Mr. Howard to not accrue any further
13 executive officer payroll until the company had funds to
14 pay? Was that an agreement between you and Mr. Howard?

15 A This is also double entendres. I agreed that
16 he stop paying me salaries. I didn't agree that he wouldn't
17 owe me salaries once the money comes back.

18 Q Okay.

19 A You know, that's the kind of things he does.

20 Q Okay. So let me just ask the question, then
21 we can follow up with other questions. So it says, we
22 agreed not to accrue any further executive officer payroll
23 until the company has funds to pay. So is that something
24 that you agreed to or not?

25 A Okay. Tell me what is the exact significance

1 Q Why do you say probably?

2 A Probably because, like I said, this is a very
3 onerous noncompete agreement, so I probably could have
4 fought it in court. But the way it is, yeah, I was bound to
5 its terms until I fought it.

6 Q And in this letter you mentioned that you
7 refused to let Mr. Howard do his due diligence in Timor. We
8 already kind of went through that discussion.

9 A Yeah, because --

10 Q Hang on. Let me ask the question.

11 A I'm sorry. I'm sorry again.

12 Q You said you would refuse -- I want to make
13 sure that the answer you already gave answers the question
14 to that statement that you would not let Mr. Howard do his
15 due diligence in Timor. Is it the same answer that you gave
16 before?

17 A Yeah, that there was no due diligence because
18 there was nothing to do due diligence on. That's what I
19 meant. It was Mr. Howard that was complaining that I would
20 not allow him to do due diligence. There was nothing to do
21 due diligence on.

22 Q But you write -- this is the sentence, and let
23 me read the sentence, and I'll let you -- then I'm going to
24 ask you a question. I'll let you respond. Then Mr. Howard
25 became apparently obsessed with my refusal to let him

CERTIFICATE OF REPORTER

STATE OF FLORIDA)

COUNTY OF ESCAMBIA)

I, Connie L. Morse, Court Reporter, certify that I was authorized to and did stenographically report the foregoing deposition; and that the transcript is a true record and complete record of my stenographic notes; that the witness did not waive reading and signing.

I further certify that I am not a relative, employee, or attorney, or counsel to any of the parties, nor am I a relative or employee of any of the parties' attorney, or counsel connected with the action, nor am I financially interested in the action.

WITNESS my hand this 7th day of August, 2019.

CONNIE L. MORSE
Court Reporter

WIERZBICKI COURT REPORTING

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

vs.

CASE NO.: 3:18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

The deposition of RUSTIN HOWARD, taken by the attorney for the Defendant, commencing at approximately 10:20 a.m., on the 19th day of July, 2019, at 220 West Garden Street, Suite 603, Pensacola, Florida, before Connie L. Morse, Court Reporter and Notary Public at Large in and for the State of Florida.

WIERZBICKI COURT REPORTING

1 Q And what damage do you allege was caused as a
2 result of these falsehoods that you say were Mr.
3 Moszkowski's responsibility?

4 A The damages would be suffered by any person
5 who invested in the corporation.

6 Q How?

7 A They would have invested under false and
8 misleading information.

9 Q Okay. And have you made a calculation of who
10 invested based on that information that you say was false
11 and misleading and what amounts?

12 A Every investor in the second round of funding
13 would have been damaged.

14 Q Okay. And is there a record of the investors
15 in the second round of funding and the amounts they
16 invested?

17 A Yes, there is.

18 Q And it has contact information for each of
19 those investors?

20 A Is there a record?

21 Q That was what the question was. Is there a
22 record that lists the investors in the second round of
23 funding and the amount that they invested and contact
24 information on each investor?

25 A There should be, yes.

1 that they suffered? I mean, their amounts of investments
2 are going to be listed.

3 A Yes.

4 Q Is it your position that the plaintiffs in
5 this lawsuit have no value now?

6 A That the plaintiffs have no value now?

7 Q Yeah. How do you calculate the loss that the
8 investors suffered? How do you make that determination?

9 A I don't know.

10 Q Do you believe that in your skills as a result
11 of your education and experience you have the ability to
12 ascertain what loss any particular investor in the second
13 round had as a result of these falsehoods you say were Mr.
14 Moszkowski's responsibility?

15 A I can't say that I do.

16 Q Based on your education and experience, can
17 you identify who would have the ability to ascertain what
18 damage any particular investor in the second round suffered
19 as a result of this alleged falsehood by Mr. Moszkowski in
20 the PPM?

21 A I can't say I know the name of anyone who
22 could.

23 Q But you feel like it would need to be somebody
24 other than yourself?

25 A Yes.

1 agreement. It looks to me like -- it's not clear who it's
2 written to. May 12, 2008. It refers to a verbal agreement
3 that Toke agrees to pay DeepGulf 10 percent of each of EGS'
4 invoices regarding the bathymetric survey.

5 Q And I'll represent to you that I printed the
6 wrong copy and that we have a copy signed by both you and
7 Vicente Ximenes and Gino Favaro, but this is the copy only
8 signed by you. So I just need you to verify, is that your
9 signature?

10 A That's my signature, yes.

11 Q And your understanding of the agreement as
12 reflected in this document is that there was to be 10
13 percent commission paid by Toke to DeepGulf based on EGS
14 invoices?

15 A Yes.

16 MS. BOLLER: Okay.

17 MR. BOLLER: I'm going to take over and try
18 to push us through to the end.

19 THE WITNESS: I need a bio break.

20 MR. BOLLER: Okay.

21 (A recess was taken.)

22 MR. BOLLER: Again, I want to express my
23 appreciation for the professional courtesy of
24 allowing questioning to be handled by my associate.

25 MR. BALL: Well, had I known she'd done a

1 Immigration Services?

2 A I would assume so.

3 Q Okay. Ready for the next question?

4 A Yeah.

5 Q Is the figure of \$756,000 an accurate figure
6 of the capital raised as a result of your efforts for
7 DeepGulf?

8 A That sounds like a good number.

9 Q And was that sum paid in cash and deposited
10 into the DeepGulf accounts, or were there some deferrals or
11 payment arrangements for those sums of money?

12 A All proceeds were in cash, check, cash or
13 check.

14 Q Is it your position today that Toke Oil and
15 Gas, S.A. as a party plaintiff in this cause is a
16 corporation that is still in existence?

17 MR. BALL: I object to the form, but go ahead.

18 THE WITNESS: Marc did all things Toke. If he
19 stopped keeping the company current, he would know
20 that.

21 Q (By Mr. Boller) Did you take any steps to
22 ascertain whether it was still in existence when you
23 prepared and filed this lawsuit?

24 A No.

25 Q Did you make any effort to verify that Toke

1 had a valid and current business license, Toke the plaintiff
2 in this lawsuit, has a current and valid business license?

3 A No.

4 (Defendant's Exhibit 18 was marked for
5 identification.)

6 Q (By Mr. Boller) Have you been able to
7 identify what's been marked as Defendant's Exhibit 18 of
8 which you have a copy?

9 A Yes.

10 Q What is that?

11 A Board of directors meeting minutes on October
12 15, 2007.

13 Q And is that your signature?

14 A Yes.

15 Q And was that document prepared by you?

16 A Probably.

17 Q Does it reflect that the defendant was
18 present?

19 A It does.

20 Q Was he, in fact, present?

21 A At least by telephonic communication, if not
22 in person.

23 Q Okay. If he was present by telephonic
24 communication, would that not have been reflected on the
25 minutes?

CERTIFICATE OF REPORTER

STATE OF FLORIDA)
COUNTY OF ESCAMBIA)

I, Connie L. Morse, Court Reporter, certify that I was authorized to and did stenographically report the foregoing deposition; and that the transcript is a true record and complete record of my stenographic notes; that the witness did not waive reading and signing.

I further certify that I am not a relative, employee, or attorney, or counsel to any of the parties, nor am I a relative or employee of any of the parties' attorney, or counsel connected with the action, nor am I financially interested in the action.

WITNESS my hand this 8th day of August, 2019.

CONNIE L. MORSE
Court Reporter

WIERZBICKI COURT REPORTING

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-TKW-MJF

MARC M. MOSZKOWSKI,
Defendant.

_____ /

The deposition of WILLIAM B. LOTT, JR., was taken by the attorney for the Plaintiffs, commencing at 10:00 a.m., on the 31st day of July 2019, at the offices of Wierzbicki Court Reporting, 220 West Garden Street, Suite 603, Pensacola, Florida, reported by David A. Deik, CP, CPE, Professional Reporter, an Approved Reporter of the United States District Court.

1 reason he didn't do it that way is because he had -- if
2 he had -- had sent money from Toke to DeepGulf, and
3 DeepGulf paid Marc, then Marc would have had to pay
4 income taxes on it.

5 Even though he made the money over in
6 Timor, which doesn't require him to pay taxes, he took
7 the money from Toke to his bank account in France and
8 paid his taxes, of which Mr. Howard was fully aware of
9 from the very beginning all the way along.

10 And the first time I ever really knew he
11 was aware was when we were in France snow skiing, and we
12 had had the conversation about paying the inheritance
13 tax and where it stood.

14 And, you know, I'd have -- you'd have to
15 show me a timeline of when that was, but I'm sure we
16 could come up with that. But we talked in detail
17 about -- And I'm sure the amounts were -- I paid so
18 much; I owe so much.

19 Q. Okay. Okay. So let me move on to another
20 question.

21 So did Mr. Moszkowski ever say or threaten
22 that he was going to leave the company and take his --
23 hang on -- take his intellectual property with him or
24 start a new company to compete with DeepGulf?

25 A. Marc said, "If I can't -- if we can't

1 CERTIFICATE OF REPORTER

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STATE OF FLORIDA)

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COUNTY OF ESCAMBIA)

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I, DAVID A. DEIK, CP, CPE, Professional Court Reporter, do hereby certify that I was authorized to and did stenographically report the deposition of WILLIAM B. LOTT, JR.; that a review of the transcript was requested; and that the foregoing transcript, pages 1 through 188 is a true record of my stenographic notes.

I further certify that I am not a relative, employee, or attorney, or counsel to any of the parties, nor am I a relative or employee of any of the parties' attorney or counsel connected with the action, nor am I financially interested in the action.

DATED this 9th day of August 2019.

s /David A. Deik

DAVID A. DEIK, CP, CPE

Professional Court Reporter

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC.	*	
TOKE OIL AND GAS S.A,	*	
Plaintiffs,	*	
	*	
vs.	*	CASE NO. 3:18-cv-01466-TKW-MJF
	*	
MARC M. MOSZKOWSKI ,	*	
Defendant.	*	

MOTION TO ATTEND TRIAL BY VIDEOCONFERENCE

COMES NOW, Defendant/Counter-Plaintiff, Marc M. Moszkowski, by and through undersigned counsel, and requests permission from the Court to appear via video conference for trial on 17 June 2020. The Defendant/Counter-Plaintiff resides in and is currently in France and is unable to appear in person on the specified trial date. In support of this Motion, Defendant/Counter-Plaintiff shows as follows:

1. The parties' trial is scheduled to occur 17 June 2020.
2. On 11 March 2020, Donald J. Trump, President of the United States, issued a Proclamation-Suspension of Entry as Immigrants and Non-Immigrants of Certain Additional Persons Who Pose a Risk of Transmitting 2019 Novel CORONAVIRUS, identifying France as "within the Schengen

Area.” As such, Defendant/Counter-Plaintiff’s entry into the United States has been suspended.

3. Further, as of 11 May France has imposed a one hundred kilometer zone of travel restriction from the home of each French citizen, and travel beyond this distance must only be done for an “imperative family or professional reason” and requires a new attestation form.

4. The location of the Defendant/Counter-Plaintiff’s home is remote, and therefore his ability to travel to an international airport for the purpose of appearing in Pensacola on 17 June 2020 is severely inhibited.

5. Defendant/Counter-Plaintiff will be accessible via telephone or videoconference on 17 June 2020.

6. Defendant/Counter-Plaintiff requests to appear via videoconference on the date of trial, 17 June 2020.

7. Defendant/Counter-Plaintiff Counsel have consulted with Plaintiffs’ Counsel, but Plaintiffs have refused consent to this accommodation.

8. In order for Defendant/Counter-Plaintiff to properly quarantine for the requisite fourteen days prior to trial, he would need to arrive in the United States on or before 3 June 2020.

WHEREFORE, the Defendant/Counter-Plaintiff respectfully requests that Defendant be permitted to appear via videoconference on 17 June 2020, and that this Court enter a ruling prior to 2 June 2020 in consideration of the necessary quarantine and travel time required by Defendant/Counter-Plaintiff, or grant any such other relief this Court deems just, equitable and proper.

Respectfully submitted this 26th day of May 2020.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

Florida Bar No. 0111906

Thomas R. Boller, P.C.

150 Government Street, Suite 1001

Mobile, Alabama 36602

Telephone: (251) 433-2133

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s/ Thomas R. Boller

THOMAS R. BOLLER

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Facsimile: (251) 433-2135

tom@bollerlawfirm.com

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Motion contains 330 words, exclusive of the case style, signature block and certificates of compliance/service.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

CERTIFICATE OF SERVICE

I hereby certify that on this 26th day of May 2020, the foregoing was electronically filed with the Clerk of the Court using the CM/ECF system which will send notification of such filing to all counsel of record.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-TKW-MJF

MARC M. MOSZKOWSKI,

Defendant.

PLAINTIFFS / COUNTER-DEFENDANTS RESPONSE TO
DEFENDANT/COUNTER-PLAINTIFF'S MOTION TO ATTEND TRIAL
BY VIDEOCONFERENCE

Comes now, Plaintiffs / Counter-Defendants, by and through the undersigned attorneys and responds to Defendant/Counter-Plaintiff's Motion to Attend Trial by Videoconference and says:

1. At a telephonic hearing held on February 10, 2020, upon an ore tenus motion made by counsel for Defendant/Counter-Plaintiff to allow Mr. Moszkowski to appear by videoconference at the trial in this case, the court denied the motion. As the undersigned recalls, the court's primary basis for denying the ore tenus motion was the court's desire to have Mr. Moszkowski present at trial to be able to assist in making sure that Mr. Moszkowski was properly responsive to questioning in a trial setting.

2. After experiencing two depositions and multiple telephonic conferences with Mr. Moszkowski while he was *pro se* in this case, where there were numerous instances of interruptions, raised voices, and non-responsiveness to questioning, the undersigned is fearful that a bench trial may not be properly conducted without Mr. Moszkowski's presence live in the courtroom. The volume of exhibits that may need to be referred to may present logistical issues as well.

3. In the Order Scheduling Trial and Establishing Pretrial Deadlines and Procedures [Doc. 152], this court ordered that "[m]otions in limine or other pretrial motions shall be filed no later than 14 days prior to the pretrial conference, with a response to the motion filed no later than 7 days thereafter..." The Motion to Attend Trial by Videoconference was filed on May 26, 2020, only eight days prior to the pre-trial conference. The Motion refers to an Order by Donald J. Trump dated March 11, 2020 and a restriction issued by the government of France on May 11, 2020. The deadline imposed by the court to file pre-trial motions was May 19, 2020. Both governmental orders were issued sufficiently in advance of the court's deadline in order to be timely raised in a Motion.

4. Rule 16(b)(4), Federal Rules of Civil Procedure states that a schedule may be modified only for good cause and with the judge's consent. There was no new information learned from the date that pre-trial motions were due (May 19, 2020) and date of the actual filing of the Motion to Attend Trial by Videoconference

(May 26, 2020) that would be good cause for the dilatory filing. This court emphasized the mandatory nature of showing good cause for making an untimely request to amend in its Order Denying Motion to Amend [Doc. 130], which was also governed by Rule 16(b)(4). This court cited to Sosa v. Airprint Sys., Inc., 133 F.3d 1417 (11th Cir. 1998) for the proposition that “because the motion to amend was filed after the scheduling order’s deadline she must demonstrate good cause under Rule 16(b)...” This court also stated that “[b]ecause Plaintiffs did not establish good cause, the Court need not consider whether Defendant would be prejudiced by the amendment when addressing the Motion to Amend.” This court should apply the same standard to the Motion to Attend Trial by Videoconference that is before the court. There is no cause, good or otherwise, for the Motion not being filed on or before May 19, 2020.

WHEREFORE, the undersigned requests that the Motion to attend Trial by Videoconference be denied.



BRADEN K. BALL, JR.

Florida Bar No. 89000

LITVAK BEASLEY WILSON & BALL, LLP

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Pensacola, Florida 32502

Telephone: (850) 432-9818

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Attorneys for Plaintiffs

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Secondary E-mail: mandrews@lawpensacola.com

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

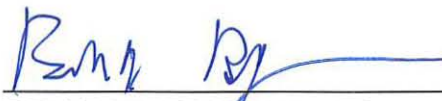
I CERTIFY that this Motion contains 547 words, exclusive of the case style, signature block and certificates of compliance/service.



BRADEN K. BALL, JR.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 28th day of May, 2020, a copy of the foregoing has been furnished to the Defendant's counsel, Mary Allie E. Boller (allie@bollerlawfirm.com) and Thomas R. Boller (tom@bollerlawfirm.com), via the Court's E-filing system.



BRADEN K. BALL, JR.